# Turnitin

## Privacy terms and statements | Source archive

Retrieved 10 October 2026

## Policy and supporting documents captured

Public documents captured from the competitor website and its linked legal pages. Vendor statements are preserved as published, without independent certification.

## About these copies

Web pages are preserved as searchable text snapshots, with their headings and paragraph order retained. Navigation and non-content page elements may be omitted. These are copies of vendor statements, not a GRADIAS assessment of compliance. Source links and any original downloadable files are listed below. Content is retained in its original language.

## Sources

01. Website Privacy
02. Product Privacy
03. Product Privacy
04. Privacy Policy
05. Website Privacy
06. GDPR FAQs
07. Turnitin Website Terms of Use
08. Terms & Conditions
09. Terms of Use
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11. Trust Center

Competitor website

# 01 | Website Privacy

https://examsoft.com/privacy-policy

Webpage text snapshot | Retrieved 10 October 2026

## Privacy Policy

Last Updated: 30 January 2024

Note for California Residents: This Privacy Policy and the related Cookie Notice describes how we process your Personal Information and your rights and choices over our processing. In addition, the Notice for California and Other US State Residents section referenced below, contains specific details related to your rights under California law, including your right to opt out of “sales” of Personal Information.

* * * * * * *

This Privacy Policy applies to the ExamSoft Worldwide LLC (“ExamSoft,” “we,” “us”) websites (the “Websites”). It does not apply to the Personal Information collected on any of our assessment platforms and solutions, which are governed by the privacy policy available here.

This Privacy Policy describes how we may collect, use, and disclose Personal Information collected on the Websites. Personal Information is information that identifies, describes, or relates to an identified or identifiable individual, or information that is reasonably capable of being associated with, or could reasonably be linked, directly or indirectly, with a particular consumer or household (“Personal Information”) from visitors to our Websites (“you,” “your”). It also describes your choices regarding use, access, and changes to your Personal Information.

By accessing or using the ExamSoft Websites, you acknowledge that you have read and understood this Privacy Policy. If you do not agree with this Privacy Policy, please do not access or use the Websites.

In addition to reviewing this Privacy Policy, please also review our Website Terms of Use, because all its terms and conditions form an agreement between you and us.

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## Personal Information We Collect

We collect Personal Information from you when you give information directly to us to provide you with certain services and resources. For example, if you choose to sign up to receive our newsletter, we will ask you to provide your first name, last name, and email address. If you request a demonstration of one of our assessment platforms or solutions or ask a question of our support team, we will ask you to provide certain Personal Information so that we may respond to your request. This may include information such as your first and last name, work email address, institution type, and country. We may also ask you to provide certain optional information, including your job title, institution name, and state of residence.

## Children's Privacy

Our Websites are intended for a general audience, and not for individuals under the age of 13 or otherwise under the age of consent in each region in which we operate ("children," "child"). We do not knowingly collect Personal Information from children. Should we learn that we have inadvertently collected Personal Information from a child, we will take steps to promptly delete it.

## Usage Information and Cookies

When you access our Websites, our servers automatically collect the Internet Protocol ("IP") address associated with your device. We may also collect additional information such as a browser type and version, the operating system of your device and language, country, the referral URL, the length of time you spend on our Websites, as well as the pages you visit most frequently and when. We use this information to help us administer the Websites, remember your preferences, and diagnose technical problems. We also analyze the information for aggregate trends about how our Websites are used and to help improve our Websites.

We collect this information through the use of web servers and these tracking technologies:

Cookies: A cookie is a small data file sent by a website and stored on the computer or device at the request of that website. Cookies store information related to a user's browser to enable us to recognize the browser on return visits to our Websites and to remember your preferences.

Pixel tags. A pixel tag (also referred to as a "clear gif" or "web beacon") allows us to track the online usage patterns of the Websites and to understand which links are clicked. When we send you emails that you have opted into, pixel tags also allow us to track which emails are opened. This information is used to help us improve the Websites.

HTML5 Storage. HTML5 storage or local storage allows us to distinguish your device from others and to remember information that might be important for the functioning of the Websites, such as to remember your location preference or your logged in state. Typically, HTML5 storage is only deleted if all Internet history, cache, and cookies are deleted. Check your browser controls for information on how to delete your HTML5 storage.

## Third Party Cookies and Tracking

We use third party service providers to help us collect and understand usage information and to support our marketing efforts. A list of companies that host cookies on our Websites, the services they provide, and information on how you may opt out of certain cookies is included in our Cookie Notice. Most browsers can be set to detect and provide the option to reject browser cookies, but doing so may affect certain features of the Websites. To make choices about cookies placed by us or our third parties on our Websites, you may do so by visiting the Cookies Settings in the footer of the website, which may also appear, in certain jurisdictions, as "Do Not Sell My Personal Information". If you do not/no longer want to have cookies placed on your browser by third parties, many of them also offer ways to opt out. To learn more about browser cookies, including how to manage or delete them, refer to the "Tools," "Help," or similar section of your web browser.

We do not serve targeted advertising on our Websites. When you use the Internet, however, we and our third parties, as well as unaffiliated third parties, including ad networks, analytics companies, and social networking platforms, may use tracking technologies, including pixels and cookies, such as those described above, to collect information about your online activities over time and across our and other websites. We and they may use this information to measure the effectiveness of our marketing and to serve you advertisements that may be of interest to you. Currently, our websites do not respond to "do not track" signals transmitted by web browsers.

For more information about third party advertisers and how to prevent them from using your information, visit the NAI ‘s consumer website at http://www.networkadvertising.org/choices or http://www.aboutads.info/choices/, or http://www.youronlinechoices.com/uk/. If you do want to opt out using these tools, you need to opt out separately for each of your devices and for each web browser (such as Chrome, Edge, Firefox, Safari, or others) that you use on each device. Note that DNT is different than the Global Privacy Control (GPC), which we do respond to in certain applicable territories. To find out more about GPC, please visit https://globalprivacycontrol.org/.

## How We Use and Disclose Your Personal Information

We use and disclose your Personal Information for the purposes noted at the time we request it and as described below. Where required, we have also explained our legal basis for such use and disclosure.

To administer our Websites: to maintain and administer our Websites and to ensure the security of our Websites, including providing support, services and security via our third party providers.

To communicate with you: including to respond to your requests, resolve a support issue, notify you about changes to the Websites, and to otherwise communicate and solicit feedback on your experience with our products and services.

In the event of a reorganization, merger, sale, assignment, bankruptcy, or similar business change: we may need to transfer your Personal Information to that re-organized entity or new owner after the sale or reorganization for them to use in accordance with this Privacy Policy.

To operate our business: including by sharing with our parent, subsidiaries, affiliates and other related entities, such as those listed at https://www.advance.com/, and our advisors, including lawyers, consultants, accountants, and others for our lawful business purposes.

Our legal basis for these practices, where required by applicable law, is the fulfillment of our legitimate interests as processing this Personal Information is necessary for us to provide you with access to our Websites, to communicate with you about issues related to the Websites, and to change or operate our business. These activities are reasonably expected by you and do not unduly and negatively affect your privacy rights, and enable us to perform our contracted-for obligations and provide you with access to our Services.

In relation to a known or suspected violation of our terms of use, fraud prevention or other unlawful use: including to share Personal Information with entities assisting us in investigation and as may be required by applicable law.

In connection with legal or regulatory obligations: we may use and disclose your Personal Information as necessary to protect our rights or the rights and safety of our users, or as necessary in the event of a court order, regulatory inquiry, or other lawful request. Unless legally prohibited, we will direct any such request to you or notify you before responding unless to do so would prejudice the prevention or detection of a crime.

Our legal bases for these practices, where required by applicable law, are to fulfill our legal obligations such as to allow us to ensure the legality of our Websites; and legitimate interests, because processing this Personal Information is necessary to the provision of our Services, and to protect our legal rights, these activities are reasonably expected by you and these activities do not unduly and negatively affect your privacy rights.

To provide you with marketing materials: to provide you with updates and offers about our products. At any time, you may unsubscribe or opt out of further communication on any electronic marketing communication by using the link labeled “unsubscribe” available in each email communication.

Our legal basis for these practices, where required by applicable law, is your consent where such consent is required.

## How You May Modify Your Personal Information

If you would like to review, correct, update or request that we delete Personal Information you have provided to us, please contact us at privacy@examsoft.com and specify what you would like to review, correct, update or have deleted.

## Third Parties

We may engage with third parties to facilitate our delivery of our Websites and to provide certain features on our behalf, such as data hosting, analytics, content delivery, maintenance, email and marketing management, security, and similar functions. These third parties may require a limited amount of Personal Information in order to deliver their services.

## Links

Our Websites contain links to third party websites, including social networking websites. The fact that we link to a website is not an endorsement or representation of an affiliation with that website. We do not control third party websites or their privacy practices. These other websites may place their own cookies or other files on your computer, collect data or solicit Personal Information from you. Other sites follow different rules regarding the use or disclosure of the Personal Information you submit to them. We encourage you to read the privacy policies or statements of the other websites you visit.

## Security

We use physical, administrative, and technical safeguards to help protect the confidentiality, integrity, and availability of your Personal Information. We host Personal Information in cloud-based environments that use firewalls, encryption, and other industry-standard technologies in an effort to prevent interference or access from outside intruders. The Internet, however, is not perfectly secure, and we are not responsible for security breaches not reasonably within our control.

## Data Retention

We retain Personal Information for as long as is necessary to provide you with access to our Websites or as long as is permissible under applicable law, including as necessary to comply with our legal obligations, resolve disputes, enforce our agreements, comply with applicable industry standards, and protect the security of our Websites.

To determine the appropriate retention period, we consider the categories, amount, nature, and sensitivity of personal data, the potential risk of harm from unauthorized use of disclosure of the personal data, the purposes for which we process the personal data, if we can achieve the purposes through other means, and the applicable legal requirements

## Opt Out Policy

We may send you emails with information about our products. You may opt out of receiving these email messages from us by clicking on the “unsubscribe” link found at the bottom of every email that we send.

We do not send email messages on behalf of third parties.

## Notice For California and Other US State Residents

Certain US state laws, including California, provide their residents with certain rights related to their Personal Information, as described below. We provide these rights to all US residents. Before we may fulfill certain requests, we are required by law to verify your identity in order to prevent unauthorized access to your data, as described below.

Right to Know and Access: You have the right to request access to the Personal Information we maintain about you in the ordinary course of business. This may include Personal Information we collect, use, or disclose about you.

Right of Correction: You have the right to correct inaccuracies in the Personal Information we maintain about you.

Right to Delete: You have the right to request that we delete your Personal Information.

Right to Opt Out of “Sale” or “Sharing” of Personal Information: You have the right to opt out of “sales” of Personal Information or “sharing” of Personal Information for cross-contextual behavioral advertising purposes (as these terms are defined under applicable law), which for our Websites essentially means transfer of your Personal Information to certain third parties for their or for others ‘ commercial purposes, including advertising and marketing purposes. You may opt out of this practice by clicking on the “Do Not Sell My Personal Information” link available here or on the footer of our Websites and follow the instructions.

In the case of all such requests, we may not fulfill all or part of the request as permitted or required by applicable law. For example, if you request that we delete your Personal Information, there may be certain records we are legally required to retain.

Verification

In the case of requests to know, correct, and delete in relation to our Websites, we must take reasonable steps to verify your identity before fulfilling your requests. For example, we may seek to establish your identity to a reasonable or a reasonably high degree of certainty by matching information that you submit alongside your request with information that

we have in our records. We may ask you or your authorized agent for supplemental information as needed to establish your identity. Authorized agents may also be required to provide a copy of the consumer ‘s signed permission authorizing the agent to submit requests on the consumer ‘s behalf under applicable local law.

To Exercise Your Rights

To exercise the rights described above, please contact us at privacy@examsoft.com. Should you have any questions or concerns regarding your privacy rights or this Privacy Policy, you may contact us using at: privacy@examsoft.com.

Please note that your ability to exercise the above rights is subject to certain exemptions to safeguard the public interest (e.g., the prevention or detection of crime) and our interests (e.g., the maintenance of legal privilege). Requests to exercise these rights may be granted in whole, in part, or not at all, depending on the scope and nature of the request and applicable law. Where required by applicable law, we will notify you if we reject your request and notify you of any reasons we are unable to honor your request.

Non-discrimination

We do not discriminate or otherwise penalize anyone for exercising their rights under this Privacy Policy.

The chart below explains our Personal Information collection and sharing practices over the past 12 months.

Categories of Personal Information we may collect |

Identifiers such as your first and last name, work email address, institution type, and country, which is considered Personal Information under subdivision (e) of California Business and Professions Code Section 1798.80.

Internet or other electronic network activity information related to your use of our Websites including your Internet Protocol address.

Professional or employment-related information, including your job title, institution name, and state.

If you choose to sign up to receive resource or newsletter updates, we will collect your email address.

We do not collect Sensitive Personal Information as it is defined under applicable law.

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Categories of sources from which the Personal Information is collected | We collect the Personal Information directly from you including during the time you spend on the Websites.

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Business or commercial purpose for collecting, “selling,” or sharing Personal Information | We collect your Personal Information to operate the Websites, respond to your requests and for the following business purposes:

Maintaining or servicing the Websites and providing customer service.

Detecting security incidents, protecting against malicious, deceptive, fraudulent, or illegal activity, and prosecuting those responsible for that activity.

Debugging to identify and repair errors that impair existing intended functionality.

Sending you marketing communications.

Inferences drawn from your use of our Websites are used by us and our third parties to support our marketing and remarketing efforts, and by third parties for their or others commercial interests, including to enable interest-based advertising.

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Categories of third parties with whom we share or “sell” your Personal Information |

We may share your Personal Information – specifically your IP address, device ID or similar online identifier, with certain third parties, such as social networks and advertising networks. This information may be used to inform the advertising you see after you ‘ve visited our Websites, which may constitute the “sale” of your Personal Information (as defined under applicable law.)

We may also share your Personal Information with our parent, subsidiaries, affiliates and other related entities, such as those listed at https://www.advance.com/, and our advisors, including lawyers, consultants, accountants, and others for

our lawful business purposes.

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Specific pieces of Personal Information we have collected in the past 12 months. |

Internet Protocol address, device ID.

Internet or other electronic network activity information, including, but not limited to, browsing history, search history, and information regarding a consumer's interaction with our Websites.

First and last name, work email address, institution name, country, state, institution type, job role/title, phone.

Any other information you choose to provide.

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California "Shine the Light" Rights

If you are a resident of California, you may request certain information regarding our disclosure of Personal Information (if any) for marketing purposes. To make such a request, please contact us at: Turnitin, LLC Attn: Legal Department 2101 Webster St., Suite 1900 Oakland, California 94612.

## Additional Information for Users from the European Economic Area (EEA), Switzerland, and the United Kingdom (UK)

If you are located outside of the United States, please be aware that your information will be transferred to, processed, and stored in the United States.

When you access our Websites, we function as a "data controller" under the General Data Protection Regulation ("GDPR"). In some cases, we will ask for your consent so that we may process your Personal Information. In other circumstances, we may rely on a different lawful basis, as explained in the section, "How we Use and Disclose Your Personal Information."

By submitting your Personal Information, you acknowledge that we may transfer, process and store your information in this way. Wherever the information is, it will be treated securely and in accordance with this Privacy Policy and applicable privacy laws of the United States. These laws may be different from the privacy laws in your country. However, this does not change our commitments to safeguard your privacy and we will comply with all applicable laws relating to the cross-border data disclosure of your Personal Information. Where required, we will implement Standard Contractual Clauses with our third parties or rely on such other transfer mechanism to ensure that the transfer of your Personal Information outside of the EEA, UK, and Switzerland is lawful. You may request details of the transfer mechanisms that we rely on to transfer Personal Information outside of these regions by emailing us at legal@turnitin.com.

## EU-US Data Privacy Framework Certification

ExamSoft Worldwide LLC, and its group company, Turnitin, comply with the EU-US Data Privacy Framework ("EU-US DPF"), the UK Extension to the EU-U.S. DPF, and the Swiss-U.S. Data Privacy Framework (Swiss-US DPF) (collectively, the "Frameworks") as set forth by the U.S. Department of Commerce. ExamSoft has certified to the U.S. Department of Commerce that it adheres to the EU-U.S. Data Privacy Framework Principles ("EU-US DPF Principles") with regard to the processing of Personal Information received from the European Union in reliance on the EU-US DPF and from the United Kingdom (and Gibraltar) in reliance on the UK Extension to the EU-US DPF. ExamSoft has certified to the U.S. Department of Commerce that it adheres to the Swiss-US Data Privacy Framework Principles ("Swiss-US DPF Principles") with regard to the processing of Personal Information received from Switzerland in reliance on the Swiss-US DPF. If there is any conflict between the terms in this Privacy Policy and the EU-US DPF Principles and/or the Swiss-US DPF Principles, the Principles shall govern. To learn more about the Data Privacy Framework ("DPF") program, and to view our certification, please visit https://www.dataprivacyframework.gov.

In compliance with the Frameworks, ExamSoft commits to resolve DPF Principles-related complaints about our collection and use of your personal information. EU, UK and Swiss individuals with inquiries or complaints regarding our handling of Personal Information received in reliance on the Frameworks should first contact ExamSoft at:

Data Protection Officer

Turnitin, LLC, 2101 Webster Street, Suite 1900, Oakland 94612 CA USA

Phone: +44 (0) 191 681 0227

Email: DPO@turnitin.com

ExamSoft must respond within 45 days of receiving a complaint.

In compliance with the EU-US DPF and the UK Extension to the EU-US DPF and the Swiss-US DPF, ExamSoft commits to cooperate and comply respectively with the advice of the panel established by the EU data protection authorities ("DPAs") and the UK Information Commissioner's Office (ICO) and the Gibraltar Regulatory Authority ("GRA") and the Swiss Federal Data Protection and Information Commissioner ("FDPIC") with regard to unresolved complaints concerning our handling of Personal Information received in reliance on the respective Frameworks.

The Federal Trade Commission has jurisdiction over ExamSoft's compliance with the Frameworks. ExamSoft will submit to binding arbitration in the event that a dispute can not be resolved by the aforementioned mechanisms. ExamSoft shall assume liability for any onward transfers of Personal Information made to third parties.

## Additional Data Rights

Please note that the rules in your country may provide you with additional rights or may limit these rights. In all cases, our provision of the rights will comply with the applicable laws.

If you are based in the EEA, UK, or Switzerland, for example, you may have the right to access, update or correct your Personal Information, to request deletion of such Personal Information, and to object to certain processing, including that related to marketing, to receive a machine-readable copy of the Personal Information concerning you that you provided to us or request us to transfer such data to an applicable third party in certain circumstances.

In addition, where you provided your consent for our processing of your Personal Information, you may withdraw your consent by contacting us using the details provided in the "Contact" section. You may also restrict how we use your Personal Information while a complaint is being investigated.

Your exercise of these rights is subject to certain exemptions to safeguard the public interest (e.g. the prevention or detection of crime) and our interests (e.g., the maintenance of legal privilege).

## Updates to This Privacy Policy

As our Websites evolve, we may make changes to this Privacy Policy. We will alert you to changes by providing notice within the Website or otherwise as required by law. The "last updated" note at the top of this policy indicates when it was last revised, and updates will become effective when they are posted.

## Contact

If you have questions about this Privacy Policy or concerns about how we handle your Personal Information, please contact us at:

Attn: General Counsel

ExamSoft Worldwide LLC

5001 LBJ Freeway, Suite 700

Dallas, TX 75244 USA

– OR –

privacy@examsoft.com

If you have concerns or complaints regarding this Privacy Policy or our data handling procedures, you may have a right to lodge a complaint with a supervisory authority.

# 02 | Product Privacy

https://examsoft.com/product-privacy-policy

Webpage text snapshot | Retrieved 10 October 2026

## Product Privacy Policy

Updated and effective Date: 30 January 2024

This Privacy Policy applies to the ExamSoft assessment platforms, and the solutions used within those platforms (collectively the “Services” or the “Service”) owned and operated by ExamSoft Worldwide LLC (“ExamSoft,” “we,” “us” “our”), and is intended to inform our customers (“Customers”) and their users (“users,” “you,” “your”) how we may collect, use, process, store and disclose your Personal Information when interacting with the Services. This Privacy Policy also describes your choices regarding our use and your access and changes to your Personal Information.

Additional information may apply to you depending on residency. If you are a resident of the United Kingdom, the European Union, or a resident of California and certain other states, there may be specific practices applicable to you as noted specifically in this policy.

For the sake of clarity, this Privacy Policy does not apply to our website, which is governed by the privacy policy available here.

By accessing or using the Services, you acknowledge that you have read and understood this Privacy Policy.

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## Personal Information We Collect

When we engage with a Customer or when you access or use our Services, when you request customer support or information about our Services or when you otherwise communicate with us, we may collect certain personal information about you. Personal Information, for purposes of this policy, is information that identifies, describes, or reasonably relates to an identifiable person or household, or that is otherwise defined as personal information, personal data, or protected data under applicable laws (“Personal Information”). We may collect this information from Customers, which are typically education institutions, as well as from Users, who may be educators or students.

We may collect and process all or some of the following Personal Information about you, which you may provide directly or which may be provided about you from our Customers:

Registering for an Account: We will ask the provider of an exam (“Exam Provider” or “Customer”) to designate an employee as the key administrator for the Services. We will collect this employee’s first and last last name and email address to create an account that the Customer can use to administer the Services, create accounts for additional administrators, and access test-taker exam results.

Users, including students or test-takers (“Users”) register for an account to use the Services by providing personal information including a first and last name, student or registrant identification number, and email address. Users may also choose to provide an external identifier that will allow connection to the Services via the Exam Provider’s single sign on mechanism. We use this information to provide the User with an account and communicate with the User about their account.

Taking an Exam: When you as a User take an exam, you provide information including your name, student or registrant identification number, phone number, email address, exam answers, and other assessment content.

Biometric Information and Audio and Video Recordings: Some Exam Providers choose to use our digital identity verification and authentication solution (“ExamID”) in conjunction with our remote proctoring solution (“ExamMonitor”) as part of the Services for your exam. When ExamID and/or ExamMonitor are used for your exam, we will present you with a Notice and Consent for Collection of Biometric and other Personal Data (“Notice and Consent”) for your review and consent prior to taking your exam. We collect the information that is set out in the Notice and Consent. As described in the Notice and Consent, the facial geometry scan and the information based on that scan that is used to authenticate your identity are considered “Biometric Data”.

Log Data: As you take an exam, in addition to collecting the exam results, we also collect information about your engagement with, and activity on, the Services.

Device Information: In addition, certain products and solutions offered as part of the Services require that prior to taking an exam, your device must be secured. In order to secure your device, ExamSoft must access and, in some instances, modify device system files. During an exam, we also record additional device-level events to help us recognize whether other services, including apps and websites are in operation on the device. We operate this process to ensure that other services are closed during the exam and to secure the device for our Services, and we do not see or capture the content of those other services. The Service may run in the background when not in use in order to provide automatic updates or to upload any previously taken exams that have yet to be uploaded.

Usage Information: When accessing and using the Services, our servers automatically collect the Internet Protocol (“IP”) address associated with your browser and device ID. We may also collect additional information such as the make and model of your device; types and versions of software being used during an exam; login timestamp; browser type and version; the operating system of the computer and language; country; the fact that an exam was uploaded and downloaded, and the associated timestamp; and areas in the Services that Users visit most frequently and features accessed most often.

To collect this information, we use cookies. Cookies are small data files sent by the Services and stored on the computer or device. Cookies store information related to your browser to enable us to recognize the browser on return visits to the Services and to remember your preferences.

Communication Information: We collect information you provide to us. For example, we collect information from you when you request customer support or information about our Services, or otherwise communicate with us.

## How We Use and Disclose Your Personal Information

We do not sell or rent your Personal Information, as the terms are defined under applicable laws. We use and disclose your Personal Information to operate, provide, improve, and develop our Services. Our purposes for using and disclosing your Personal Information are as follows:

To understand, measure, and improve our Services for legally permissible purposes, including, but not limited to, analyzing the performance of our Services, improving our Services, research, product development, and/or to offer customized service suggestions.

To provide the Services to our Customers and their Users, including reporting on your performance to the Exam Provider and providing, as applicable: digital identity verification and remote proctoring services when requested by Customers

and consented to by users; reporting on use of the Services; enabling the ability to upload and administer the exams, including to customize exam review parameters, review results, and diagnose technical problems; to administer and help secure the Services; and to access analytics and log information about exam performance and usage of the Services.

To create and manage log-in credentials, for the creation, maintenance, and administration of Customer and User accounts, and to authenticate Users on behalf of Exam Providers.

To provide customer support, including via email or text message to resolve a problem or support issue, to notify Customers or Users about updates, changes or issues impacting the Services and to otherwise communicate and solicit feedback on Customer experiences with the Services.

To protect our rights, such as to establish or exercise our legal rights or defend against claims. For example, sharing may be necessary in order to assert a legal claim or defense, such as to enforce our Exam Taker End User License Agreement.

In relation to a known or suspected violation of our terms of use, fraud prevention or other unlawful use, including to share Personal Information with entities assisting us in an investigation and as may be required by applicable law.

In connection with legal or regulatory obligations, including to disclose your Personal Information as necessary to protect our rights or the rights and safety of our users, or as necessary in the event of a court order, regulatory inquiry or other lawful request. Provided, however, that unless legally prohibited, we will direct any such request to you or notify you before responding unless to do so would prejudice the prevention or detection of a crime.

In the event of a reorganization, merger, sale, assignment, bankruptcy, or similar business change, we may need to transfer your Personal Information to that re-organized entity or new owner after the sale or reorganization for them to use in accordance with this Privacy Policy.

To provide our Customers with updates and offers about our Services. At any time, you may unsubscribe or opt-out of further communication on any electronic marketing communication by using the link labeled “unsubscribe” available in each email communication or by contacting us at unsubscribe@turnitin.com.

## How You May Modify Your Information

Customers may correct or change the Personal Information collected during registration directly in the Services. Users may request to access, amend, correct, or delete their Personal Information by contacting their Exam Provider. We will work with the Exam Provider to respond to those requests in the time requested by the Exam Provider or otherwise as required by law.

Customers may also directly request deletion of their Users’ Personal Information at any time by contacting us at privacy@examsoft.com.

## Cookies

We use third-party service providers, including Google Analytics, to assist us in collecting and understanding usage information. Most browsers can be set to detect browser cookies and to let a user reject them, but refusing cookies may make it difficult to use certain Services. You can learn more about the cookies within the Service in our Cookie Notice. To learn more about browser cookies, including how to manage or delete them, refer to the Tools, Help, or similar section of your web browser.

## Children’s Privacy

In the event that a Customer chooses to use our Services with students under the age of 13 or otherwise under the age of consent in their jurisdiction, we rely on the Customer to obtain any necessary prior, verifiable parental or legal guardian consent. We otherwise comply with our direct obligations for protecting that Personal Information. If we learn that we have inadvertently collected such Personal Information without the requisite consent, we will take steps to promptly delete it.

Parents wishing to review or request deletion of their child’s Personal Information should contact the Customer. We will work directly with our Customer to facilitate any such requests.

## Family Educational Rights and Privacy Act (FERPA)

Customers who are subject to the Family Educational Rights and Privacy Act ("FERPA") contract with ExamSoft as a "School Official" with a "legitimate educational interest" in providing the Services as the terms are used in FERPA §§ 99.31(a)(1). ExamSoft remains under the direct control of the Customer with respect to the use and maintenance of FERPA-protected "education records" and will use student Personal Information only as set forth in our Customer agreement and in compliance with applicable law.

## Third Party Service Providers

We may engage with third party service providers to facilitate our delivery of the Services and to provide certain features on our behalf, such as customer support; proctoring; identity verification and authentication; data hosting; analytics; content delivery; maintenance; security; and similar functions. These third parties may require a limited amount of information, including Personal Information, in order to deliver their services on our behalf.

## Security

We implement technical, administrative, and physical safeguards to help protect the confidentiality, integrity, and availability of Personal Information. We host Customer and User Personal Information in third-party data centers that use firewalls, encryption of Personal Information, and other industry-standard technologies in an effort to prevent interference or access from outside intruders. The Internet, however, is not perfectly secure, and we are not responsible for security breaches not reasonably within our control.

We also require account identifiers and passwords that must be entered each time Customers or Users sign into the Services. You are responsible for maintaining the confidentiality of your account identifier and password. If you become aware of any unauthorized use of an account, loss of User or Customer credentials or suspect a security breach, it is your responsibility to promptly notify us at informationsecurity@turnitin.com.

## Data Retention

We will retain your Biometric Data, photos, and the video and audio recordings for up to one year after your last interaction with the ExamSoft Services with the Exam Provider, or as otherwise required by law, after which we will delete the data. The Exam Provider may, at any time during this retention period, request that we delete your Personal Information, including but not limited to Biometric Information, photos, recordings, or other Personal Information, on your or on their behalf, and we will do so as permitted by law. Please note, however, that the Exam Provider may retain your Biometric Data, photos, and video and audio recordings. If you have questions about the Exam Provider's data retention policies, please contact the Exam Provider.

We may retain certain User and Customer Personal Information for the period necessary to enable the continued use of the Services, to fulfill the purposes outlined in this Policy, for legally permissible business purposes, or as otherwise required by law. How long we retain specific Personal Information varies depending on its type and use, after which it will be deleted.

We may retain non-Personal Information, including aggregated, de-identified, or anonymized data for lawfully permissible purposes.

## Opt-Out Policy

We send emails to Customers with information about our Services. Customers may opt out of receiving email messages by contacting us at unsubscribe@turnitin.com or by clicking on the "unsubscribe" link found at the bottom of every email that we send.

If Customers have opted out of receiving communications from us, we may still send essential communications regarding the Services to Customers or Users.

We do not send email messages on behalf of third parties.

## Notice For California and Other US Residents

Certain US state laws, including California, provide their residents with certain rights related to their Personal Information, as described below. We provide these rights to all US residents. Before we may fulfill a request in relation to our Services, we may be required by law to verify your identity in order to prevent unauthorized access to your data. Since we will facilitate User requests through our Customers, we will rely on their verification of your identity and our existing Customer contact information in order to process requests.

Customer employees and other Users wishing to exercise their rights as described in this section should contact the Exam Provider. We will work with them as needed should they require our assistance in fulfilling your request.

We do not “sell” or “share” Personal Information as those terms are defined under California and other applicable state privacy laws. To the extent Personal Information is shared with third parties, it is only provided to third party service providers/processors.

Please note that your exercise of the rights described below is subject to certain exemptions to safeguard the public interest (e.g., the prevention or detection of crime) and our interests (e.g., the maintenance of legal privilege). Requests to exercise these rights may be granted in whole, in part, or not at all, depending on the scope and nature of the request and applicable law. Where required by applicable law, we will notify you if we reject your request and of any reasons why we are unable to honor your request.

Right to Know and Access Information: You have the right to request access to the Personal Information we maintain about you in the ordinary course of business. This may include Personal Information we collect, use, or disclose about you.

Right of Correction: You have the right to correct inaccuracies in the Personal Information we maintain about you.

Right to Delete: You have the right to request that we delete your Personal Information.

In the case of all such requests, we may not fulfill all or part of the request as permitted or required by applicable law. For example, if you request that we delete your Personal Information, there may be certain records we are legally required to retain.

Authorized Agent: If you are an authorized agent trying to exercise rights on behalf of an ExamSoft User, please contact their Exam Provider with your supporting verification information required under applicable state law.

Non-discrimination: We will not discriminate or otherwise penalize anyone for exercising their rights under applicable law or this Privacy Policy.

The chart below reflects our current practices and our practices that have been in place for the past 12 months.

Categories of Personal Information we collect |

Online identifiers, including Internet Protocol address;

Personal information including your name, under subdivision (e) of California Business and Professions Code Section 1798.80

Email address, phone number, and identification number;

Internet or other electronic network activity information related to your use of our Services;

Geolocation data;

Audio and video recordings of you taking an exam (when ExamMonitor is used by the Exam Provider, and you consent to its use);

Education information, defined as information that is not publicly available personally identifiable information as defined in the Family Educational Rights and Privacy Act (20 U.S.C. section 1232g, 34 C.F.R. Part 99);

If you contact ExamSoft, we will collect identifiers such as your full name, email address, and phone number.

We also collect the following sensitive Personal Information:

Biometric Data as described above (when ExamID is used by the Exam Provider, and you consent to its use);

Log Data.

|

Categories or sources from which the Personal Information is collected | We collect the Personal Information directly from you or from the Exam Provider, including while interacting with the Services |

Business or commercial purpose for collecting or for sharing or selling Personal Information | We do not Sell Personal Information.

We collect your Personal Information to operate the Services, respond to your requests, and for the purposes described above in the section, “How We May Use and Disclose Your Personal Information.” This includes:

Providing the Services in accordance with our contract with the Customer and our Terms of Use, including maintaining or servicing accounts, providing customer service, processing or fulfilling orders and transactions, and verifying Customer information;

Detecting security incidents, protecting against malicious, deceptive, fraudulent, or illegal activity, and prosecuting those responsible for that activity;

Debugging to identify and repair errors that impair existing intended functionality;

To help us better understand how our Services are used

Undertaking internal research for technological development;

Sending you information and updates about our Services.

|

Categories of third parties with whom we share Personal Information | We disclose your Personal Information only to service providers who support us in delivering the services as described above.

As noted above, we do not engage in what applicable US state laws refer to as “selling” or “sharing” your Personal Information. |

Specific pieces of Personal Information we have collected in the past 12 months |

From Customers: First name, last name, email address, institution name;

When you take an exam: First name, last name, email address, phone number, student or other registration ID, audio and video of you taking the exam (when ExamMonitor is used by the Exam Provider, and you consent to its use), a geometric scan of your face (when ExamID is used by the Exam Provider, and you consent to its use), your photo, your exam or other assessment results;

Internet Protocol address, device ID;

Geolocation;

Internet or other electronic network activity information described above in the section titled, “Usage Information.”

|

## GDPR Information

When we operate our Services in support of a Customer, we function as a “data processor” under the EU and UK General Data Protection Regulations. Our processing of your Personal Information is governed by this Privacy Policy as well as the contractual agreement with the Customer.

## For All International Users

If you are located outside of the United States, please be aware that your information may be transferred to, processed, and stored in the United States, Ireland or Australia, and for our Singapore Customers and Users, in Singapore.

By submitting your Personal Information, you acknowledge that we may transfer, process, and store your Personal information in this way. Wherever the Personal Information is, it will be treated securely and in accordance with this Privacy Policy and applicable privacy laws of the United States. These laws may be different from the privacy laws in your country. However, this does not change our commitments to safeguard your privacy, and we will comply with all applicable laws relating to the cross-border data disclosure of your personal information. Where required, we will

implement Standard Contractual Clauses with our third parties or rely on such other transfer mechanisms to ensure that the transfer of your Personal Information outside of the EEA, Switzerland and the United Kingdom is lawful. You may request details of the transfer mechanisms that we rely on to transfer Personal Information outside of these regions by emailing us at DPO@turnitin.com.

## EU-US Data Privacy Framework Certification

ExamSoft Worldwide LLC, and its group company, Turnitin, comply with the EU-US Data Privacy Framework ("EU-US DPF"), the UK Extension to the EU-U.S. DPF, and the Swiss-U.S. Data Privacy Framework (Swiss-US DPF) (collectively, the "Frameworks") as set forth by the U.S. Department of Commerce. ExamSoft has certified to the U.S. Department of Commerce that it adheres to the EU-U.S. Data Privacy Framework Principles ("EU-US DPF Principles") with regard to the processing of Personal Information received from the European Union in reliance on the EU-US DPF and from the United Kingdom (and Gibraltar) in reliance on the UK Extension to the EU-US DPF. ExamSoft has certified to the U.S. Department of Commerce that it adheres to the Swiss-US Data Privacy Framework Principles ("Swiss-US DPF Principles") with regard to the processing of Personal Information received from Switzerland in reliance on the Swiss-US DPF. If there is any conflict between the terms in this Privacy Policy and the EU-US DPF Principles and/or the Swiss-US DPF Principles, the Principles shall govern. To learn more about the Data Privacy Framework ("DPF") program, and to view our certification, please visit https://www.dataprivacyframework.gov.

In compliance with the Frameworks, ExamSoft commits to resolve DPF Principles-related complaints about our collection and use of your personal information. EU, UK and Swiss individuals with inquiries or complaints regarding our handling of Personal Information received in reliance on the Frameworks should first contact ExamSoft at:

Data Protection Officer

Turnitin, LLC, 2101 Webster Street, Suite 1900, Oakland 94612 CA USA

Phone: +44 (0) 191 681 0227

Email: DPO@turnitin.com

ExamSoft must respond within 45 days of receiving a complaint.

In compliance with the EU-US DPF and the UK Extension to the EU-US DPF and the Swiss-US DPF, ExamSoft commits to cooperate and comply respectively with the advice of the panel established by the EU data protection authorities ("DPAs") and the UK Information Commissioner's Office (ICO) and the Gibraltar Regulatory Authority ("GRA") and the Swiss Federal Data Protection and Information Commissioner ("FDPIC") with regard to unresolved complaints concerning our handling of Personal Information received in reliance on the respective Frameworks.

The Federal Trade Commission has jurisdiction over ExamSoft's compliance with the Frameworks. ExamSoft will submit to binding arbitration in the event that a dispute can not be resolved by the aforementioned mechanisms. ExamSoft shall assume liability for any onward transfers of Personal Information made to third parties.

## Additional Data Rights

Please note that the rules in your country may provide you with additional rights or may limit these rights. In all cases, our provision of the rights will comply with the applicable laws.

If you are based in the EEA, Switzerland or the United Kingdom, for example, you may have the right to access, update or correct your Personal Information, to request deletion of such Personal Information, and to object to certain processing, including that related to marketing, to receive a machine-readable copy of the Personal Information that you provided to us, or in certain circumstances, to request us to transfer such data to an applicable third party.

In addition, where you provided your consent for any of our processing of your Personal Information, you may withdraw such consent by contacting us using the details provided in the "Contact" section.

Your exercise of these rights is subject to certain exemptions to safeguard the public interest (e.g. the prevention or detection of crime) and our interests (e.g., the maintenance of legal privilege). To exercise your rights, please contact your Exam Provider. We will work with them to facilitate your request in circumstances in which they require our assistance.

## Updates to This Privacy Policy

This Policy may be modified from time to time, as our services evolve. So that you are aware when changes have been made, we will adjust the “Last Updated” date at the beginning of this Privacy Policy and, when required by applicable law or regulation, we may also provide notice by email or within the Service.

The “Last Updated” note at the top of this policy indicates when it was last revised, and updates will become effective when they are posted.

## Contact Information

If you have questions regarding this Privacy Policy, or if you have any concerns or complaints about how we handle your Personal Information, please write by email to privacy@examsoft.com or by postal mail to 1920 Broadway #205, Oakland, California, 94612.

If you have concerns or complaints regarding this Privacy Policy or our data handling procedures, you may have a right to lodge a complaint with a supervisory authority.

Our Data Protection Officer may be reached at DPO@turnitin.com.

# 03 | Product Privacy

https://guides.turnitin.com/hc/en-us/articles/27377195682317

Webpage text snapshot | Retrieved 10 October 2026

Resolved page: https://guides.turnitin.com/hc/en-us/articles/27377195682317-Turnitin-Services-Privacy-Policy

Turnitin Guides

Administrator hub

Accessibility and Privacy

Last Updated: 4 February 2026

Turnitin, LLC (“Turnitin,” “we,” “us”), owns and operates a variety of web-based services intended to promote academic integrity, streamline assessment, and prevent plagiarism (collectively, for purposes of this Privacy Policy, the (“Services”). This Privacy Policy is intended to inform our customers (“Customers”) and their users (“Users,” “you,” “your”) about how we may collect, use, process, store and disclose your Personal Information when interacting with the Services. This Privacy Policy also describes your choices regarding our use and your access and changes to your Personal Information.

Additional information may apply to you depending on residency. If you are a resident of the United Kingdom, the European Union, or a resident of California and certain other states, there may be specific practices applicable to you as noted specifically in this policy.

For the sake of clarity, this Privacy Policy does not apply to our websites, which are governed by the policy available here.

By accessing or using the Services, you acknowledge that you have read and understood this Privacy Policy.

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## Personal Information We Collect

When we engage with a Customer, when you access or use our Services, when you request customer support or information about our Services, or when you otherwise communicate with us, we may collect certain Personal Information about you. Personal Information, for purposes of this policy, is information that identifies, describes, or reasonably relates to an identifiable person or household, or that is otherwise defined as personal information, personal data, or protected data under applicable laws (“Personal Information”). We may collect this information from Customers, which are typically education institutions, as well as from Users, who may be educators or students.

We may collect and process all or some of the following Personal Information about you, which you may provide directly or which may be provided about you from our Customers:

## Registering for an Account:

To enable the Services to be used, we may collect the following Personal Information:

Student data, including:

Names: First, middle and last names including pseudonyms (if utilized).

User-specific account identifiers: Information that only a User would know in order to secure their account, which may include the answer to a ‘secret question’.

Email address and Account Names: We require an email address and Account Name in order to service an account.

Any data that is provided to us by a Customer to permit students to access their account: For example, a personal email address rather than an institutional one or contact details we may require to contact a User.

Passwords: We ask Users to provide Passwords which are essential for the security of an account.

Educational Data: This may include grade/year and educational institution, as well as data submitted pursuant to use of the Services, such as written materials in the form of essays, papers, examination answers, and other writings (“Submissions”), as well as data about the writing process itself, such as keystrokes, deletions, and other interactions with the writing interface (“Writing Process Data”).

Educator data, including:

Names and email addresses: for the same reasons that we collect that data for Students, as stated above.

Role: We either collect or assign an Educator’s role within the Service so we can administer the account, such as ‘Instructor’ or ‘Teaching Assistant’.

Education institution: We will collect this data so we know that a User is using an account that is linked to their Institution.

## Using the Service:

In addition to the above, when a Customer or User accesses our Services, our servers may also automatically collect information about your usage of, and activity on the Services (“Usage Information”) including:

Log Data: Including information about when and for how long a User accesses the Services.

Device Information: We may collect the ID of any device that accesses the Services, and the Internet Protocol (“IP”) address associated with your browser and device ID. We may also collect additional information such as the make and model of your device; types and versions of software being used; login timestamp, browser type and version, the operating system of the computer and language.

Location & Service Usage Information: We may also collect information from which country the Services were accessed, and the associated timestamp, and areas in the Services that Users visit most frequently and features accessed most often.

In connection with certain writing and composition tools, we may collect Writing Process Data, which includes browser-based user activity within a composition editor tab (e.g., mouse clicks, keystrokes, session timing, editing actions). This information is used for debugging, performance optimization, and improving user experience. We may also collect metadata related to how Users engage with features like AI writing suggestions, grammar recommendations, and other in-product tools. This includes feedback such as prompt selections, and measures of composition structure

(e.g., word count, sentence complexity).

Communication Information: We collect information you provide to us. For example, we collect information from you when you request customer support or information about our Services, or otherwise communicate with us.

## How We Use and Disclose Personal Information

We do not sell or rent your Personal Information, as the terms are defined under applicable laws. We use and disclose your Personal Information to operate, provide, improve, and develop our Services. Our purposes for using and disclosing your Personal Information are as follows:

To provide the Services to our Customers and their Users, including the processing of Submissions, the generation of prompts to Large Language Models where applicable, and the collection and analysis of Writing Process Data, which is required in order to provide the results of the Services to our Customers.

To understand, measure, and improve our current and future Services, for legally permissible purposes, including, but not limited to, analyzing the performance of our Services,for the purposes of developing, enhancing, or further refining Turnitin's existing products and services and developing new products and services, including those that use artificial intelligence, and/or to offer customized service suggestions. Usage Information helps us provide the Services in the local language, to diagnose technical problems, and to administer, improve, and secure the Services. We also aggregate and analyze Usage Information to better understand how our Services are used and to help us improve our Services. Some Services may allow educators to provide student IDs for rostering purposes, rubrics they use for grading Submissions, grades, and comments on their students' Submissions.

To monitor and analyze how Users interact with composition and writing assistance features in order to improve functionality and personalize learning experiences.

To develop, refine, and improve machine learning or artificial intelligence models related to writing, citations, grammar, or plagiarism detection. This may include the use of anonymized, aggregated, or de-identified student data (such as writing behavior or feedback on AI-generated suggestions), where permitted by law and Customer agreements.

To create and manage log-in credentials, for the creation, maintenance, and administration of Customer and User accounts, and to authenticate Users.

To provide customer support, including via email or text message to resolve a problem or support issue, to notify Customers or Users about changes or issues impacting the Services, and to otherwise communicate and solicit feedback on Customer experiences with the Services.

To protect our rights, such as to establish or exercise our legal rights or defend against claims. For example, sharing may be necessary in order to assert a legal claim or defense, such as to enforce our End User License Agreement.

In relation to a known or suspected violation of our terms of use, fraud prevention, or other unlawful use, including to share Personal Information with entities assisting us in an investigation and as may be required by applicable law.

In connection with legal or regulatory obligations, including to disclose your Personal Information as necessary to protect our rights or the rights and safety of our Users, or as necessary in the event of a court order, regulatory inquiry or other lawful request, or to meet national security or law enforcement requirements. Provided, however, that unless legally prohibited, we will direct any such request to you or notify you before responding unless to do so would prejudice the prevention or detection of a crime.

In the event of a reorganization, merger, sale, assignment, bankruptcy, or similar business change, we may need to transfer your Personal Information to that re-organized entity or new owner after the sale or reorganization for them to use in accordance with this Privacy Policy.

To provide our Customers with updates and offers about our Services. At any time, you may unsubscribe or opt-out of further communication on any electronic marketing communication by using the link labeled "unsubscribe" available in each email communication or by contacting us at unsubscribe@turnitin.com.

## How You May Modify Your Personal Information

Customers may correct or change the Personal Information collected during registration directly in the Services. Student Users may request to access, amend, correct, or delete their Personal Information by contacting their education institution. We will work with the education institution to respond to those requests in the time requested by the Customer or otherwise as required by law. To limit the use and disclosure of their Personal Information, a Student User must first contact their education institution.

Customers may also directly request deletion of their Users' Personal Information at any time by contacting Turnitin Customer Support at tiisupport@turnitin.com.

## Cookies

We use third-party service providers to assist us in collecting and understanding Usage Information. Most browsers can be set to detect browser cookies and to let a user reject them but refusing cookies may impact your experience with the Services. You can learn more about the cookies within the Services in our Cookie Notice. To learn more about browser cookies, including how to manage or delete them, refer to the Tools, Help, or similar section of your web browser.

## Children's Privacy

In the event that a Customer chooses to use our Services with students under the age of 13 or otherwise under the age of consent in their jurisdiction, we rely on the Customer to obtain any necessary prior, verifiable parental or legal guardian consent. We otherwise comply with our direct obligations for protecting that Personal Information. If we learn that we have inadvertently collected such Personal Information without the requisite consent, we will take steps to promptly delete it.

Parents wishing to review or request deletion of their child's Personal Information should contact the Customer. We will work directly with our Customer to facilitate any such requests.

## Family Educational Rights and Privacy Act (FERPA)

Customers who are subject to the Family Educational Rights and Privacy Act ("FERPA") contract with Turnitin as a "School Official" with a "legitimate educational interest" in providing the Services as the terms are used in FERPA §§ 99.31(a)(1). Turnitin remains under the direct control of the Customer with respect to the use and maintenance of FERPA-protected "education records" and will use student Personal Information only as set forth in our Customer agreement and in compliance with applicable law.

## Third Party Service

We may engage with third-party service partners to facilitate our delivery of the Services and to provide certain features on our behalf, such as data hosting, analytics, content delivery, maintenance, security, and similar functions. These third parties may require a limited amount of information, including Personal Information, in order to deliver their services on our behalf.

## Security

We implement technical, administrative, and physical safeguards to help protect the confidentiality, integrity, and availability of Personal Information. We host Customer and User Personal Information in third-party data centers that use firewalls, encryption of Personal Information, and other industry-standard technologies in an effort to prevent interference or access from outside intruders. The Internet, however, is not perfectly secure, and we are not responsible for security breaches not reasonably within our control.

Turnitin undergoes annual SOC2 Type II audits conducted by an external and independent auditor (AICPA).

We also require Customers and Users to each establish an account-identifier and password that must be entered each time Customers or Users sign into the Services. You are responsible for maintaining the confidentiality of your account identifier and password. If you become aware of any unauthorized use of an account, loss of User or Customer account credentials or suspect a security breach, it is your responsibility to promptly notify us at informationsecurity@turnitin.com.

## Data Retention

We may retain certain User and Customer Personal Information for the period necessary to enable the continued use of the Services, to fulfill the purposes outlined in this Policy, for legally permissible business purposes, or as otherwise required by law. How long we retain specific Personal Information varies depending on its type and use, after which it will be deleted.

We may retain non-Personal Information, including aggregated, de-identified, or anonymized data for lawfully permissible purposes.

## Opt-Out Policy

We send emails to Customers with information about our Services. Customers may opt-out of receiving marketing communications from Turnitin by clicking on the “unsubscribe” link found at the bottom of every marketing email that we send. We do not send marketing emails to student Users.

If Customers have opted out of receiving marketing communications from us, we may still send account-related communications regarding the Services. We do not send email messages on behalf of third parties.

## Notice For California and Other US Residents

Certain US state laws, including California, provide their residents with certain rights related to their Personal Information, as described below. We provide these rights to all US residents. Before we may fulfill a request in relation to our Services, we may be required by law to verify your identity in order to prevent unauthorized access to your data. Since we will facilitate User requests through our Customers, we will rely on their verification of your identity and our existing Customer contact information in order to process requests.

Users wishing to exercise the rights described in this section should contact their education institution. We will work with them as needed should they require our assistance in fulfilling the requests.

We do not “sell” or “share” Personal Information as those terms are defined under California and other applicable state privacy laws. To the extent Personal Information is shared with third parties, it is only provided to third party service providers/processors.

Please note that your exercise of the above rights is subject to certain exemptions to safeguard the public interest (e.g., the prevention or detection of crime) and our interests (e.g., the maintenance of legal privilege). We will try to comply with your request as soon as reasonably practicable in compliance with time frames set forth under applicable law. Requests to exercise these rights may be granted in whole, in part, or not at all, depending on the scope and nature of the request and applicable law. Where required by applicable law, we will notify you if we reject your request and notify you of any reasons why we are unable to honor your request.

Right to Know and Access Information: You have the right to request access to the Personal Information we maintain about you in the ordinary course of business and to receive it in a machine-readable format so that it is available to you. This may include Personal Information we collect, use, or disclose about you.

Right of Correction: You have the right to correct inaccuracies in the Personal Information we maintain about you.

Right to Delete: You have the right to request that we delete your Personal Information. In the case of all such requests, we may not fulfill all or part of the request as permitted or required by applicable law. For example, if you request that we delete your Personal Information, there may be certain records we are legally required to retain.

Authorized Agent: If you are an authorized agent trying to exercise rights on behalf of a Turnitin User, please contact their education institution with your supporting verification information required under applicable state law.

Non-discrimination: We will not discriminate or otherwise penalize anyone for exercising their rights under applicable law or this Privacy Policy.

The following reflects our current practices and our practices that have been in place over the past 12 months.

Categories of Personal Information we collect

Online identifier,

Internet Protocol address,

Personal information limited to your name, email address, user ID, and password;

Education information, such as Submissions; Writing Processing Data; Internet or other electronic network activity information related to your use of our Services;

If you choose to schedule a call with Turnitin or contact our Customer Support, we will collect identifiers such as a real name, work email, phone number.

We do not deliberately collect sensitive Personal Information as it is defined under applicable US state laws. We may collect sensitive personal information if included in student Submissions.

Categories or sources from which the Personal Information is collected We collect the Personal Information directly from you, from your education institution, or automatically through the Service as described above.

Business or commercial purpose for collecting or for sharing or selling Personal Information

We collect your Personal Information to operate the Services, respond to your requests and for the following business purposes:

Providing the Services in accordance with our contract with the Customer and our Terms of Use, including maintaining or servicing accounts, providing customer service, processing or fulfilling orders and transactions, verifying customer information, and processing payments.

Detecting security incidents, protecting against malicious, deceptive, fraudulent, or illegal activity, and prosecuting those responsible for that activity.

Debugging to identify and repair errors that impair existing intended functionality.

Sending you information and updates about our Services.

Improving the Services when permitted by the Customer.

We do not “sell” or “share” Personal Information as defined under California and other applicable state privacy laws.

Categories of third parties with whom we share Personal Information

Specific pieces of Personal Information we have collected

We do not share your Personal Information with individuals or organizations to use for their own or others commercial purposes. We disclose your Personal Information only to service providers who support us in delivering the services as described above.

From Students: First name, last name, email address, user ID, password, institution name, grade/year, education institution, Writing Process Data, and coursework Submissions which may contain Personal Information.

From Educators: First name, last name, email address, role, and education institution.

In addition, some Services may allow educators to provide student IDs for rostering purposes, rubrics they use for grading students’ submissions, grades, and comments on their students’ submissions.

Internet Protocol address, device ID.

Internet or other electronic network activity information, including, but not limited to, how you use the Services.

## GDPR Information

When we provide Services to you as a Customer or a User, we act as a “data processor” under the EU and UK General Data Protection Regulations. Our processing of your Personal Information is governed by this Privacy Policy as well as the contractual agreement with the Customer. For more detailed information on Turnitin and its GDPR compliance, see our GDPR FAQs.

## For All International Users

If you are located outside of the United States, please be aware that your Personal information will be transferred to and processed in the United States, and may also be processed for support purposes where we have employees who work on the Services who may be in the UK, the EU (Netherlands, Germany, Poland, Sweden), Ukraine, the Philippines, Australia or India. In the EU, it may be possible to store Submissions exclusively in Germany.

By submitting your Personal Information, you acknowledge that we may transfer, process, and store your information in this way. Wherever the Personal Information is, it will be treated securely and in accordance with this Privacy Policy and applicable privacy laws of the United States. These laws may be different from the privacy laws in your country. However, this does not change our commitments to safeguard your privacy, and we will comply with all applicable laws relating to the cross-border transfer of your Personal Information. Where required, we will implement Standard Contractual Clauses with our Customers and with our third parties or rely on such other appropriate transfer mechanisms, if applicable, to ensure that the transfer of your Personal Information outside of the EEA, Switzerland, and the United Kingdom is lawful. Such mechanisms include the EU-US Data Privacy Framework (DFP) and the UK Extension to the DPF & the Swiss-US DPF, the principles of which Turnitin adheres to. You may request details of the transfer mechanisms that we rely on to transfer personal information outside of these regions by emailing us at DPO@turnitin.com.

## EU-US Data Privacy Framework (DPF) Certification (including the UK Extension to the DPF & the Swiss-US DPF)

Turnitin and its group company, ExamSoft Worldwide LLC, comply with the EU-US Data Privacy Framework ("EU-US DPF"), the UK Extension to the EU-U.S. DPF, and the Swiss-U.S. Data Privacy Framework (Swiss-US DPF) (collectively, the "Frameworks") as set forth by the U.S. Department of Commerce. Turnitin has certified to the U.S. Department of Commerce that it adheres to the EU-U.S. Data Privacy Framework Principles ("EU-US DPF Principles") with regard to the processing of Personal Information received from the European Union in reliance on the EU-US DPF and from the United Kingdom (and Gibraltar) in reliance on the UK Extension to the EU-US DPF. Turnitin has certified to the U.S. Department of Commerce that it adheres to the Swiss-US Data Privacy Framework Principles ("Swiss-US DPF Principles") with regard to the processing of Personal Information received from Switzerland in reliance on the Swiss-US DPF. If there is any conflict between the terms in this Privacy Policy and the EU-US DPF Principles and/or the Swiss-US DPF Principles, the Principles shall govern. To learn more about the Data Privacy Framework ("DPF") program, and to view our certification, please visit https://www.dataprivacyframework.gov.

In compliance with the Frameworks, Turnitin commits to resolve DPF Principles-related complaints about our collection and use of your personal information. EU, UK and Swiss individuals with inquiries or complaints regarding our handling of Personal Information received in reliance on the Frameworks should first contact Turnitin at:

Data Protection Officer

Turnitin, LLC, 1920 Broadway, Suite 205, Oakland 94612 CA USA

Phone: +44 (0) 191 681 0227

Email: DPO@turnitin.com

Turnitin must respond within 45 days of receiving a complaint.

In compliance with the EU-US DPF and the UK Extension to the EU-US DPF and the Swiss-US DPF, Turnitin commits to cooperate and comply respectively with the advice of the panel established by the EU data protection authorities ("DPAs") and the UK Information Commissioner's Office (ICO) and the Gibraltar Regulatory Authority ("GRA") and the Swiss Federal Data Protection and Information Commissioner ("FDPIC") with regard to unresolved complaints concerning our handling of Personal Information received in reliance on the respective Frameworks.

The Federal Trade Commission has jurisdiction over Turnitin's compliance with the Frameworks. Turnitin will submit to binding arbitration in the event that a dispute can not be resolved by the aforementioned mechanisms. Individuals may initiate binding arbitration by delivering a 'Notice' to Turnitin in accordance with the arbitration procedures provided in Annex I of the EU-US DPF Principles (available on the DPF website). Turnitin shall assume liability for any onward transfers of Personal Information made to third parties.

## Additional Rights

Please note that the rules in your country may provide you with additional rights related to our processing of your Personal Information or may limit these rights. In all cases, our provision of the rights will comply with the applicable laws.

If you are based in the EEA, Switzerland, or the United Kingdom, for example, you may have the right to access, update, or correct your Personal Information, to request deletion of such Personal Information, and to object to certain

processing, including that related to marketing, to receive a machine-readable copy of the Personal Information that you provided to us, or request us to transfer such data to an applicable third party in certain circumstances.

Your exercise of these rights is subject to certain exemptions to safeguard the public interest (e.g., the prevention or detection of crime) and our interests (e.g., the maintenance of legal privilege). To exercise your rights, please contact your education institution. We will work with them to facilitate your request in circumstances in which they require our assistance.

## Updates to This Policy

This Policy may be modified from time to time, as our services evolve. So that you are aware when changes have been made, we will adjust the “Last Updated” date at the beginning of this Privacy Policy and, when required by applicable law or regulation, we may also provide notice by email or within the Service.

The “Last Updated” note at the top of this policy indicates when it was last revised, and updates will become effective when they are posted.

## Contact

If you have questions regarding this Privacy Policy, or if you have any concerns or complaints about how we handle your Personal Information, please contact us at:

1920 Broadway, Suite 205

Oakland, California 94612

866 816 5046

legal@turnitin.com

For paper or account deletion requests please contact tiisupport@turnitin.com

If you have concerns or complaints regarding this Privacy Policy or our data handling procedures, you may have a right to lodge a complaint with a supervisory authority.

Our Data Protection Officer may be reached at DPO@turnitin.com.

## Articles in this section

Turnitin End-User License Agreement

Turnitin Services Privacy Policy

Turnitin Website Terms of Use

System requirements

Accessibility

Translated guidance

# 04 | Privacy Policy

https://www.gradescope.com/privacy

Webpage text snapshot | Retrieved 10 October 2026

In 2018, Gradescope joined Turnitin, a leading provider of academic integrity and writing assessment solutions. Since that time, as we've continued to improve and support the Gradescope product you know and love, we've also been settling into our new home. This has included improving our policies and practices, including but not limited to those around privacy and security. As a result, we are adopting a new, companywide privacy policy, which you can find below. If you have any questions or concerns about the changes, as always please reach out to us at help@gradescope.com.

Turnitin respects your privacy and vigorously protects your personal data. We work hard to achieve extremely high levels of security through the use of appropriate technical and organisational measures which are described below. Turnitin complies with the relevant security standards of the US, EU and Switzerland. The Privacy Policy below is reviewed regularly in line with changes in global legislation. For the purposes of this policy, 'personal data' shall have the meaning ascribed to it under the definition of 'personal data' under the General Data Protection Regulation (Regulation (EU) 2016/679) (GDPR). Turnitin complies with the security standards of the US, EU and Switzerland

Privacy Pledge

Privacy Policy

California Privacy Rights

Usage Policy

Acceptable Use Policy

EU Data Protection and GDPR Compliance

Copyright Protection

Legal FAQs

## Privacy Pledge

Integrity is at the heart of all we do; it defines us.

- Chris Caren, CEO of Turnitin

The Privacy Policy below covers the kind of personal data we collect (and how), what we do with it, and how we protect any personal data you provide. Protecting your personal data is our top priority. We are fully committed to transparency and using technology responsibly, no matter what changes emerge from our rapidly evolving digital world; As we strive to create new possibilities in education, we hold ourselves to the highest ethical standards. We strive to adhere to the strictest privacy practices so that your trust is well-deserved; and Because your peace of mind is important to us, we guard your personal data with the utmost care. We use it only for lawful reasons.

## Privacy Policy

Last Updated: 12th October 2022

This Privacy Policy applies to all businesses and group companies of Turnitin. This policy describes how Turnitin collects, uses, shares, and secures the personal data you provide. It also describes your choices regarding use, access, and changes to your personal data. Data collected through our service will be limited solely to the purpose of providing the service for which you (the Client) have engaged Turnitin. If and when a third-party company provides a related service to support our service, such as language translation, we make sure that when personal data is processed by them, we require that those third-party companies meet our security standards and those of the applicable legislation that applies from time to time. We refer to the collective sites run by Turnitin as the "Site."

## Why we collect personal data

When you create an account with us, or when a student has their work processed by Turnitin, we process personal data (such as name, email address, job title, and school) so that we can correctly administer your account and provide you with the best customer service. All personal data we process is directly linked to a specific purpose, such as requesting access to our academic content database, sending grading data to your LMS or requesting web content (i.e. a newsletter, case study, video, etc.). At any time, you can access, update, rectify or erase any personal data by logging into your account and clicking “User Info” (“Edit Account” on Gradescope) or contacting Customer Support. Please see our Privacy Policy for more detailed information about how we protect your personally identifiable information.

## Protecting your data

We endeavor to keep your personal data safe and secure at all times. Depending on the Turnitin solution used, personal data is processed either:

1) both in Europe and in the United States, in the case of most products

2) entirely within Europe, Canada, Australia, or the United States depending on the institution’s preference, except for text recognition performed on handwritten formulas, which requires some data processing within the US, in the case of the Gradescope product

In all of the cases above, we have robust technical and organizational safeguards in place to protect such personal data. Passwords are required to access your personal data, so please remember to keep your password confidential. Even with the best security systems, it is impossible to guarantee 100% protection from hackers and unauthorized third parties who capture information provided over public networks.

When a paper is submitted to any of Turnitin’s products with the exception of Gradescope, it is compared against a vast, secure proprietary database of licensed source material, including millions of periodicals, academic journals, books, and web pages. Turnitin also maintains a separate repository of student papers. Each institution (at the discretion of his or her school administrator) can determine whether or not to include student papers in the repository and whether or not to give students the option to opt out. We can remove student papers from the standard repository at the request of a school administrator.

When a teacher, professor, or other representative acting on behalf of a school or other institution uploads data to Gradescope, this may include personally identifiable information about students. We may then collect an email address and password from these students, which is combined with student information received from the teacher and/or school. We use the personal information we collect to operate, maintain, and provide the features and functionality of Gradescope, to analyze our offerings and functionality, and to communicate with our users: teachers, schools, students and website visitors. We retain user data on the Gradescope service only as long as necessary to deliver our services. Data associated with a given account is retained until the account owner or an institution, on behalf of the account owner, submits a deletion request.

## What’s most important

## 1. Compliance

Turnitin serves a global community of educators and students, whose views on data privacy may differ significantly. Our products and services, as well as our privacy policies, are regularly audited and inspected by both employees and external consultants to ensure that we meet, and exceed where possible, privacy expectations and requirements. Turnitin conducts periodic compliance reviews to verify that this Privacy Policy is accurate, comprehensive, prominently displayed, lawful, complete, implemented, and accessible. Any employee who violates this Privacy Policy will be subjected to disciplinary action.

## Model Contract Clauses

Where necessary, for data transfers outside the EEA, we utilise the Model Contractual Clauses. In each case, we put in place appropriate technical and organisational measures to protect personal data.

## Evolving Legislation

Due to the ever-changing nature of legislation around data privacy, we reserve the right to make lawful changes as needed and recommend that you periodically check this Privacy Policy to see if there have been any new developments or changes. We continually look for ways to move toward more robust protection.

## 2. Personal data

Because we provide education services, we are vocal advocates for safeguarding student data and privacy and want to make sure that parents, educators, and schools know this, which is why we took the Student Privacy Pledge, put forth by the Future of Privacy Forum (FPF) and the Software & Information Industry Association (SIIA).

## Data We Collect

When an institution's administrator or instructor creates an account with us, we ask for their personal data such as name, email, phone, and job title, so that we can correctly administer their account and provide them with the best customer service.

The type of information we request is connected to a specific purpose, namely to:

Verify your identity and connection with a specific institution or company, to determine your eligibility to use our services or mobile application "Turnitin Feedback Studio";

Download content from our website, such as demos, whitepapers, or webcasts;

Provide receipt and confirmation of successful data uploads;

Send important messages about our service, such as any changes to functionality;

Send system emails, including account setup and password retrieval information, as well as digital receipts when you submit papers to the Turnitin Database; and

Provide additional product and service support as needed.

When you use our services, the type of device you use and the version of your operating system is automatically collected. Turnitin collects information under the direction of its clients, and has no direct relationship with the individuals whose personal data it processes. Turnitin works with its clients to help them provide notice to their customers concerning the purpose for which personal data is collected.

## Putting You in Control

We always give you the choice to opt out of email communication, with the exception of system emails, such as digital receipts and password reset information. In the context of processing student papers, Turnitin has no direct relationship with the individuals whose personal data it processes. Turnitin acknowledges that you have the right to access your personal information. An individual who seeks access or would like to correct, amend, rectify or erase data, or should direct his/her query to the institution that is Turnitin's customer (the 'data controller'). If the customer requests that Turnitin erases the data, we will respond within 30 calendar days. If you are an individual user who has questions or would like to make changes to your personal data, please contact the institution through which you use our service. Upon lawful request, Turnitin will provide information about any personal data we process. At any time, customers may access, correct, change completely or anonymize the personal data that you have provided us by following these steps:

Log in to your account using your username and password;

Click the "User Info" link on the navigation bar to open your user profile and view or make changes to your personal data; OR

For Gradescope, click the 'Edit Account' link under your Account menu; and

If you have any trouble or would like for us to make changes for you, please email tiisupport@turnitin.com or, for Gradescope-related requests, help@gradescope.com. To honor a change request, we will need the exact information you want changed, as well as information sufficient for us to identify the type of communication you received from us. Our Customer Support can also provide you with information about whether we hold, or process on behalf of a third party, any of your personal data. We respond to requests within 30 calendar days.

## Exceptional Circumstances

We may disclose your personal data in order to comply with a subpoena, court order, or similar legal process or government request when we are required by law to do so. If Turnitin is involved in a merger, acquisition, or sale of all or a portion of its assets, you will be notified via email and/or a prominent notice on our website, of any change in ownership, uses of your personal data, and choices you may have regarding your personal data. We will only disclose your personal data to a third party with your prior consent.

## 3. Tracking technologies

## Cookies

Turnitin and its partners may use cookies or similar technologies to analyze trends, administer the Site, track users' movements around the Site, and gather demographic information about the user base as a whole. It does not use cookies for profiling. You can control whether or not cookies are allowed through your browser. If you choose to disable cookies, it may limit use of certain features or functions of our websites or service. To manage Flash Local Shared Objects (LSOs), which are sometimes called Flash cookies, please click here.

## Social Media Features & Widgets

Our Site includes social media features, such as the Facebook "Like" button, the "Share This" widget, or interactive mini-programs that run on our site. These features may collect your IP address, record which pages you visit on our site, and set a cookie to enable the feature to function properly. These features and widgets are sometimes hosted by a third party. Your interactions with these features are governed by the Privacy Pledge of the company providing the specific feature.

## Ads

We do not serve ads on our site. We partner with a third party to manage our advertising on other sites. Our third-party partner may use technologies such as cookies to gather information about your activities on this site in order to provide you advertising based upon your browsing activities and interests.

As is true of most websites, we gather certain information automatically and store it in log files. This information may include internet protocol (IP) addresses, browser type, internet service provider (ISP), referring/exit pages, operating system, date/time stamp, and/or clickstream data. We may combine this automatically collected log information with other information we collect about you. We do this to improve services we offer you and to improve site functionality.

## Blog

Our Site offers publicly accessible blogs. You should be aware that any information you provide in these areas may be read, collected, and used by others who access them. To request removal of your personal data from our blog or community forum, email us at tiisupport@turnitin.com. In some cases, we may not be able to remove your personal data, in which case we will let you know if we are unable to do so and why. You may also post a comment on our blog with the use of a third-party application that may require you to register to post a comment. We do not have access or control of the information posted to the blog. You will need to contact or login into the third-party application if you want the personal data that was posted to the comments section removed. To learn how the third-party application uses your information, please review their privacy policies.

## 4. Choice

We always give you the choice to opt out of email communication, with the exception of system emails, such as digital receipts and password reset information.

You have the opportunity to opt-out of receiving communications from us when we first request your personal data;

You can opt out of receiving further communications by visiting our email preferences page; and

You can modify your personal data anytime by logging in to your account, selecting "User Info," ("Edit Account" on Gradescope) and making changes as desired.

You may also contact us at tiisupport@turnitin.com and ask that we make changes on your behalf, but to honor your request, we will need the exact information you want changed, as well as information sufficient for us to identify the type of communication you received from us. Anytime you provide personal data to us, you determine whether or not we may disclose such information in a personally identifiable form to a third party or use it for purposes different from the purposes for which it was originally collected or subsequently authorized.

## 5. Transfer to third parties

Turnitin does not sell your personal data to third parties. Except in connection with the purposes for which it was originally collected, no personal data will be provided to a third party. If we transfer personal data to a third party, we will require that the third party agree to confidentiality requirements, and applicable legal requirements. We will share your personal data with third parties only in the ways that are described in this Privacy Policy. If you do not want us to share your personal data with these companies, contact us by sending an email at tiisupport@turnitin.com.

Turnitin may transfer personal data to companies that help us provide our service. These companies are authorized to use your personal information only as necessary to provide these services to us. Transfers to subsequent third parties are covered by the provisions in this policy regarding notice and choice and the service agreements with our clients. Our website includes links to other websites whose privacy practices may differ from ours. If you submit personal data to any of those sites, your information is governed by their privacy statements.

## 6. Security

We endeavor to keep your personal data safe and secure at all times. Our data is stored in the EU, USA and Canada with robust physical, digital, and procedural safeguards in place to protect your personal data, including the use of SSL encryption, redundant servers and data centers, and sophisticated perimeter security. We continuously audit for security vulnerabilities and make software patching a priority. Passwords are required to access your personal data, so please remember to keep your password confidential. Even with the tightest security systems, no one can guarantee protection from hackers and unauthorized third parties who capture information provided over public networks.

## Cyber Essentials

(certified November 2019)

Cyber Essentials accredits a company’s IT infrastructure ensuring that its firewalls, secure configurations, user access control, malware protection, and patch management are of a high enough standard to protect any data within the company. Turnitin obtained the Cyber Essentials certification at the request of several international customers. Turnitin successfully completed a third-party audit of the effectiveness of our basic security controls.

## SOC 2 Compliance

SOC2 is an audit of a company’s readiness to protect their user’s privacy and the security of their data. The company must show protections for both the data itself and the physical security of the locations it is stored. Turnitin obtained the SOC2 certification to demonstrate our commitment to security, privacy, and availability. To obtain this certification, over 160 controls aligned to the SOC2 criteria were designed for Turnitin and audited for effectiveness. Turnitin successfully satisfied 100% of the controls audited.

## 7. Data Integrity

We take every possible step to make sure that the personal data in our systems is relevant for its intended use, accurate, complete, and current. Turnitin will retain personal data we process on behalf of our clients for as long as needed to provide services to our client. We retain your information for as long as your account is active or as needed to provide you services. We will retain and use your information as necessary to comply with our legal obligations, resolve disputes, and enforce our agreements. You may stop using the services at any time. You do not need to specifically inform Turnitin when you stop using the Services. To request account deletion, please submit such a request directly to your academic institution, and an administrator will then make this request to us on your behalf. All requests from academic institutions must be made via email to tiisupport@turnitin.com for non-Gradescope accounts or help@gradescope.com for Gradescope accounts and are required to come from the email address registered to the administrator account.

The Turnitin database includes academic papers submitted by students and educators, as well as licensed source material sourced from the Internet. When a teacher wants to check a student paper for plagiarism, a coded engine compares it to other content in the database to check for matches. The software leaves all judgment about intellectual property up to the instructor. In the instance where a paper indicates a strong match to content submitted to another institution, instructors may find it necessary to request to view the matching paper. This request can either be accepted or denied by an institution. Any paper information must be passed from instructor to instructor via email, and therefore, outside of the Turnitin product.

You will at all times retain 100% ownership of your intellectual property rights. Turnitin does not ever assert or claim copyright ownership of any works submitted to or through our service. Your property is YOUR property. We do not, and will not, use your intellectual property for any purpose other than to deliver, support, and develop our services, which are designed to protect and strengthen your copyright.

## 8. Changes to this policy

We reserve the right to make changes to this Privacy Policy at any time. Please check the Privacy Policy when you use the Site to ensure that you are aware of any changes in our privacy practices. Our Privacy Policy will indicate the date it was last updated. If at any point we decide to use personal data in a manner different from that stated at the time it was collected, we will notify you via e-mail at the last email address you have provided to us. You will have a choice as to whether or not we use your information in this different manner. If you elect not to allow us to use your information in this different manner, we will continue to use such information in accordance with the Privacy Policy under which the information was collected.

## 9. Notices

Please direct all inquiries regarding the Privacy Policy either to legal@turnitin.com or Turnitin, 2101 Webster St, Suite 1800, Oakland, California 94612.

## EU DATA PROTECTION COMPLIANCE

We work with customers all over the world, and processing your personal data lawfully in order to earn your trust is our top priority. We understand that data protection is essential for good customer service. At Turnitin, our objective is to operate transparently, with accountability, and consistently with the EU and US regulatory environment so that our valued customers feel secure and in control.

Turnitin is fully committed to the following practices to protect your data:

We will never sell your data;

We will never use your data for targeted advertising/profiling;

We secure your data with strong encryption and security best practices in SOC2 certified data centers;

We respect local privacy laws and work with legal experts to stay abreast of changes;

When we collect data, we use it for a specific, stated purpose, to improve your experience and our service to you;

If we need to send any of your data to a third-party, such as a language translation service provider, we require a contractual agreement that they handle and secure your data with the same high level of protection and care that we deliver; and

We respect your right to retain ownership and control of your data, so that you can modify, update, or delete it as needed.

## Compliance Today

We currently meet the most stringent data protection laws across jurisdictions and are proactively reviewing every aspect of how we handle data and investing in operational measures to ensure that we continue to meet our customers' requirements. Today, Turnitin uses Model Contractual Clauses to meet varying, specific needs across the European Union (EU) for data privacy and protection. These are standardized contracts to certify that any data that is transferred out of the EU is adequately protected. This prevents our customers from having to request any additional authorization to use our service. We are in good standing with all standards used to ensure that data is fully protected and are able to meet very specific requirements as needed. For example, in the EU (including in Germany, Austria, and Switzerland) we abide by Directive 95/46/EC to meet data protection requirements. The steps we take to maintain the integrity and confidentiality of personal data include:

We strongly recommend that institutions provide notice to students that the Turnitin service involves data transfer to the United States (with the exception of Gradescope as used by certain Canadian, European, and Australian universities), and we recommend that consent is obtained from the student as soon as possible.

Universities are free to inspect or audit our services any time.

All student work and any associated personal data is encrypted and kept secure at all times.

Students can keep their identity secret by using a pseudonym or their student number and by submitting their work in formats that contain little if any identifying metadata.

## General Data Protection Regulation

The GDPR has legal effect in all EU Member States from 25 May 2018. The Data Protection Directive (Directive 95/46/EC) has been replaced by the GDPR. Although it is a regulation and immediately effective in all EU Member States, there are certain regulations within the GDPR that Member States will be able to legislate upon at a national level for specific reasons, therefore this policy may change accordingly from time to time.

## The Legal Basis for Processing Personal Data

Turnitin primarily relies upon Article 6(1)(e) of the GDPR for its legal basis to process such data. Pursuant to this provision of GDPR, Turnitin relies upon the official authority of the Data Controller (the institution that is Turnitin's customer) to process student data in such a way that anti-plagiarism checks may be made to satisfy the institution that the student's work is their own.

Article 6(1)(f) of the GDPR also provides Turnitin with a lawful basis for processing. This is that it is in the legitimate interests of the Data Controller to process such data at their discretion.

Consent is not the primary basis for processing upon which Turnitin relies. However, the End-User Licence Agreement which Turnitin utilises with students will continue to be in place as a matter of best practice and transparency.

## Key Aspects of the GDPR

The following are some notable aspects of the GDPR:

The GDPR applies to all personal data processed;

The GDPR makes it clear that when processing the personal data of EU nationals, data processors outside the EEA (including the US) must adhere to the GDPR and process only for lawful reasons;

The GDPR requires much more accountability when processing personal data. Privacy must be embedded into everything (services, software, systems, and processes) by design and by default;

Individuals' rights have been strengthened; and

To export data outside the EEA, EU Model Contractual Clauses will be favored, which Turnitin uses.

For more information on GDPR, visit go.turnitin.com/gdpr

## California Privacy Rights

## Notice For California Residents

California residents have certain rights with respect to their personal information, as described below. Before we may fulfill your requests, we are required by law to verify your identity in order to prevent unauthorized access to your data.

Education Platform: In the case of rights requests in relation to our education platforms, this may require us to confirm your identity with your education institution.

Website: In the case of rights requests in relation to our website, this may require us to confirm your identity by asking you to verify certain information previously provided by you, or other method as practicable.

WE DO NOT AND WILL NOT SELL YOUR PERSONAL INFORMATION IN CONNECTION WITH OUR EDUCATION PLATFORMS.

## Right to Know and Access Information:

You may access information we maintain about you using the methods provided below. If we grant your request, we will provide you with a copy of the personal information we maintain about you in the ordinary course of business. This may include what personal information we collect, use, or disclose about you. We may not fulfill some or all of your request to access as permitted by applicable law.

## Deletion of Information:

You may request that we delete your personal information. Depending on the scope of your request, we may refrain from granting your request, as permitted by applicable law. For example, we may be legally required to retain your information in our business records. You may submit a deletion request using the methods provided below.

## Authorized Agent:

California residents may use an authorized agent on their behalf to exercise a privacy right discussed above. If you are an authorized agent acting on behalf of a California resident to communicate with us or to exercise a privacy right discussed above, you must be able to demonstrate that you have the requisite authorization to act on behalf of the resident and have sufficient access to their laptop, desktop, or mobile device to exercise these rights digitally. If you are an authorized agent trying to exercise rights on behalf of a Turnitin user, please contact us at the contact information below with supporting verification information, which includes a valid Power of Attorney in the State of California, proof that you have access to the consumer’s interface, and proof of your own identity.

## To Exercise Your Rights

Education Platforms:

Turnitin education platforms are used at the discretion of the education institution customer. In addition, we are obligated under FERPA to remain under the direct control of the education institution customer with respect to our use and maintenance of student data that is part of the education record. As such, to exercise your rights in relation to your use of the Turnitin platforms, please contact your education institution. We will work with them to facilitate your request.

Website:

To exercise the rights described above, please contact us using the information below. Should you have any questions or concerns regarding your California rights or this privacy policy, you may contact us:

2101 Webster St Ste 1800 Oakland CA. 94612 USA

tiisupport@turnitin.com

+1 866 816 5046 x241

Please note that your exercise of the above rights is subject to certain exemptions to safeguard the public interest (e.g., the prevention or detection of crime) and our interests (e.g., the maintenance of legal privilege). We will try to comply with your request as soon as reasonably practicable. Requests to exercise these rights may be granted in whole, in part, or not at all, depending on the scope and nature of the request and applicable law. Where required by applicable law, we will notify you if we reject your request and notify you of any reasons we are unable to honor your request.

Non-discrimination: We shall not discriminate or otherwise penalize anyone for exercising their rights under this Privacy Policy.

## Categories of Personal Information we collect

### Education Platforms

Depending on how you use our platforms, we may collect some or all of the following:

Identifiers such as a real name, unique personal identifier, online identifier, Internet Protocol address, email address, account name, and, if you are the purchaser, your billing address

Personal information limited to your name under subdivision (e) of California Business and Professions Code Section 1798.80

Internet or other electronic network activity information regarding your interaction with our platforms.

Education information, defined as information that is not publicly available personally identifiable information as defined in the Family Educational Rights and Privacy Act (20 U.S.C. section 1232g, 34 C.F.R. Part 99).

### Website

Online identifier

Internet Protocol address

Personal information limited to your name under subdivision (e) of California Business and Professions Code Section 1798.80

Internet or other electronic network activity information related to your use of our website

Inferences drawn from your use of our website to create a profile reflecting your interests in our products.

If you choose to schedule a call with Turnitin, we will collect Identifiers such as a real name, work email, phone number.

If you choose to send us an inquiry regarding our products, we will collect your professional or employment related information, such as your job title, institution name.

## Categories of sources from which the Personal Information is collected

### Education Platforms

We collect the Personal Information directly from you or from your educational institution.

### Website

We collect the Personal Information directly from you.

## Business or commercial purpose for collecting or selling Personal Information

### Education Platforms

We collect your Personal Information to provide the services and for the following business purposes:

Performing services in accordance with our contract with the Customer and the terms of use including maintaining or servicing accounts, providing customer service, processing or fulfilling orders and transactions, verifying customer information, and processing payments.

Detecting security incidents, protecting against malicious, deceptive, fraudulent, or illegal activity, and prosecuting those responsible for that activity.

Debugging to identify and repair errors that impair existing intended functionality.

Sending you marketing communications if you have consented to receive such information.

Undertaking internal research for technological development and demonstration.

### Website

We collect your Personal Information to operate the website, respond to your requests and for the following business purposes:

Maintaining or servicing the website and providing customer service.

Detecting security incidents, protecting against malicious, deceptive, fraudulent, or illegal activity, and prosecuting those responsible for that activity.

Debugging to identify and repair errors that impair existing intended functionality.

Sending you marketing communications

## Categories of third parties with whom we share Personal Information

### Education Platforms

We do not share your Personal Information with “third parties” as the term is defined in CCPA. That is, we do not share your Personal Information with individuals or organizations to use for their own commercial purposes.

### Website

We may share your Personal Information – specifically your IP address, device ID or similar online identifier, with certain third parties, such as advertising networks. This information is used to personalize advertising you see after you’ve visited our website.

## Specific pieces of Personal Information we have collected

### Education Platforms

The Customer’s primary account representative: first and last name, email address and institution name and billing address.

Teachers: first and last name, school name, email address, IP Address, device ID.

Students: first and last name, school name, email address, student identification number (optional), IP Address, device ID

### Website

Internet Protocol address, device ID

Internet or other electronic network activity information, including, but not limited to, browsing history, search history, and information regarding a consumer’s interaction with our website.

If you choose to provide it: first and last name, work email, phone number

## Usage Policy

### Introduction

As an education technology service provider, we rely on data to provide you with amazing solutions that improve learning and teaching, and you rely on us to protect that data. We take that responsibility seriously and pledge to never sell or share personal data and use it only for the purpose for which you gave permission. We vigorously guard all data in our care and ensure that you are in total control of your data. Our Privacy Policy details how we protect your data and privacy.

This Usage Policy outlines the legal terms and conditions governing use of this website and any other site provided by Turnitin, LLC (“Turnitin”). As defined in our Privacy Policy, the “Site” refers to the collective sites run by Turnitin.

** By using our site(s) and related services, you agree to be bound by law to these terms and conditions. If you do not agree, please leave this site. **

These terms and conditions are in addition to any other agreement you may have with Turnitin, including any agreement governing your use or your organization's use of Turnitin products or services (e.g. the Turnitin Registration Agreement).

If there is a conflict between these terms and conditions and any other separate agreement, the separate agreement shall govern, except that in relation to personal data issues the GDPR section of this document shall at all times apply.

At a high level, we're asking you to agree to please use our site(s) and services for their intended purpose and do not violate any laws or allow anyone else to use our sites for illegal activity (i.e. fraud, spam, defamation, distributing viruses, or any other socially unacceptable conduct).

Thank you!

## The Legal Agreement

By agreeing to these terms, Turnitin grants you a nonexclusive license to use the Site for your personal, non-commercial use. You agree to NOT use the Site for any purpose that is unlawful or prohibited by these terms and conditions.

You may not reverse engineer, deconstruct, disassemble or decompile any software or technology underlying the Site or provided through the Site, except to the extent permitted by applicable law.

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You may not frame or utilize framing techniques to surround or enclose any portion of the Site without Turnitin's express written consent.

If you breach any of these terms and conditions, you will no longer be authorized to use the Site.

We suggest that you keep a copy of these terms and conditions for your future reference. Please note that we may revise these terms and conditions at any time, and it is your responsibility to periodically read through these Terms and Conditions and know that when you use the Site, you are bound by the most current Terms and Conditions.

For your convenience, we have made our policies and terms available on our homepage and at every point where we request your personal information.

## Copyright Ownership

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If you are a student submitting work for review in connection with a class you are taking, know that you retain copyright ownership; the content of your submission is used solely for the purpose of performing educational services.

Please note that we vigorously protect all personally identifiable information and any student work submitted through the Site and/or our service. (Read our Privacy Policy for details.) Excluding that personal data, any communications or material of any kind that you e-mail, post, or transmit through the Site, such as questions, comments, suggestions, and other data, will be treated as non-confidential and non-proprietary. We'll refer to this as your "Communications," which Turnitin may use, royalty-free, for business purposes, including, but not limited to, the development and use of products.

Turnitin may (but is not obligated to) monitor areas of the Site for user Communications, such as chat rooms, bulletin boards, and other user forums. Turnitin will have no liability, however, related to the content of any such Communications. Turnitin does retain the right to remove, at its discretion, Communications that include any material deemed abusive, defamatory, obscene, or otherwise inappropriate.

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## Jurisdiction

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All other trademarks, service marks, and logos used on the Site belong to their respective owners. Turnitin does not make any claims to the marks of others that might appear on the Site.

## Your License to Us

Unless otherwise indicated in this Site, including our Privacy Policy or in connection with one of our services, any communications or material of any kind that you e-mail, post, or transmit through the Site (excluding personally identifiable information of students, any work submitted to the Site, and assessment material and feedback associated with that work), including, questions, comments, suggestions, and other data and information (your "Communications") will be treated as non-confidential and non-proprietary. You grant Turnitin a non-exclusive, royalty-free, perpetual, worldwide, irrevocable license to reproduce, transmit, display, disclose, and otherwise use your Communications on the Site or elsewhere for our business purposes. We are free to use any ideas, concepts, techniques, know-how in your Communications for any purpose, including, but not limited to, the development and use of products and services based on the Communications.

## Your Communications

Turnitin may, but is not obligated to, monitor or review any areas of the Site where user Communications may be made available, including, but not limited to, chat rooms, bulletin boards, and other user forums. Turnitin, however, will have no liability related to the content of any such Communications, whether or not arising under the laws of copyright, defamation, privacy, obscenity, or otherwise. Turnitin retains the right to remove, in its sole discretion, Communications that include any material deemed abusive, defamatory, obscene, or otherwise inappropriate.

## Acceptable Use Policy

So that everyone can enjoy the Site, Turnitin reserves the right to suspend anyone's access to the Site who violates this policy and the following provisions. Please do NOT:

restrict any other user's enjoyment of the Site.

engage in unlawful, threatening, abusive, libellous, defamatory, pornographic, profane, or otherwise offensive actions.

carry out or encourage criminal conduct, give rise to civil liability, or otherwise violate any law.

violate or infringe upon the rights of any third party, including, without limitation, patent, copyright, trademark, privacy, or any other proprietary right.

distribute anything that contains a virus or other harmful component.

distribute anything that contains false or misleading indications of origin or statements of fact. Turnitin reserves the right to disclose information as necessary to satisfy any legal requirement, including regulations, government requests, court orders, or subpoenas. Turnitin also reserves the right to edit or remove any information, in whole or in part, that it deems objectionable, disruptive to the Site, or in violation of these terms. In other words: please be respectful of others. Thank you.

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The Site contains hyperlinks to third-party websites. That does not mean that Turnitin endorses or recommends that site or that third party's products or resources, nor does it indicate affiliation with or sponsorship of that third party. Turnitin is not responsible for any software, data, or other information available from any third-party site. When you visit a third-party site, even if it's linked from Turnitin, you are responsible for complying with that third party's terms and conditions of use. You acknowledge that Turnitin bears no liability for any damage or loss from your access to, use of, or reliance on any third-party site, software, data, or other information.

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Although Turnitin makes every attempt to ensure the integrity and accuracy of the Site, it makes no guarantees as to the correctness of the Site. It is possible the Site may include typographical errors, inaccuracies, or other errors, and that unauthorized additions, deletions, and alterations could be made to the Site by third parties. If you find any error, please notify Turnitin so that it can be corrected. Information contained on the Site may be changed or updated without notice.

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## Indemnification

You agree to indemnify and defend Turnitin from any claim (including attorney fees and costs) arising from your (a) use of the Site, (b) violation of any third-party right, or (c) breach of any of these Terms and Conditions. You agree to cooperate as reasonably required in the defence of any claim. Turnitin reserves the right, at its own expense, to assume the exclusive defence and control of any matter otherwise subject to indemnification under this section and, in any event, you agree not to settle any such matter without Turnitin's prior written consent.

## Claims

In accordance with the Digital Millennium Copyright Act (17 U.S.C. 512), Turnitin, LLC is registered with the United States Copyright Office as a Service Provider. Any notifications of claimed copyright infringement must be sent to our Copyright Agent:

Chief Financial Officer

Turnitin, LLC

2101 Webster St

Suite 1800

Oakland, California 94612

Phone: +1 510-764-7600

Email: legal@turnitin.com

Turnitin respects and works hard to protect the intellectual property of others, and we ask our users to do the same. If you believe that your work has been copied in a way that constitutes copyright infringement, please provide Turnitin's Copyright Agent the following information:

An electronic or physical signature of the person authorized to act on behalf of the owner of the copyright interest;

A description of the copyrighted work that you claim has been infringed;

A description of where the material that you claim is infringing is located on the Site;

Your address, telephone number, and email address;

A statement by you that you have a good faith belief that the disputed use is not authorized by the copyright owner, its agent, or the law;

A statement by you, made under penalty of perjury, that the above information in your Notice is accurate and that you are the copyright owner or authorized to act on the copyright owner's behalf.

## General

Except as provided below, these terms and conditions constitute the entire agreement between Turnitin and you (pertaining to this Site and Turnitin services).

## Details

The parties agree that any and all disputes, claims, or controversies arising out of or relating to these terms and conditions that are not resolved by mutual agreement shall be submitted to final and binding arbitration, pursuant to the United States Arbitration Act, 9 U.S.C. Sec. 1 et seq. The arbitration shall take place in Alameda County, California, unless the parties otherwise agree in writing. Within fourteen (14) days thereafter, the arbitrator shall arrive at a final decision, which shall be reduced to writing, signed by the arbitrator, and mailed to each of the parties and their legal counsel. All decisions of the arbitrator shall be final, binding and conclusive on the parties and shall constitute the only method of resolving disputes or matters subject to arbitration pursuant to this the United States Arbitration Act, 9 U.S.C. Sec. 1 et seq. The arbitration shall take place in Alameda County, California, unless the parties otherwise agree in writing. Within fourteen (14) days thereafter, the arbitrator shall arrive at a final decision, which shall be reduced to writing, signed by the arbitrator, and mailed to each of the parties and their legal counsel. All decisions of the arbitrator shall be final, binding and conclusive on the parties and shall constitute the only method of resolving disputes or matters subject to arbitration pursuant to this Agreement; provided, however, nothing shall prohibit the parties from seeking injunctive relief and/or other equitable remedies in a court of competent jurisdiction. The arbitrator or a court of appropriate jurisdiction may issue a writ of execution to enforce the arbitrator's judgment. Judgment may be entered upon such a decision in accordance with applicable law in any court having jurisdiction thereof.

## General Data Protection Regulation (GDPR)

This section applies where the GDPR applies to Turnitin's processing of the personal data of data subjects in the EU. References to 'Articles' or 'Chapters' in this section are to the corresponding Articles or Chapters in the GDPR and italicised terms correspond to the definitions in the GDPR. This section is binding on Turnitin. The controller hereby grants to Turnitin a general written authorisation to engage other processors in the provision of the services. Turnitin shall inform the controller of any intended changes to the processors allowing the controller the right to object to such changes.

The following information applies:

Subject matter of the processing: Processing of submissions (student or academic work or proposed published texts) and their associated personal data pursuant to the purpose described below.

Duration of the processing: Storage of the content of submissions is indefinite unless instructed otherwise by the controller.

Nature of the processing: Collection, storage, retrieval, use (including, but not limited to, refining the algorithms behind AI-based features such as text matching, handwriting recognition, and automated answer grouping).

Purpose of the processing: To: 1. allow academic institutions / publishers to detect potential plagiarism in the academic / publishing sectors; 2. streamline grading, letting teachers / instructors provide faster and better feedback to students while producing detailed assignment and question analytics

Type of personal data: First name, surname, school name, email address (academic), student ID number (if provided by controller), billing information, phone number, account name and password, and content.

Categories of data subjects: Students, account administrators, teachers / instructors, authors.

Obligations of the controller: The controller is obliged to comply with its general obligations under the GDPR, in particular to process the personal data it collects in accordance with Articles 5 and 6, and to comply with Articles 13, 14, 24, 30 and 32, and to comply with any actionable rights of the data subject.

Rights of the controller: The controller may exercise its rights against the processor under the GDPR, in particular under Articles 28 and 32.

Turnitin, as processor, confirms that it:

(a) processes the personal data only on documented instructions from the controller, including with regard to transfers of personal data to a third country or an international organisation, unless required to do so by Union or Member State law to which the processor is subject; in such a case, the processor shall inform the controller of that legal requirement before processing, unless that law prohibits such information on important grounds of public interest;

(b) ensures that persons authorised to process the personal data have committed themselves to confidentiality or are under an appropriate statutory obligation of confidentiality;

(c) takes all measures required pursuant to Article 32;

(d) respects the conditions referred to in paragraphs 2 and 4 of Article 28 for engaging another processor and shall, in the event that it engages another processor in the delivery of the service, ensure that the processor adheres to the same data protection obligations in accordance with paragraph 3 of Article 28;

(e) taking into account the nature of the processing, assists the controller by appropriate technical and organisational measures, insofar as this is possible, for the fulfilment of the controller's obligation to respond to requests for exercising the data subject's rights laid down in Chapter III;

(f) assists the controller in ensuring compliance with the obligations pursuant to Articles 32 to 36 taking into account the nature of processing and the information available to the processor;

(g) at the request of the controller, deletes or returns all the personal data to the controller after the end of the provision of services relating to processing, and deletes existing copies unless Union or Member State law requires storage of the personal data; and

(h) makes available to the controller all information necessary to demonstrate compliance with the obligations laid down in Article 28 and allow for and contribute to audits, including inspections, conducted by the controller or another auditor mandated by the controller.

If you have questions, please email legal@turnitin.com.

## EU Data Protection and GDPR Compliance

We work with customers all over the world, and your trust is our top priority. We understand that data protection is essential for good customer service. At Turnitin, LLC, our objective is to operate transparently and consistently with the EU regulatory environment so that you, our valued customers, feel secure and in control.

Turnitin, LLC, which includes iThenticate and the Gradescope service, is fully committed to the following practices to protect your data:

We will never sell your data.

We will never use your data for targeted advertising.

We secure your data with strong encryption and security best practices.

We respect local privacy laws and work with legal experts to stay abreast of changes.

When we collect data, we use it for a specific, stated purpose, to improve your experience and our service to you.

If we need to send any of your data to a third party, such as a language translation service provider, we require a contractual agreement that they handle and secure your data with the same high level of protection and care that we deliver.

We respect your right to retain ownership and control of your data, so that you can modify, update, or delete it as needed.

## Compliance today

We currently meet the most stringent data protection laws across jurisdictions and are proactively reviewing every aspect of how we handle data and investing in operational measures to ensure that we continue to meet our customers' requirements as data protection rules are reformed.

Today, Turnitin uses Model Clauses to meet varying, specific needs across the European Union (EU) for data privacy and protection. These are standardized contracts to certify that any data that is transferred out of the EU is duly protected. This prevents our customers from having to request any additional authorization to use our service.

We are in good standing with all standards used to ensure that data is fully protected and are able to meet very specific requirements as needed. The steps we take to maintain the integrity and confidentiality of personal data include:

We strongly recommend that institutions provide notice to students that the Turnitin service involves data transfer to the United States (with the exception of Gradescope as used by certain Canadian universities), and we recommend that consent is obtained from the student as soon as possible.

Universities are free to inspect or audit our services any time.

All student work and any associated personal information is encrypted and kept secure at all times.

Students can keep their identity secret by using a pseudonym and by submitting papers in formats that contain little if any identifying metadata.

## Upcoming changes

The 1995 laws that have been governing how personal data is protected in the EU were developed before smartphones and social media dominated our lives. For the past several years, negotiations have been underway to unify and simplify the laws and guidelines used to determine what obligations companies have to protect data crossing borders in the EU.

## EU data protection timeline

1995: The Data Protection Directive creates the framework for personal data protection laws in each of the EU Member States.

2000: Safe Harbor decision to accommodate data transfers outside EU.

2012: The European Commission proposes a draft of the General Data Protection Regulation (GDPR).

2014: The European Parliament votes on amended GDPR draft.

2015: The European Council agrees on the final terms of GDPR. Safe Harbor is declared invalid.

2016: Final GDPR version published. EU-US Privacy Shield becomes the new mechanism for transatlantic data transfers.

2018: GDPR regulations take effect, repealing 95/46/EC.

2020: The California Consumer Privacy Act (CCPA) goes into force.

Turnitin and GDPR

## Copyright Protection

Turnitin agrees that students should own the copyright to their original work. A common misconception is that students relinquish their ownership rights when they submit work to Turnitin. This simply isn't true!

Students who submit work to Turnitin retain the copyright to the work they created. For Turnitin services other than Gradescope, a copy of submitted papers is retained in a Turnitin database archive to be compared with future submissions - a practice that helps protect and strengthen copyright ownership. Student work that is submitted to Gradescope isn't currently retained in the Turnitin source database, but this will change in the future with additional product integration. A U.S. District Court judge ruled that archiving student papers to assess the originality of newly-submitted papers constitutes a fair use under the U.S. Copyright Act, provides "a substantial public benefit" and helps protect the papers from being exploited by others. Read the summary judgement.

The summary judgment was unanimously affirmed by a U.S. Court of Appeals. Read the published decision.

## Legal FAQs

## How does Turnitin protect my privacy?

Turnitin is committed to protecting the privacy and security of our users and their information. We maintain extremely high levels of privacy and security through the use of SSL encryption, redundant servers, sophisticated firewalls, multiple data centers, and privacy and security audits. With a security system that has never been breached and a student privacy pledge of the highest standards, instructors and students can use Turnitin with an unsurpassed level of confidence.

## Who owns student work once it is submitted to Turnitin?

Students retain the copyright of work submitted to the Turnitin service, which includes the Gradescope service. The Turnitin user agreement entitles Turnitin to use the works as part of the plagiarism prevention system under the principles of fair use. Turnitin's use of student papers under fair use was settled in a United States District Court of Law in 2007 and affirmed upon appeal in 2009.

Read the 2007 summary judgement

Read the 2009 published decision

## Does Turnitin archive student work?

Turnitin archives student papers by default only for the purposes of textual comparison. Institutions may choose to not have their papers archived in the service.

The fair use defense codified in Section 107 of the Copyright Act has been recognized as an "equitable rule of reason." In considering whether a use is a fair use, courts often analyze whether the use is beneficial to society as a whole (as part of a determination of whether a use is transformative) and whether the user has "clean hands." The District Court and Fourth Circuit both held that the archiving of student works in the educational context is a fair use. In so holding, the courts did not find that Turnitin's use of student works was in any respect unethical.

## How does Turnitin comply with privacy regulations of different countries?

As a US company with high standards for security and privacy, Turnitin is designed to comply with many of the data protection requirements of other countries, including informed consent, access rights of submitting students, and technical and organizational measures to maintain the integrity and confidentiality of personal data.

## Am I bound to the Turnitin click-through agreement? What if I'm a minor?

Yes. The United States District Court for the Eastern District of Virginia found that the online click-through agreement on the Turnitin site is an enforceable agreement, even against minors. Parental consent or the consent of a guardian is required for a minor to set up an account with Turnitin and the agreement is therefore binding.

## Can a teacher compel me to submit my work to Turnitin if I attend private school? Public school?

Yes in both cases.

If you attend a private school you have agreed to abide by the school's policies.

With respect to public school, as the United States District Court for the Eastern District of Virginia has recognized in rejecting four students' claim that they were improperly compelled to submit their papers to Turnitin or face a failing grade, "Schools have a right to decide how to monitor and address plagiarism in their schools and may employ companies like Turnitin to help do so."

## Does Turnitin share information with third-party services?

Turnitin integrates with third-party services such as the Educational Testing Service and Language Weaver where student information may be shared in order to deliver a part of these services. No personally identifiable information such as name, email or school is sent by Turnitin to third-party services for purposes other than the provision of the Turnitin services.

## Does Turnitin comply with FERPA (Family Educational Rights and Privacy Act)?

Yes. The Turnitin service is compliant with and helps institutions comply with FERPA, including: Turnitin expects and suggests that institutions comply with FERPA's notice requirements regarding the use and disclosure of directory and non-directory education records so that students and parents are aware that the school may engage services like Turnitin.

Institutions are free to inspect or audit our services to assure themselves that all information is used only for the purposes of assisting instructors.

Data is kept secure at all times and are only used for purposes of assisting the instructor in assessing the assignment. Users may submit their paper using a pseudonym and in formats that contain little, if any, identifying metadata. This reduces our chance of collecting and processing personal data.

## Does Turnitin comply with COPPA (Child Online Privacy Protection Act)?

Under the Children's Online Privacy Protection Act ("COPPA"), consistent with the position of the Federal Trade Commission (FTC), we rely on our education institution customers to obtain the necessary parental consents prior to collecting only the minimally required personal information from students under age 13. As with all the students we serve, any such information is used only for providing the services to the educational institutions. We comply with all COPPA requirements, and partner with our education institution customers to ensure that parents are always able to exercise their rights under all applicable laws and regulations.

## Who can I contact at Turnitin if I have privacy concerns?

We are always ready to answer any question or concerns you may have. Please write to us at legal@turnitin.com.

This privacy policy was last modified on March 7, 2023.

# 05 | Website Privacy

https://www.turnitin.com/privacy-policy-website/

Webpage text snapshot | Retrieved 10 October 2026

## Turnitin Website Privacy Policy

Last Updated: 26 March 2025

Note for California Residents: This Privacy Policy and the related Cookie Notice describes how we process your Personal Information and your rights and choices over our processing. In addition, the Notice for California and Other US State Residents section referenced below, contains specific details related to your rights under California law, including your right to opt out of “sales” of Personal Information.

This Privacy Policy applies to the Turnitin, LLC (“Turnitin,” “we,” “us”) websites (collectively, “Websites”). It does not apply to affiliate or subsidiary websites or our education products, which are governed by the policy available here.

This Privacy Policy describes how we may collect, use, and disclose Personal Information information collected on the Websites. Personal Information is information that identifies, describes, or relates to an identified or identifiable individual, or information that is reasonably capable of being associated with, or could reasonably be linked, directly or indirectly, with a particular consumer or household (“Personal Information”) from visitors to our Websites (“you,” “your”). It also describes your choices regarding use, access, and changes to your Personal Information.

By accessing or using Turnitin Websites, you acknowledge that you have read and understood this Privacy Policy. If you do not agree with this Privacy Policy, please do not access or use the Websites.

In addition to reviewing this Privacy Policy, please also review our Website Terms of Use because it and all its terms and conditions are an agreement between you and us.

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## Personal Information We Collect

When you visit our Websites, we may collect certain personal information from you. For example, if you request information about our education products or ask a question of our customer support team, we will ask you to provide certain Personal Information so that we may respond to your request. This may include information such as your first and last name, physical address, work email address, telephone number, job role, institution name, institution type, and country. If you choose to join our Educator Network, we will also ask you for a password to help secure your account.

Children's Privacy

Our Websites are intended for a general audience, and not for individuals under the age of 13 or otherwise under the age of consent in each region in which we operate (“children,” “child”). We do not knowingly collect Personal Information from children. Should we learn that we have inadvertently collected Personal Information from a child, we will take steps to promptly delete it.

## Usage Information and Cookies

When you access our Websites, our servers automatically collect the Internet Protocol (“IP”) address associated with your computer. We may also collect additional information such as browser type and version, the operating system of your device and language, country, as well as areas in the Websites you visit most frequently and when. If you log into your Educator Network account, we also collect the login timestamp. We use this information to help us administer the Websites, remember your preferences, and diagnose technical problems. We also analyze the information for aggregate trends about how our Websites are used and to help improve our Websites.

To collect this information, we use the following technologies:

Cookies. A cookie is a small data file sent by a website and stored on the computer or device at the request of that website. Cookies store information related to a user's browser to enable us to recognize the browser on return visits to our Websites and to remember your preferences.

Pixel tags. A pixel tag (also referred to as a “clear gif” or “web beacon”) allows us to track the online usage patterns of the Websites and to understand which links are clicked. When we send you emails that you have opted into, pixel tags also allow us to track which emails are opened. This information is used to help us improve the Websites.

HTML5 Storage. HTML5 storage or local storage allows us to distinguish your device from others and to remember information that might be important for the functioning of the Websites, such as to remember your location preference or your logged in state. Typically, HTML5 storage is only deleted if all Internet history, cache, and cookies are deleted. Check your browser controls for information on how to delete your HTML5 storage.

Third Party Cookies and Tracking

We use third-party service providers to help us collect and understand how our Websites are used and to personalize the content you see here and the advertising you see elsewhere on the Internet. Most browsers can be set to detect browser cookies and to let a user reject them, but refusing cookies may affect certain features of our Websites that are provided for your convenience.

A list of companies that use cookies on our Websites, the services they provide, and information on how you may opt out of certain cookies is included in our Cookie Notice. To make choices about cookies placed by us or our third parties on our Websites, you may do so by visiting our Cookies Settings in the footer of the website, which may also appear, in certain jurisdictions, as “Do Not Sell My Personal Information”. If you do not/no longer want to have cookies placed on your browser by third parties, many of them also offer ways to opt out. To learn more about browser cookies, including how to manage or delete them, refer to the “Tools,” “Help,” or similar section of your web browser.

We do not serve targeted advertising on our Websites; however, when you use the Internet, we and our third parties including ad networks, web analytics companies, and social networking platforms may use tracking technologies such as those described above, to collect information about your online activities over time and across our and other websites. We and they may use this information to measure the effectiveness of our advertising and to target advertisements for products and services that may interest you.

This information may be used to provide advertisements for products and services that may interest you, and those companies may use cookies, clear GIFs and other tracking technologies.

Currently, our websites do not respond to “do not track” (DNT) signals transmitted by web browsers. For more information about third-party advertisers and how to prevent them from using your information, visit the NAI’s consumer website at https://www.networkadvertising.org/choices, https://www.aboutads.info/choices/, or https://www.youronlinechoices.com/uk/. If you do want to opt out of using these tools, you need to opt out separately for each of your devices and for each web browser (such as Chrome, Edge Firefox, Safari or others) that you use on each device.

Note that DNT is different than the Global Privacy Control (GPC), which we do respond to in certain applicable territories. To find out more about GPC, please visit https://globalprivacycontrol.org/.

## How We Use and Disclose Your Personal Information

We do not access or disclose your Personal Information except as noted at the time that we request it, when you choose to share your information in our Educator Network, or as listed below.

To administer our Websites: to maintain and administer our Websites and the Educator Network accounts, to ensure service quality, and to protect the security of our Websites, including via support, services and security provided by our third party providers.

To communicate with you: including to respond to your requests, resolve a support issue, notify you about changes to the Websites, and to otherwise communicate with you and solicit feedback on your product experience.

To generate and manage log-in credentials: to create the Educator Network account, provide login credentials, and authenticate members of the Educator Network.

In the event of a reorganization, merger, sale, assignment, bankruptcy, or similar business change: we may need to transfer your Personal Information to that re-organized entity or new owner after the sale or reorganization for them to use in accordance with this Privacy Policy.

Our legal basis for these practices, where required by applicable law, is the fulfillment of our legitimate interests as processing this Personal Information is necessary for us to provide you with access to our Websites, to communicate with you about issues related to the Websites, and to change or operate our business. These activities are reasonably expected by you and do not unduly and negatively affect your privacy rights, and enable us to perform our contracted-for obligations and provide you with access to our Services.

In relation to a known or suspected violation of our terms of use, fraud prevention or other unlawful use: including to share Personal Information with entities assisting us in investigation and as may be required by applicable law.

In connection with legal or regulatory obligations: We may use and disclose your Personal Information as necessary to protect our rights or the rights and safety of our users, or as necessary in the event of a court order, regulatory inquiry or other lawful request. Provided, however, that unless legally prohibited, we will direct any such request to you or notify you before responding unless to do so would prejudice the prevention or detection of a crime.

Our legal bases for these practices, where required by applicable law, are to fulfill our legal obligations such as to allow us to ensure the legality of our Websites; and legitimate interests, because processing this Personal Information is necessary to the provision of our Services, and to protect our legal rights, these activities are reasonably expected by you and these activities do not unduly and negatively affect your privacy rights.

To provide you with marketing materials: to provide you with updates, and offers about our products. At any time, you may unsubscribe or opt-out of further communication on any electronic marketing communication by using the link labeled “unsubscribe” available in each email communication or by contacting us at tiisupport@turnitin.com.

Our legal basis for these practices, where required by applicable law, is your consent where such consent is required.

## How You May Modify Your Information

If you would like to review, correct, update or request that we delete Personal Information you have provided to us, please contact us at tiisupport@turnitin.com and specify what you would like to review, correct, update or have deleted.

Third Parties

We may engage with third parties to facilitate our delivery of our Websites and to provide certain features on our behalf, such as data hosting, analytics, content delivery, maintenance, email and marketing management, security and similar

functions. These third parties may require a limited amount of information, including Personal Information, in order to deliver their services.

Links

Our Websites contain links to third party websites, including social networking websites. The fact that we link to a website is not an endorsement of or representation of an affiliation with that website. We do not control third party websites or their privacy practices. These other websites may place their own cookies or other files on your computer, collect data or solicit personal information from you. Other sites follow different rules regarding the use or disclosure of the personal information you submit to them. We encourage you to read the privacy policies or statements of the other websites you visit.

Turnitin Educator Network

To the extent an “Educator Network” section appears on the Websites, you may read, comment and share blog posts within such section. Any comments you post in this area may be read, collected and used by others. You may also log onto third party social networking websites via social network sharing widgets to share, comment or recommend blog posts. The social network sharing widgets may provide information to their associated social networks or third-parties about your interactions with our web pages , even if you do not click on or otherwise interact with the plug-in or widget. This Information is transmitted from your browser and may include an identifier assigned by the social network or third party and may include information about your browser type, operating system, device type, IP address, and the URL of the web page where the widget appears. If you use social network tools or visit social networking sites, you should read their privacy policies to learn what information they collect, use, and share.

Security

We use physical, administrative, and technical safeguards to help protect the confidentiality, integrity and availability of your Personal Information. We host Personal Information in cloud-based environments that use firewalls, encryption and other industry-standard technologies in an effort to prevent interference or access from outside intruders. The Internet, however, is not perfectly secure and we are not responsible for security breaches not reasonably within our control.

Data Retention

We retain Personal Information for as long as is necessary to provide you with access to our Websites or as long as is permissible under applicable law, including as necessary to comply with our legal obligations, resolve disputes, enforce our agreements, comply with applicable industry standards, and protect the security of our Websites.

## Opt-Out Policy

We may send you emails with information about our products that we believe may be of interest. You may opt out of receiving these email messages from us by clicking on the “unsubscribe” link found at the bottom of every email that we send or by contacting us at tiisupport@turnitin.com.

We do not send email messages on behalf of third parties.

## Notice For California and Other US State Residents

Depending on the jurisdiction in which you reside, including if you are a consumer in California or other US states, you may have certain rights with respect to your Personal Information, as described below. We are required by law to verify your identity when you make certain requests in order to prevent unauthorized access to your data, as described below.

Right to Know and Access Personal Information: You have the right to request access to the Personal Information we maintain about you in the ordinary course of business. This may include Personal Information we collect, use, or disclose about you.

Right of Correction: You have the right to correct inaccuracies in the Personal Information we maintain about you.

Right to Delete: You have the right to request that we delete your Personal Information

Right to Opt Out of “Sale” or “Sharing” of Personal Information: You have the right to opt out of “sales” of personal information or “sharing” of personal information for cross- contextual behavioral advertising purposes (as these terms are defined under applicable law), which for our Websites means transfer of your Personal Information to certain third parties for their or for others’ commercial purposes, including advertising purposes. You may opt out of this practice by

clicking on the “Do Not Sell My Personal Information” link available on the footer of our Websites and follow the instructions.

In the case of all such requests, we may not fulfill all or part of the request as permitted or required by applicable law. For example, if you request that we delete your Personal Information, there may be certain records we are legally required to retain.

Verification

In the case of requests to know, correct, and delete in relation to our Websites, we must take reasonable steps to verify your identity before fulfilling your requests. For example, we may seek to establish your identity to a reasonable or a reasonably high degree of certainty by matching information that you submit alongside your request with information that we have in our records. We may ask you or your authorized agent for supplemental information as needed to establish your identity. Authorized agents may also be required to provide a copy of the consumer’s signed permission authorizing the agent to submit requests on the consumer’s behalf under applicable local law.

To Exercise Your Rights

To exercise the rights described above, please go here or contact us using the information below. Should you have any questions or concerns regarding your privacy rights or this privacy policy, you may contact us using the contact information below.

1920 Broadway, Suite 205, Oakland CA. 94612 USA

tiisupport@turnitin.com

+1 866 816 5046 x241

Please note that your exercise of the above rights is subject to certain exemptions to safeguard the public interest (e.g., the prevention or detection of crime) and our interests (e.g., the maintenance of legal privilege). We will try to comply with your request as soon as reasonably practicable. Requests to exercise these rights may be granted in whole, in part, or not at all, depending on the scope and nature of the request and applicable law. Where required by applicable law, we will notify you if we reject your request and notify you of any reasons we are unable to honor your request.

Non-discrimination

We shall not discriminate or otherwise penalize anyone for exercising their rights under this Privacy Policy.

The chart below explains our Personal Information collection and sharing practices over the past 12 months.

Categories of Personal Information we may collect | • Identifiers such as your first and last name, work email address, institution type, and country, which is considered Personal information under subdivision (e) of California Business and Professions Code Section 1798.80. |

| • Internet or other electronic network activity information related to your use of our Websites including your Internet Protocol address. |

| • Professional or employment-related information, including your job title, institution name, and state. |

| • If you choose to sign up to receive resource or newsletter updates, we will collect your email address. |

| We do not collect Sensitive Personal Information as it is defined under applicable law. |

Categories of sources from which the Personal Information is collected | We collect the Personal Information directly from you during your interaction with our Services including during the time you spend on the Websites. |

Business or commercial purpose for collecting, “selling,” or sharing Personal Information | We collect your Personal Information to operate the Websites, respond to your requests and for the following business purposes: |

| • Maintaining or servicing the Websites and providing customer service. |

| • Detecting security incidents, protecting against malicious, deceptive, fraudulent, or illegal activity, and prosecuting those responsible for that activity. |

| • Debugging to identify and repair errors that impair existing intended functionality. |

| • Sending you marketing communications. |

| • Inferences drawn from your use of our Websites are used by us and third parties to support our marketing and remarketing efforts, and by third parties for their or others commercial interests, including to enable interest-based advertising. |

Categories of third parties with whom we share or “sell” your Personal Information | • We may share your Personal Information – specifically your IP address, device ID or similar online identifier, with certain third parties, such as social networks and advertising networks. This information may be used to inform the advertising you see after you’ve visited our Websites, which may constitute the “sale” of your Personal Information (as defined under applicable law.) |

| • We may also share your Personal Information with our parent, subsidiaries, affiliates and other related entities, such as those listed at https://www.advance.com/, and our advisors, including lawyers, consultants, accountants, and others for our lawful business purposes. |

Specific pieces of Personal Information we have collected in the past 12 months. | • Internet Protocol address, device ID |

| • Internet or other electronic network activity information, including, but not limited to, browsing history, search history, and information regarding a consumer’s interaction with our website. |

| • First and last name, work email address, institution type, company name, country and state of residence, job role/title, phone number. |

| • Any other information you choose to provide. |

California “Shine the Light” Law

If you are a resident of California, you may request certain information regarding our disclosure of Personal Information (if any) for marketing purposes. To make such a request, please contact us at: Turnitin, LLC, Attn: Legal Department 1920 Broadway, Suite 205, Oakland CA. 94612 USA

## Additional Information for Users from the European Economic Area (EEA), Switzerland, and the United Kingdom (UK)

If you are located outside of the United States, please be aware that your Personal Information will be transferred to, processed and stored in the United States and Canada.

When you access our Websites, we function as a “data controller” under the General Data Protection Regulation (“GDPR”). In some cases, we will ask for your consent so that we may process your personal information. In other circumstances, we may rely on a different lawful basis, as explained in the section, “How we Use and Disclose Your Personal Information.”

By submitting your Personal Information, you acknowledge that we may transfer, process and store your information in this way. Wherever the information is, it will be treated securely and in accordance with this Privacy Policy and applicable privacy laws of the United States. These laws may be different from the privacy laws in your country. However, this does not change our commitments to safeguard your privacy and we will comply with all applicable laws relating to the cross-border disclosure of your Personal Information. Where required, we will implement Standard Contractual Clauses with our third parties or rely on such other transfer mechanisms to ensure that the transfer of your Personal Information outside of your country is lawful. You may request details of the transfer mechanisms that we rely on to transfer personal information outside of your country by emailing us at tiisupport@turnitin.com.

## EU-US Data Privacy Framework (DPF) Certification (including the UK Extension to the DPF & the Swiss-US DPF)

Turnitin and its group company, ExamSoft Worldwide LLC, comply with the EU-US Data Privacy Framework ("EU-US DPF"), the UK Extension to the EU-U.S. DPF, and the Swiss-U.S. Data Privacy Framework (Swiss-US DPF) (collectively, the "Frameworks") as set forth by the U.S. Department of Commerce. Turnitin has certified to the U.S. Department of Commerce that it adheres to the EU-U.S. Data Privacy Framework Principles ("EU-US DPF Principles") with regard to the processing of Personal Information received from the European Union in reliance on the EU-US DPF and from the United Kingdom (and Gibraltar) in reliance on the UK Extension to the EU-US DPF. Turnitin has certified to the U.S. Department of Commerce that it adheres to the Swiss-US Data Privacy Framework Principles ("Swiss-US DPF Principles") with regard to the processing of Personal Information received from Switzerland in reliance on the Swiss-US DPF. If there is any conflict between the terms in this Privacy Policy and the EU-US DPF Principles and/or the Swiss-US DPF Principles, the Principles shall govern. To learn more about the Data Privacy Framework ("DPF") program, and to view our certification, please visit https://www.dataprivacyframework.gov.

In compliance with the Frameworks, Turnitin commits to resolve DPF Principles-related complaints about our collection and use of your personal information. EU, UK and Swiss individuals with inquiries or complaints regarding our handling of Personal Information received in reliance on the Frameworks should first contact Turnitin at:

Data Protection Officer

Turnitin, LLC, 1920 Broadway, Suite 205, Oakland CA. 94612 USA

Phone: +44 (0) 191 681 0227

Email: DPO@turnitin.com

Turnitin must respond within 45 days of receiving a complaint.

In compliance with the EU-US DPF and the UK Extension to the EU-US DPF and the Swiss-US DPF, Turnitin commits to cooperate and comply respectively with the advice of the panel established by the EU data protection authorities ("DPAs") and the UK Information Commissioner's Office (ICO) and the Gibraltar Regulatory Authority ("GRA") and the Swiss Federal Data Protection and Information Commissioner ("FDPIC") with regard to unresolved complaints concerning our handling of Personal Information received in reliance on the respective Frameworks.

The Federal Trade Commission has jurisdiction over Turnitin's compliance with the Frameworks. Turnitin will submit to binding arbitration in the event that a dispute can not be resolved by the aforementioned mechanisms. Individuals may initiate binding arbitration by delivering a 'Notice' to Turnitin in accordance with the arbitration procedures provided in Annex I of the EU-US DPF Principles (available on the DPF website). Turnitin shall assume liability for any onward transfers of Personal Information made to third parties.

## Additional Data Rights

Please note that the rules in your country may provide you with additional rights or may limit these rights. In all cases, our provision of the rights will comply with the applicable laws.

If you are based in the EEA, for example, you may have the right to access, update or correct your Personal Information, to request deletion of such Personal Information, and to object to certain processing, including that related to marketing, to receive a machine-readable copy of the Personal Information concerning you that you provided to us or request us to transfer such data to an applicable third party in certain circumstances.

In addition, where you provided your consent for our processing of your Personal Information, you may withdraw such consent by contacting us using the details provided in the "Contact" section. You may also restrict how we use your Personal Information while a complaint is being investigated.

Your exercise of these rights is subject to certain exemptions to safeguard the public interest (e.g. the prevention or detection of crime) and our interests (e.g., the maintenance of legal privilege). If you contact us to exercise any of these rights, we will verify your request and respond within thirty days.

## Updates to This Policy

As our Websites evolve, we may make changes to this Privacy Policy. We will alert you to material changes by providing notice within the Website or otherwise as required by law. The “last updated” note at the top of this policy indicates when it was last revised, and updates will become effective when they are posted.

## Contact

If you have any concerns or complaints about how we handle your Personal Information, or if you have questions regarding this Privacy Policy, please contact us at:

1920 Broadway, Suite 205

Oakland, California 94612

866 816 5046

legal@turnitin.com

If you have concerns or complaints regarding this Privacy Policy or our data handling procedures, you may have a right to lodge a complaint with a supervisory authority.

For paper or account deletion requests please contact tiisupport@turnitin.com

Our Data Protection Officer may be reached at DPO@turnitin.com.

# 06 | GDPR FAQs

https://go.turnitin.com/turnitin-and-gdpr

Webpage text snapshot | Retrieved 10 October 2026

Find out more about Turnitin

Visit our website

## Turnitin & GDPR

Having stood at the forefront of academic integrity solutions for over 20 years, we are committed to holding our processes and practices to high standards. Complying with the General Data Protection Regulation (GDPR) is no exception.

Since the GDPR came into force in 2018, we have enforced, maintained and continually improved our GDPR compliant privacy practices in order to reassure our customers and users of our services that their data will be processed lawfully, fairly and securely. Answers to some of our most frequently asked questions are below.

|

FAQ

## Is Turnitin GDPR compliant?

Yes. As an ed tech company, we work to ensure that our data protection practices are in line with the GDPR and other applicable global laws. Turnitin employs a Data Protection Officer to oversee the governance of our GDPR practices.

## Does Turnitin process the personal data of European customers outside the EU? If so, why - and where is it processed?

Yes. Under the GDPR, submission content itself is ‘Personal Data’. Turnitin’s database of submissions, which is used in conjunction with other internet sources for comparisons and text matching, is located in the United States. It is therefore necessary and consistent with the contracts and data processing addendums that we execute with customers, to transfer personal data outside the EU to the US in order to perform our services. Transferred data is in encrypted form. Where we use the AWS platform for hosting, data is stored exclusively in the EU (in Frankfurt), but in order to perform the services that data will be transferred to the US. Wholly owned group companies of Turnitin process data in ‘third countries’ (countries outside the EU or with no current adequacy decision) and only Turnitin employees with the need for access to such data may process the data in order to perform the services (i.e., for engineering, security or customer support reasons).

## How can Turnitin process personal data in the US under European law?

In July 2023, the European Union adopted an ‘adequacy decision’ under the GDPR that the privacy afforded to personal data when processed in the US provided an essentially equivalent level of protection as it receives in the EU, subject to a US organisation certifying to the EU-US Data Privacy Framework (“DPF”) and adhering to the principles within the DPF. Turnitin’s DPF certification may be reviewed here. Turnitin will also continue to enter into the European Commission’s Standard Contractual Clauses (SCCs) with its customers. The SCCs are applicable to all Turnitin group companies that may process Personal Data. This means that our group companies also are parties to the SCCs and are bound by their provisions, which provide additional safeguards, risk management, and comfort for our customers.

## If I’m a UK or Swiss customer, does the EU-US Data Privacy Framework apply to me?

Yes. Switzerland and the UK elected to rely upon the DPF subject to organizations certifying to the DPF principles under relevant domestic law. Turnitin and Examsoft adhere to the DPF principles pursuant to both the UK and Swiss legislation. UK and Swiss customers therefore may rely upon the DPF. Turnitin’s adherence to the UK and Swiss requirements may be viewed here .

## Can US surveillance laws pose a risk to EU customer data?

Thanks to the approval of the DPF, the European Commission has determined that surveillance laws in the US pose no significant risk to the data of Europeans processed in the US.Surveillance laws exist to counter criminal (especially terrorist) activities, and are practically applied to data suspected to be foreign intelligence information. In Turnitin's opinion, the likelihood of a US law enforcement agency accessing the data our customers share and Turnitin processes is extremely low. No such requests have been made to Turnitin since Turnitin was founded over 25 years ago.Recently, the US government has taken previously unprecedented steps to enshrine the importance of data privacy, and has enacted new laws aimed at providing additional rights to individuals regarding their data, including: (1) binding protections that limit US intelligence agencies' access to data to what is necessary and proportional to preserve national security; (2) enhanced control of US intelligence services' actions to ensure compliance with surveillance activity restrictions; and (3) the formation of an independent and impartial redress structure, including a new Data Protection Review Court, to review and resolve concerns against US national security officials accessing personal data.

## What technical and organisational measures does Turnitin have in place?

Turnitin regularly updates its technical and organisational measures which exist to protect the security of the processed personal data, in accordance with Art.32 GDPR. These measures include: SOC2 certification, sophisticated firewalls, TLS network encryption, encryption of data (in transit and at rest), and appropriate policies, training,and physical security measures. Turnitin's current technical and organisational measures are available both in the applicable annex of the SCCs and upon request from your Account Manager.

## How does Turnitin respond to Data Subject rights requests?

Turnitin has implemented processes to handle a data subject's rights to access, deletion, and rectification of their Personal Data in accordance with the GDPR. Generally, the customer, as data controller, must approve (or deny) such requests subject to the provisions of the GDPR.

## How would Turnitin deal with a data breach?

Turnitin implements and maintains a Data Breach Notification Policy that is consistent with GDPR requirements and will adhere to in the event of a breach.

Customer queries may be directed to Turnitin's Data Protection Officer at: DPO@turnitin.com

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# 07 | Turnitin Website Terms of Use

https://guides.turnitin.com/hc/en-us/articles/28106621255053-Turnitin-Website-Terms-of-Use

Webpage text snapshot | Retrieved 10 October 2026

Turnitin Guides

Administrator hub

Accessibility and Privacy

Introduction and Applicability. These Turnitin Website Terms of Use (“TOU”) apply to websites (collectively, “Websites”) owned and operated by Turnitin, LLC (“Turnitin,” “we,” “us,” and “our”). It does not apply to our web-based education services, which are governed by terms at this link. These TOU set the rules for how visitors (“you,” “your”) may interact with our Websites.

Your Representations. You represent that you (a) are of a legal age sufficient to agree to these TOU in accordance with applicable law, (b) have read, understood, and agree to be bound by these TOU, and (c) have all rights, permissions, and authorizations necessary to upload and provide for us to use as contemplated under these TOU all documents, graphics, content, and other materials uploaded by you to the Website (collectively, “Content”).

Intellectual Property. You acknowledge that: (i) the Website, including all trademarks, service marks, logos, documents, graphics, content, and/or other materials viewed or obtained from or through the Website (collectively “Website Materials”), are owned and/or licensed by Turnitin and are protected by copyright and other intellectual property rights; and (ii) you have no rights to transfer, reproduce, or prepare any derivative works with respect to the Website Materials, or to disclose confidential information pertaining to the Website or Website Materials. These TOU do not convey any rights of ownership in or related to the Website, Website Materials or other intellectual property owned by Turnitin.

License. Turnitin grants you a personal, revocable, non-exclusive, non-transferable, limited right and license to access the Website provided that you comply with these TOU. You do hereby grant us a non-exclusive, perpetual, royalty-free, fully paid-up worldwide right and license to use your Content to operate our business and furnish the Website to you. You may not modify, copy, distribute, broadcast, transmit, reproduce, publish, license, transfer, sell, scrape, mirror, or frame any Website Materials.

Use of this Website.

The Website and Website Materials are provided solely for your own informational purposes. Any unauthorized use, including without limitation any commercial use, is prohibited. You agree not to use the Website or Website Materials for any purpose that is unlawful or prohibited by these TOU, or any other purpose not reasonably intended by Turnitin. You further agree to abide by all applicable local, state, national and international laws and regulations. Without limiting the generality of the foregoing, you will not, nor will you allow a third party to:

(a) Upload, post, e-mail or otherwise transmit any Content that:

i.is unlawful, harmful, threatening, intimidating, abusive, harassing, tortuous, defamatory, derogatory, vulgar, explicit, obscene, libelous, invasive of another’s privacy, disrespectful, hateful, or racially, ethnically or otherwise objectionable;

ii. you do not have the right to transmit under applicable law or under contractual or fiduciary relationships;

iii. infringes any patent, trademark, trade secret, copyright or other proprietary rights of any party;

iv. contains software viruses or worms or any other computer code, files or programs designed to disable, interrupt, destroy, redirect, monitor another user’s usage, limit or otherwise inhibit the functionality of any computer software or hardware or telecommunications equipment;

(b) assign, sublicense, rent, timeshare, loan, lease or otherwise transfer the Website or Website Materials, or directly or directly grant access to or permit any unauthorized party to access or use the Website or Website Materials;

(c) decompile, disassemble, reverse engineer, copy, modify or create derivative works from the Website;

(d) impersonate any person or entity, including another user of the Website, or provide false information;

(e) view or attempt to view records or Content submitted by another user of the Website, except Content made available in our Public Areas (as defined below);

(f) use automated systems (e.g., robots, spiders, etc.) to access the Website;

(g) Forge headers or otherwise manipulate identifiers in order to disguise the origin of any Content on or transmitted through the Website;

(h) discuss or incite illegal activity or solicit/post sexually explicit images;

(i) Interfere with or disrupt the Website or servers or networks connected to the Website, or disobey any requirements, procedures, policies or regulations of networks connected to the Website;

(j) Harvest, scrape, programmatically crawl, or collect any Website Materials; or

(k) remove any proprietary notices (e.g., copyright and trademark notices) from either the Website or Website Materials.

User Content and Feedback. The Website may contain areas in which you may make statements, comments, post reviews, or otherwise provide Content (“Public Areas”). By using these Public Areas, you acknowledge and agree that the Content you provide may be available to other users. Turnitin is not liable for any such Content. Although Turnitin has no obligation to screen, edit or monitor any Content, Turnitin reserves the right to remove, edit or refuse to post Content in its sole discretion. You may also provide us with Content that constitutes suggestions, comments or other feedback about our products and services (“Feedback“). Feedback is voluntary. We may use Feedback for any purpose without obligation of any kind in connection with our business, including for the purpose of enhancing our products, services and the Website.

Privacy. We are committed to maintaining the privacy of personal information you submit through the Websites, and maintain a Website Privacy Policy, which may be viewed at this link. Turnitin reserves the right to modify the Website Privacy Policy in accordance with the procedure outlined in that policy.

Changes to the Website. We may, in our sole discretion, add, change, discontinue or remove any portion or functionality of a Website at any time, or the Website as a whole, without notice.

Links. The Website may contain links allowing you to go to websites or other online services, including social networks, that are not under our control (“Linked Sites”). Any such Linked Sites are provided for your convenience, and inclusion of links on the Website does not suggest any association, sponsorship, or endorsement of those Linked Sites. We are not responsible for the content or transmission of any Linked Site or for ensuring that the Linked Sites are error and/or virus free. These TOU and the Website Privacy Policy do not apply to the Linked Sites. Linked Sites may be subject to their own terms of use and privacy policies, and we encourage you to read them.

Indemnification. To the extent permissible by law, you will indemnify, defend, and hold harmless Turnitin and its parents, subsidiaries, affiliates, officers, directors, managers, employees, agents, vendors, merchants, sponsors, providers, and licensors from any and all losses, deficiencies, judgements, damages, liabilities, costs, and expenses (including but not limited to reasonable attorneys’ fees and all related costs and expenses) incurred by them as a result of any claim, lawsuit, demand, cause of action, or proceeding brought by a third party arising from any or all of the following: (i) your access, inability to access, or use of our Website; (ii) any of your Content; (iii) breach of any of your obligations, representations, or warranties in these TOU; or (iv) your violation of any rights of another person.

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Severability. If any of the part of these TOU is determined to be invalid or unenforceable pursuant to applicable law, including, but not limited to, the warranty disclaimers and the liability limitations set forth above, then the invalid or unenforceable provision will be deemed superseded by a valid, enforceable provision that most clearly matches the intent of the original provision and the remainder of these TOU shall continue in effect.

Assignment. Turnitin is permitted to assign, transfer, and subcontract its rights and/or obligations under these TOU without any notification. However, you are not allowed to assign, transfer, or subcontract any of your rights and/or obligations under these Terms.

Digital Millennium Copyright Act. If you believe that any Website Materials or Content infringes your copyright, you (or your agent) may send us notice requesting that such Website Materials or Content be removed. Notice must be provided in writing and must include the following information:

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b. Identification of the copyrighted work that you claim has been infringed;

c. The location of the work you claim is infringing (e.g., URL) or enough detail that we may find it;

d. Your name, address, telephone number, and e-mail address;

e. A statement by you that you have a good faith belief that the disputed use is not authorized by the copyright owner, its agent, or the law; and

f. A statement, made under penalty of perjury, that the information in your notice is accurate and that you are the copyright owner or authorized to act on the copyright owner's behalf.

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If you have any questions regarding these TOU, please contact us at legal@turnitin.com.

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# 08 | Terms & Conditions

https://www.gradescope.com/tos

Webpage text snapshot | Retrieved 10 October 2026

Welcome to gradescope.com, a website and online service of Turnitin, LLC. (“Turnitin,” “we,” or “us”). In 2018, Gradescope joined Turnitin, a leading provider of academic integrity and writing assessment solutions. Since that time, as we’ve continued to improve and support the Gradescope product you know and love, we’ve also been settling into our new home. This has included improving our policies and practices, including but not limited to those around privacy and security. As a result, we are adopting a new, companywide privacy policy, and we’ve updated our Terms of Service below. If you have any questions or concerns about the changes, as always please reach out to us at help@gradescope.com.

This page explains the terms by which you may use the Gradescope online and/or mobile services, web site, and software provided on or in connection with all of Turnitin’s Gradescope service (the “Service”).

By accessing or using the Service, you signify that you have read, understood, and agree to be bound by this Terms of Service (the “Terms”) and to the collection and use of your information as set forth in the Gradescope Privacy Policy whether or not you are a registered user of our Service. If you do not agree, you may not use the Service. Turnitin reserves the right to make unilateral modifications to these terms and will provide notice of these changes as described below. These Terms applies to all visitors, users, and others who access the Service (“Users”).

In the event that Turnitin and any School (as defined below) have entered into a separate agreement for the Services, such agreement shall govern to the extent that any terms directly conflict with the provisions of these Terms.

We have provided headings and summaries in each section for your convenience; however, the summaries are not meant to limit the Terms and shall not affect or limit in any way the meaning or interpretation of the Terms.

## 1. Use of Our Service

Summary: In order to use the Service, you need to be able to form a binding contract and create an account. You are responsible for and warrant authority over all of your user activity. Your use cannot disrupt or interfere with the Service.

### Eligibility

You may use the Service only if you can form a binding contract with Turnitin, and only in compliance with these Terms and all applicable local, state, national, and international laws, rules and regulations.

### Gradescope Service

Subject to the terms and conditions of these Terms, you are hereby granted a non-exclusive, limited, non-transferable, freely revocable license to use the Service for your personal, noncommercial use only and as permitted by the features of the Service. Turnitin reserves all rights not expressly granted herein in the Service and the Gradescope Content (as defined below). Turnitin may terminate this license at any time for any reason or no reason.

### Gradescope Accounts

Your Gradescope account gives you access to the services and functionality that we may establish and maintain from time to time and in our sole discretion. We may maintain different types of accounts for different types of Users.

You may never use another User’s account without permission. When creating your account, you must provide accurate and complete information, and you must keep this information up to date. You are solely responsible for the activity that occurs on your account, and you must keep your account password secure. We encourage you to use “strong” passwords (passwords that use a combination of upper and lower case letters, numbers and symbols) with your account, and enforce a minimum length. You must notify Turnitin immediately of any breach of security or unauthorized use of your account by emailing informationsecurity@turnitin.com. Turnitin will not be liable for any losses caused by any unauthorized use of your account.

Teachers. If you are using your account as a teacher, professor, or other similar instructor (a “Teacher”) and use the Service to add or invite any students (“Students”) to access and use the Service, you represent and warrant that you have the authority to act on behalf of your school, university, or other institution (the “School”) and that use of the

Service, including without limitation adding or inviting students to access and use the Service and your use and access of the Service in no way violates any agreement between you and the School.

Schools. If you are a School and use the Service to add or invite any Students to access and use the Service, to access Educational Records, or in any other way without limitation, you represent and warrant that you have the authority to do so. You may control your User profile and how you interact with the Service by changing the settings in your settings page. By providing Turnitin your email address you consent to our using the email address to send you Service-related notices, including any notices required by law, in lieu of communication by postal mail. We may also use your email address to send you other messages, such as changes to features of the Service and special offers, as detailed in our Privacy Policy.

## Service Rules

You agree not to engage in any of the following prohibited activities:

copying, distributing, or disclosing any part of the Service in any medium, including without limitation by any automated or non-automated “scraping”;

using any automated system, including without limitation “robots,” “spiders,” “offline readers,” etc., to access the Service in a manner that sends more request messages to the Gradescope servers than a human can reasonably produce in the same period of time by using a conventional on-line web browser (except that Turnitin grants the operators of public search engines revocable permission to use spiders to copy publicly-available materials from https://gradescope.com for the sole purpose of and solely to the extent necessary for creating publicly available searchable indices of the materials, but not caches or archives of such materials);

transmitting spam, chain letters, or other unsolicited email;

attempting to interfere with, compromise the system integrity or security or decipher any transmissions to or from the servers running the Service;

taking any action that imposes, or may impose at our sole discretion an unreasonable or disproportionately large load on our infrastructure;

uploading invalid data, viruses, worms, or other software agents through the Service;

collecting or harvesting any personally identifiable information, including account names, from the Service;

using the Service for any commercial solicitation purposes;

impersonating another person or otherwise misrepresenting your affiliation with a person or entity, conducting fraud, hiding or attempting to hide your identity;

interfering with the proper working of the Service;

accessing any content on the Service through any technology or means other than those provided or authorized by the Service; or

bypassing the measures we may use to prevent or restrict access to the Service, including without limitation features that prevent or restrict use or copying of any content or enforce limitations on use of the Service or the content therein.

We may, without prior notice, change the Service; stop providing the Service or features of the Service, to you or to Users generally; or create usage limits for the Service. We may permanently or temporarily terminate or suspend your access to the Service without notice and liability for any reason, including if in our sole determination you violate any provision of these Terms, or for no reason. Upon termination for any reason or no reason, you continue to be bound by these Terms.

You are solely responsible for your interactions with other Gradescope Users. We reserve the right, but have no obligation, to monitor disputes between you and other Users. Turnitin shall have no liability for your interactions with other Users, or for any User’s action or inaction.

## 2. User Content

Summary: The content you post or generate on the Service is yours, and you warrant that you have all rights to provide it. You agree that others may have access to your content, in accordance with your settings and these terms. You cannot post content that is criminal, otherwise harmful, or in violation of your school's policies.

Some areas of the Service allow Users to post or provide content such as profile information, tests and questions, grading rubrics, comments, and other content or information (any such materials a User submits, posts, displays, or otherwise makes available on the Service is referred to as "User Content"). "User Content" shall also include Teacher feedback, educational records, grades, edits, (collectively, "Educational Records") or other Student content. We claim no ownership rights over User Content created by you. The User Content you create remains yours; however, by providing or sharing User Content through the Service, you agree to allow others to view, edit, and/or share your User Content in accordance with your settings and these Terms. Turnitin has the right (but not the obligation) in its sole discretion to remove any User Content that is shared via the Service.

You agree not to post User Content that:

may constitute or contribute to a crime or tort;

contains any information or content that we deem to be unlawful, harmful, abusive, racially or ethnically offensive, defamatory, infringing, invasive of personal privacy or publicity rights, harassing, humiliating to other people (publicly or otherwise), libelous, threatening, profane, obscene, or otherwise objectionable; or

violates any school or other applicable policy, including those related to cheating or ethics.

You agree that any User Content that you post does not and will not violate third-party rights of any kind, including without limitation any Intellectual Property Rights (as defined below) or rights of privacy. If you are an instructor or teacher, you represent and warrant that you have the right to provide any User Content, including without limitation any tests or classroom materials that you provide to the Service. To the extent that your User Content contains music, you hereby represent that you are the owner of all the copyright rights, including without limitation the performance, mechanical, and sound recordings rights, with respect to each and every musical composition (including lyrics) and sound recording contained in such User Content and have the power to grant the license granted below. You understand that publishing your User Content on the Service is not a substitute for registering it with the U.S. Copyright Office, the Writer's Guild of America, or any other rights organization.

For the purposes of these Terms, "Intellectual Property Rights" means all patent rights, copyright rights, mask work rights, moral rights, rights of publicity, trademark, trade dress and service mark rights, goodwill, trade secret rights and other intellectual property rights as may now exist or hereafter come into existence, and all applications therefore and registrations, renewals and extensions thereof, under the laws of any state, country, territory or other jurisdiction.

In connection with your User Content, you affirm, represent and warrant the following:

You have the written consent of each and every identifiable natural person in the User Content, if any, to use such person's name or likeness in the manner contemplated by the Service and these Terms, and each such person has released you from any liability that may arise in relation to such use.

You have obtained and are solely responsible for obtaining all consents as may be required by law to post any User Content relating to third parties.

Your User Content and Turnitin's use thereof as contemplated by these Terms and the Service will not violate any law or infringe any rights of any third party, including but not limited to any Intellectual Property Rights and privacy rights.

Turnitin may exercise the rights to your User Content granted under these Terms without liability for payment of any guild fees, residuals, payments, fees, or royalties payable under any collective bargaining agreement or otherwise.

To the best of your knowledge, all your User Content and other information that you provide to us is truthful and accurate.

Turnitin takes no responsibility and assumes no liability for any User Content that you or any other User or third party posts, sends, or otherwise makes available over the Service. You shall be solely responsible for your User Content and the consequences of posting, publishing it, sharing it, or otherwise making it available on the Service, and you agree that we are only acting as a passive conduit for your online distribution and publication of your User Content. You understand and agree that you may be exposed to User Content that is inaccurate, objectionable, inappropriate for children, or

otherwise unsuited to your purpose, and you agree that Turnitin shall not be liable for any damages you allege to incur as a result of or relating to any User Content.

## 3. User Content License Grant

Summary: You grant us license to use your content; we will only use it on an aggregated, non-identifiable basis, or in accordance with your settings.

By posting or otherwise making available any User Content on or through the Service, you expressly grant, and you represent and warrant that you have all rights necessary to grant and hereby grant to Turnitin a royalty-free, sublicensable, transferable, perpetual, irrevocable, non-exclusive, worldwide license, subject to the restrictions set forth below to reproduce, modify, publish, publicly display, make derivative works and otherwise use such User Content and your name, voice, and/or likeness as contained in your User Content, in whole or in part, and in any form, media or technology, whether now known or hereafter developed, for use in connection with the Service and Turnitin's (and its successors' and affiliates') business, including without limitation for promoting and redistributing part or all of the Service (and derivative works thereof) in any media formats and through any media channels. Notwithstanding the foregoing, Turnitin will only use your User Content as you provide in your settings page.

If you are a Student, you agree that Turnitin may make your User Content available to your Teacher(s) and School(s), for the purposes of improving the Turnitin services only and at all times on a confidential basis, may use your Educational Records solely on an aggregated, de-identified basis and will not share such information with third parties.

If you are a Teacher or School, you agree that Turnitin may (i) make specific Educational Records available to the applicable Student, and (ii) for the purposes of improving the Turnitin services only and at all times on a confidential basis, otherwise use your Educational Records on an aggregated, de-identified basis and will not share such information with third parties.

## 4. Our Proprietary Rights

Summary: We own the Service, and have provided some of our own content, which you agree not to treat as yours. We would love to hear your feedback and ideas, and possibly incorporate them, but cannot compensate you for them.

Except for your User Content, the Service and all materials therein or transferred thereby, including, without limitation, software, images, text, graphics, illustrations, logos, patents, trademarks, service marks, copyrights, photographs, audio, videos, music, and User Content belonging to other Users (the "Gradescope Content"), and all Intellectual Property Rights related thereto, are the exclusive property of Turnitin and its licensors (including other Users who post User Content to the Service). Except as explicitly provided herein, nothing in these Terms shall be deemed to create a license in or under any such Intellectual Property Rights, and you agree not to sell, license, rent, modify, distribute, copy, reproduce, transmit, publicly display, publicly perform, publish, adapt, edit or create derivative works from any Gradescope Content. Use of the Gradescope Content for any purpose not expressly permitted by these Terms is strictly prohibited.

You may choose to or we may invite you to submit comments or ideas about the Service, including without limitation about how to improve the Service or our products ("Ideas"). By submitting any Idea, you agree that your disclosure is gratuitous, unsolicited and without restriction and will not place Turnitin under any fiduciary or other obligation, and that we are free to use the Idea without any additional compensation to you, and/or to disclose the Idea on a non-confidential basis or otherwise to anyone. You further acknowledge that, by acceptance of your submission, Turnitin does not waive any rights to use similar or related ideas previously known to Turnitin, or developed by its employees, or obtained from sources other than you.

## 5. Turnitin Property

Summary: We own some content on the Service, and have ultimate authority over its presence, with no liability of any kind.

The Gradescope service contains data, information, and other content not owned by you ("Turnitin Property"). You understand and agree that regardless of terminology used, Turnitin Property represents a limited license right governed solely by the terms of these Terms and available for distribution at Turnitin's sole discretion. You acknowledge that you do not own the account you use to access the Service, nor do you possess any rights of access or rights to data stored by or on behalf of Turnitin on Turnitin's Gradescope servers, including without limitation any data representing or

embodying any or all of your Turnitin Property. You agree that Turnitin has the absolute right to manage, regulate, control, modify and/or eliminate Turnitin Property as it sees fit in its sole discretion, in any general or specific case, and that Turnitin will have no liability to you based on its exercise of such right. All data on Turnitin's Gradescope servers are subject to deletion, alteration or transfer.

NOTWITHSTANDING ANY VALUE ATTRIBUTED TO SUCH DATA BY YOU OR ANY THIRD PARTY, YOU UNDERSTAND AND AGREE THAT ANY DATA, ACCOUNT HISTORY AND ACCOUNT CONTENT RESIDING ON TURNITIN'S GRADESCOPE SERVERS, MAY BE DELETED, ALTERED, MOVED OR TRANSFERRED AT ANY TIME FOR ANY REASON IN TURNITIN'S SOLE DISCRETION, WITH OR WITHOUT NOTICE AND WITH NO LIABILITY OF ANY KIND. TURNITIN DOES NOT PROVIDE OR GUARANTEE, AND EXPRESSLY DISCLAIMS, ANY VALUE, CASH OR OTHERWISE, ATTRIBUTED TO ANY DATA RESIDING ON TURNITIN'S GRADESCOPE SERVERS.

## 6. Privacy

Summary: We know privacy and security are paramount. We have a separate policy completely dedicated to privacy, which you should read. In brief: we use cookies, do not allow third-party advertising based on user activity, fully comply with FERPA, and use data to improve our Service.

### Student Data

If you are a Teacher or School that will be providing Turnitin access to Student Data (as defined below) via the Gradescope service, you authorize Turnitin to access your student information systems ("SIS") or receive Student Data or other information via SIS, Secure File Transfer Protocol ("SFTP"), or other secure transfer method for the purpose of providing the Service. "Student Data" is any information (in any format) that is directly related to an identifiable current or former student that is maintained by a school, school district, or related entity or organization, or by us. Student Data may include "educational records" as defined in the Family Educational Rights and Privacy Act ("FERPA"), 20 U.S.C. § 1232(g).

### Confidentiality

Turnitin agrees to treat Student Data as confidential and not to share it with third parties other than as described in these Terms, including the Gradescope Privacy Policy, available at gradescope.com/privacy.

### Turnitin Access

You authorize Turnitin to access and process Student Data solely for the purposes of providing the Service, as an outsourced institutional function pursuant to FERPA 34 CFR Part 99.31(a)(1). As between Turnitin and School or Teacher, School or Teacher owns right, title, and interest to all Student Data you provide or otherwise make available to us, and Turnitin does not own, control, or license such Student Data, except so as to provide the Service described herein. You acknowledge and agree that, as between the parties, you are solely responsible for any and all Student Data, whether provided by Teacher, School, Student or any other third-party.

### Third-Party Access

By submitting Student Data to Gradescope, you consent to allow Gradescope to provide access to Student Data to its employees and to certain third party service providers which have a legitimate need to access such information in connection with their responsibilities in providing the Service. Gradescope and its employees, subcontractors, service providers, or agents involved in the handling, transmittal, and processing of Student Data will be required to maintain the confidentiality of such data that includes personally identifiable information and shall not redisclose such data except as necessary in order to provide the Service or pursuant to the consent and direction of School or a Student over age 18. Gradescope will maintain access log(s) that record all disclosures of or access to Student Data within its possession, and will provide copies of an access log(s) to you upon request.

## Use of Student Data

By submitting Student Data or other information to the Gradescope service, you expressly grant, and you represent and warrant that you have all rights necessary to grant, to Turnitin a non-exclusive, royalty-free, worldwide license during the term of these Terms to use, transmit, distribute, modify, reproduce, display, create derivative works of, and store the Student Data solely for the purposes of (i) providing the Services as contemplated in these Terms, and (ii) enforcing its rights under these Terms.

## Children's Data Privacy

Turnitin relies on each school to obtain and provide appropriate consent and disclosures, if necessary, to allow students to access the Gradescope service.

You represent and warrant that you have the authority to provide Student Data to Turnitin, and that you have provided appropriate disclosures to students and parents regarding your sharing of Student Data with service providers such as Turnitin, if needed. We recommend that you provide a copy of our Privacy Policy to parents and guardians.

## Anonymized Data

You agree that Turnitin may collect, analyze, and use data derived from Student Data, including de-identified, aggregated or anonymized Student Data, as well as data about your, and other users' access and use of the Service, for purposes of operating, analyzing, improving, or marketing the Service and for the purpose of providing analytic services to the School or to other Schools. If Turnitin shares or publicly discloses information (e.g., in marketing materials, in application development, or with third parties) that is derived from Student Data, such data will be de-identified to reasonably avoid identification of a specific school or individual. You further agree that Turnitin will have the right, both during and after the Term of these Terms, to use, store, transmit, distribute, modify, copy, display, sublicense, and create derivative works of the de-identified, aggregated or anonymized data solely for the purposes of improving Turnitin services.

## Deletion Requests

You may request that Turnitin delete Student Data in Turnitin's possession at any time by providing such a request in writing, which request Turnitin shall then comply with in a commercially reasonable time. Turnitin is not required to delete data derived from Student Data, including de-identified, aggregated or anonymized Student Data.

## Change of Control

By submitting Student Data to the Gradescope service, you consent to allow Turnitin to transfer Student Data to a new provider in the event that Turnitin sells, divests or transfers the business or a portion of the business, provided that the new provider has agreed to data privacy standards no less stringent than those set forth in these Terms. We may also transfer personal information – under the same conditions – in the course of mergers, acquisitions, bankruptcies, dissolutions, reorganizations, liquidations, similar transactions or proceedings involving all or a portion of our business.

## 7. Security

Summary: We know privacy and security are paramount. We follow industry standards to ensure the security of your personal information.

Turnitin uses commercially reasonable and appropriate physical, managerial, and technical safeguards to preserve the integrity and security of your personal information and implement your privacy settings. However, we cannot guarantee that unauthorized third parties will never be able to defeat our security measures or use your personal information for improper purposes. You acknowledge that you provide your personal information at your own risk.

## 8. Paid Services

Summary: We may charge for some Services, and if you decide to use them, you will need to agree to our prices. We will let you know if our prices change.

## Billing Policies

Certain aspects of the Service may be provided for a fee or other charge. Schools may elect to pay the fees or charges of other Users (such as Teachers). If you elect to use paid aspects of the Service, you agree to the pricing and payment terms, as we may update them from time to time. You also agree to be bound by the specific terms included in any order form, statement of work, or the like (if applicable) to which you indicate your acceptance (for instance, by signing the document, via online click-through acceptance, or by making related payments to Turnitin). Turnitin may add new services to the Gradescope service for additional fees and charges, or amend fees and charges for existing services, at any time in its sole discretion. Any change to our pricing or payment terms shall become effective in the billing cycle following notice of such change to you as provided in this Agreement.

## Payment Information; Taxes

All information that you provide in connection with a purchase or transaction or other monetary transaction interaction with the Service must be accurate, complete, and current. You agree to pay all charges incurred by users of your credit card, debit card, or other payment method used in connection with a purchase or transaction or other monetary transaction interaction with the Service at the prices in effect when such charges are incurred. You will pay any applicable taxes, if any, relating to any such purchases, transactions or other monetary transaction interactions.

## Mobile Charges

You may use mobile data in connection with Turnitin's mobile software applications and/or sign up to receive certain Gradescope notifications or information via text messaging. You may incur additional charges from your wireless provider for these services. You agree that you are solely responsible for any such charges.

## 9. Mobile Software

Summary: Our Services may be offered via mobile apps, for which we'll need to give you a license. You can't do things like resell or reverse engineere our apps. This agreement is between you and us, not Apple (even if you got the app from Apple).

## Mobile Software

We may make available software to access the Service via a mobile device ("Mobile Software"). To use the Mobile Software you must have a mobile device that is compatible with the Mobile Software. Turnitin does not warrant that the Mobile Software will be compatible with your mobile device. You may use mobile data in connection with the Mobile Software and may incur additional charges from your wireless provider for these services. You agree that you are solely responsible for any such charges. Turnitin hereby grants you a non-exclusive, non-transferable, revocable license to use a compiled code copy of the Mobile Software for one Gradescope account on one mobile device owned or leased solely by you, for your personal use. You may not:

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## Mobile Software from iTunes

The following applies to any Mobile Software you acquire from the iTunes Store (“iTunes-Sourced Software”): You acknowledge and agree that these Terms is solely between you and Turnitin, not Apple, and that Apple has no responsibility for the iTunes-Sourced Software or content thereof. Your use of the iTunes-Sourced Software must comply with the App Store Terms of Service. You acknowledge that Apple has no obligation whatsoever to furnish any maintenance and support services with respect to the iTunes-Sourced Software. In the event of any failure of the iTunes-Sourced Software to conform to any applicable warranty, you may notify Apple, and Apple will refund the purchase price for the iTunes-Sourced Software to you; to the maximum extent permitted by applicable law, Apple will have no other warranty obligation whatsoever with respect to the iTunes-Sourced Software, and any other claims, losses, liabilities, damages, costs or expenses attributable to any failure to conform to any warranty will be solely governed by these Terms and any law applicable to Turnitin as provider of the software. You acknowledge that Apple is not responsible for addressing any claims of you or any third party relating to the iTunes-Sourced Software or your possession and/or use of the iTunes-Sourced Software, including, but not limited to:

product liability claims;

any claim that the iTunes-Sourced Software fails to conform to any applicable legal or regulatory requirement; and

claims arising under consumer protection or similar legislation; and all such claims are governed solely by these Terms and any law applicable to Turnitin as provider of the software.

You acknowledge that, in the event of any third-party claim that the iTunes-Sourced Software or your possession and use of that iTunes-Sourced Software infringes that third party’s intellectual property rights, Turnitin, not Apple, will be solely responsible for the investigation, defense, settlement and discharge of any such intellectual property infringement claim to the extent required by these Terms. You and Turnitin acknowledge and agree that Apple, and Apple’s subsidiaries, are third-party beneficiaries of these Terms as relates to your license of the iTunes-Sourced Software, and that, upon your acceptance of the terms and conditions of these Terms, Apple will have the right (and will be deemed to have accepted the right) to enforce these Terms as relates to your license of the iTunes-Sourced Software against you as a third-party beneficiary thereof.

## 10. DMCA Notice

Summary: If content hosted on our Service or website infringes your copyright, please alert us in accordance with the DMCA.

Since we respect artist and content owner rights, it is Turnitin’s policy to respond to alleged infringement notices that comply with the Digital Millennium Copyright Act of 1998 (“DMCA”).

If you believe that your copyrighted work has been copied in a way that constitutes copyright infringement and is accessible via the Service, please notify Turnitin’s copyright agent as set forth in the DMCA. For your complaint to be valid under the DMCA, you must provide the following information in writing:

An electronic or physical signature of a person authorized to act on behalf of the copyright owner;

Identification of the copyrighted work that you claim has been infringed;

Identification of the material that is claimed to be infringing and where it is located on the Service;

Information reasonably sufficient to permit Turnitin to contact you, such as your address, telephone number, and, e-mail address;

A statement that you have a good faith belief that use of the material in the manner complained of is not authorized by the copyright owner, its agent, or law; and

A statement, made under penalty of perjury, that the above information is accurate, and that you are the copyright owner or are authorized to act on behalf of the owner.

The above information must be submitted to the following DMCA Agent:

Attn: DMCA Notice, Turnitin, LLC - 2101 Webster St. Suite 1800, Oakland, California 94612

Email: legal@turnitin.com

UNDER FEDERAL LAW, IF YOU KNOWINGLY MISREPRESENT THAT ONLINE MATERIAL IS INFRINGING, YOU MAY BE SUBJECT TO CRIMINAL PROSECUTION FOR PERJURY AND CIVIL PENALTIES, INCLUDING MONETARY DAMAGES, COURT COSTS, AND ATTORNEYS' FEES.

Please note that this procedure is exclusively for notifying Turnitin and its affiliates that your copyrighted material has been infringed. The preceding requirements are intended to comply with Turnitin's rights and obligations under the DMCA, including 17 U.S.C. §512(c), but do not constitute legal advice. It may be advisable to contact an attorney regarding your rights and obligations under the DMCA and other applicable laws.

In accordance with the DMCA and other applicable law, Turnitin has adopted a policy of terminating, in appropriate circumstances, Users who are deemed to be repeat infringers. Turnitin may also at its sole discretion limit access to the Service and/or terminate the accounts of any Users who infringe any intellectual property rights of others, whether or not there is any repeat infringement.

## 11. Third-Party Links and Information

Summary: The Service may contain links to third-party websites (such as Facebook or Twitter). We are not responsible for the content of those sites, nor can we control them.

The Service may contain links to third-party materials that are not owned or controlled by Turnitin. Turnitin does not endorse or assume any responsibility for any such third-party sites, information, materials, products, or services. If you access a third-party website or service from the Service or share your User Content on or through any third-party website or service, you do so at your own risk, and you understand that these Terms and Turnitin's Gradescope Privacy Policy do not apply to your use of such sites. You expressly relieve Turnitin from any and all liability arising from your use of any third-party website, service, or content, including without limitation User Content submitted by other Users. Additionally, your dealings with or participation in promotions of advertisers found on the Service, including payment and delivery of goods, and any other terms (such as warranties) are solely between you and such advertisers. You agree that Turnitin shall not be responsible for any loss or damage of any sort relating to your dealings with such advertisers.

## 12. Indemnity

Summary: If you violate these Terms or otherwise misuse the Service and we suffer any losses or suits, you will have to defend us and cover our losses.

You agree to defend, indemnify and hold harmless Turnitin and its subsidiaries, agents, licensors, managers, and other affiliated companies, and their employees, contractors, agents, officers and directors, from and against any and all claims, damages, obligations, losses, liabilities, costs or debt, and expenses (including but not limited to attorney's fees) arising from: (i) your use of and access to the Service, including any data or content transmitted or received by you; (ii) your violation of any term of these Terms, including without limitation your breach of any of the representations and warranties above; (iii) your violation of any third-party right, including without limitation any right of privacy or Intellectual Property Rights; (iv) your violation of any applicable law, rule or regulation; (v) User Content or any content that is submitted via your account including without limitation misleading, false, or inaccurate information; (vi) your willful misconduct; or (vii) any other party's access and use of the Service with your unique username, password or other appropriate security code.

## 13. No Warranty

Summary: The service is provided AS IS and we make no warranties with respect to the Service.

THE SERVICE IS PROVIDED ON AN “AS IS” AND “AS AVAILABLE” BASIS. USE OF THE SERVICE IS AT YOUR OWN RISK. TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, THE SERVICE IS PROVIDED WITHOUT WARRANTIES OF ANY KIND, WHETHER EXPRESS OR IMPLIED, INCLUDING, BUT NOT LIMITED TO, IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, OR NON-INFRINGEMENT. NO ADVICE OR INFORMATION, WHETHER ORAL OR WRITTEN, OBTAINED BY YOU FROM TURNITIN OR THROUGH THE SERVICE WILL CREATE ANY WARRANTY NOT EXPRESSLY STATED HEREIN. WITHOUT LIMITING THE FOREGOING, TURNITIN, ITS SUBSIDIARIES, ITS AFFILIATES, AND ITS LICENSORS DO NOT WARRANT THAT THE CONTENT IS ACCURATE, RELIABLE OR CORRECT; THAT THE SERVICE WILL MEET YOUR REQUIREMENTS; THAT THE SERVICE WILL BE AVAILABLE AT ANY PARTICULAR TIME OR LOCATION, UNINTERRUPTED OR SECURE; THAT ANY DEFECTS OR ERRORS WILL BE CORRECTED; OR THAT THE SERVICE IS FREE OF VIRUSES OR OTHER HARMFUL COMPONENTS. ANY CONTENT DOWNLOADED OR OTHERWISE OBTAINED THROUGH THE USE OF THE SERVICE IS DOWNLOADED AT YOUR OWN RISK AND YOU WILL BE SOLELY RESPONSIBLE FOR ANY DAMAGE TO YOUR COMPUTER SYSTEM OR MOBILE DEVICE OR LOSS OF DATA THAT RESULTS FROM SUCH DOWNLOAD OR YOUR USE OF THE SERVICE.

TURNITIN DOES NOT WARRANT, ENDORSE, GUARANTEE, OR ASSUME RESPONSIBILITY FOR ANY PRODUCT OR SERVICE ADVERTISED OR OFFERED BY A THIRD PARTY THROUGH THE GRADESCOPE SERVICE OR ANY HYPERLINKED WEBSITE OR SERVICE, AND TURNITIN WILL NOT BE A PARTY TO OR IN ANY WAY MONITOR ANY TRANSACTION BETWEEN YOU AND THIRD-PARTY PROVIDERS OF PRODUCTS OR SERVICES.

FEDERAL LAW, SOME STATES, PROVINCES AND OTHER JURISDICTIONS DO NOT ALLOW THE EXCLUSION AND LIMITATIONS OF CERTAIN IMPLIED WARRANTIES, SO THE ABOVE EXCLUSIONS MAY NOT APPLY TO YOU. THESE TERMS GIVES YOU SPECIFIC LEGAL RIGHTS, AND YOU MAY ALSO HAVE OTHER RIGHTS WHICH VARY FROM STATE TO STATE. THE DISCLAIMERS AND EXCLUSIONS UNDER THESE TERMS WILL NOT APPLY TO THE EXTENT PROHIBITED BY APPLICABLE LAW.

## 14. Limitation of Liability

Summary: We have limited liability with respect to these Terms.

TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, IN NO EVENT SHALL TURNITIN, ITS AFFILIATES, AGENTS, DIRECTORS, EMPLOYEES, SUPPLIERS OR LICENSORS BE LIABLE FOR ANY INDIRECT, PUNITIVE, INCIDENTAL, SPECIAL, CONSEQUENTIAL OR EXEMPLARY DAMAGES, INCLUDING WITHOUT LIMITATION DAMAGES FOR LOSS OF PROFITS, GOODWILL, USE, DATA OR OTHER INTANGIBLE LOSSES, ARISING OUT OF OR RELATING TO THE USE OF, OR INABILITY TO USE, THIS SERVICE. UNDER NO CIRCUMSTANCES WILL TURNITIN BE RESPONSIBLE FOR ANY DAMAGE, LOSS OR INJURY RESULTING FROM HACKING, TAMPERING OR OTHER UNAUTHORIZED ACCESS OR USE OF THE SERVICE OR YOUR ACCOUNT OR THE INFORMATION CONTAINED THEREIN.

TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, TURNITIN ASSUMES NO LIABILITY OR RESPONSIBILITY FOR ANY (I) ERRORS, MISTAKES, OR INACCURACIES OF CONTENT; (II) PERSONAL INJURY OR PROPERTY DAMAGE, OF ANY NATURE WHATSOEVER, RESULTING FROM YOUR ACCESS TO OR USE OF OUR SERVICE; (III) ANY UNAUTHORIZED ACCESS TO OR USE OF OUR SECURE SERVERS AND/OR ANY AND ALL PERSONAL INFORMATION STORED THEREIN; (IV) ANY INTERRUPTION OR CESSATION OF TRANSMISSION TO OR FROM THE SERVICE; (V) ANY BUGS, VIRUSES, TROJAN HORSES, OR THE LIKE THAT MAY BE TRANSMITTED TO OR THROUGH OUR SERVICE BY ANY THIRD PARTY; (VI) ANY ERRORS OR OMISSIONS IN ANY CONTENT OR FOR ANY LOSS OR DAMAGE INCURRED AS A RESULT OF THE USE OF ANY CONTENT POSTED, EMAILED, TRANSMITTED, OR OTHERWISE MADE AVAILABLE THROUGH THE SERVICE; AND/OR (VII) USER CONTENT OR THE DEFAMATORY, OFFENSIVE, OR ILLEGAL CONDUCT OF ANY THIRD PARTY. IN NO EVENT SHALL TURNITIN, ITS AFFILIATES, AGENTS, DIRECTORS, EMPLOYEES, SUPPLIERS, OR LICENSORS BE LIABLE TO YOU FOR ANY CLAIMS, PROCEEDINGS, LIABILITIES, OBLIGATIONS, DAMAGES, LOSSES OR COSTS IN AN AMOUNT EXCEEDING THE AMOUNT YOU PAID TO TURNITIN HEREUNDER OR $100.00, WHICHEVER IS GREATER.

THIS LIMITATION OF LIABILITY SECTION APPLIES WHETHER THE ALLEGED LIABILITY IS BASED ON CONTRACT, TORT, NEGLIGENCE, STRICT LIABILITY, OR ANY OTHER BASIS, EVEN IF TURNITIN HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGE. THE FOREGOING LIMITATION OF LIABILITY SHALL APPLY TO THE FULLEST EXTENT PERMITTED BY LAW IN THE APPLICABLE JURISDICTION.

SOME STATES DO NOT ALLOW THE EXCLUSION OR LIMITATION OF INCIDENTAL OR CONSEQUENTIAL DAMAGES, SO THE ABOVE LIMITATIONS OR EXCLUSIONS MAY NOT APPLY TO YOU. THESE TERMS GIVES YOU SPECIFIC LEGAL RIGHTS, AND YOU MAY ALSO HAVE OTHER RIGHTS WHICH VARY FROM STATE TO STATE. THE DISCLAIMERS, EXCLUSIONS, AND LIMITATIONS OF LIABILITY UNDER THESE TERMS WILL NOT APPLY TO THE EXTENT PROHIBITED BY APPLICABLE LAW.

Turnitin makes no representations that the Service is appropriate or available for use outside the United States. Those who access or use the Service from other jurisdictions do so at their own volition and are entirely responsible for compliance with all applicable United States and local laws and regulations, including but not limited to export and import regulations. You may not use the Service if you are a resident of a country embargoed by the United States, or are a foreign person or entity blocked or denied by the United States government.

## 15. Governing Law, Arbitration, and Class Action/Jury Trial Waiver

Summary: We are based in California, and any disputes will be arbitrated here. All claims must be brought in the party's individual capacity.

### Governing Law.

This Agreement will be governed by and construed in accordance with the laws of the State of California, without regard to its conflict of laws principles. Each party hereby expressly and irrevocably consents to the exclusive jurisdiction of the state and federal courts located in San Francisco County, California in connection with any action to enforce the provisions of this Agreement, to recover damages or other relief under this Agreement, or otherwise arising under or by reason of this Agreement.

### Arbitration

READ THIS SECTION CAREFULLY BECAUSE IT REQUIRES THE PARTIES TO ARBITRATE THEIR DISPUTES AND LIMITS THE MANNER IN WHICH YOU CAN SEEK RELIEF FROM TURNITIN. For any dispute with Turnitin, you agree to first contact us at legal@turnitin.com and attempt to resolve the dispute with us informally. In the unlikely event that Turnitin has not been able to resolve a dispute it has with you after sixty (60) days, we each agree to resolve any claim, dispute, or controversy (excluding any claims for injunctive or other equitable relief as provided below) arising out of or in connection with or relating to these Terms, or the breach or alleged breach thereof (collectively, "Claims"), by binding arbitration by JAMS, under the Optional Expedited Arbitration Procedures then in effect for JAMS, except as provided herein. JAMS may be contacted at www.jamsadr.com. The arbitration will be conducted in San Francisco County, California, unless you and Turnitin agree otherwise. If you are using the Service for commercial purposes, each party will be responsible for paying any JAMS filing, administrative and arbitrator fees in accordance with JAMS rules, and the award rendered by the arbitrator shall include costs of arbitration, reasonable attorneys' fees and reasonable costs for expert and other witnesses. If you are an individual using the Service for non-commercial purposes: (i) JAMS may require you to pay a fee for the initiation of your case, unless you apply for and successfully obtain a fee waiver from JAMS; (ii) the award rendered by the arbitrator may include your costs of arbitration, your reasonable attorney's fees, and your reasonable costs for expert and other witnesses; and (iii) you may sue in a small claims court of competent jurisdiction without first engaging in arbitration, but this does not absolve you of your commitment to engage in the informal dispute resolution process. Any judgment on the award rendered by the arbitrator may be entered in any court of competent jurisdiction. Nothing in this Section shall be deemed as preventing Turnitin from seeking injunctive or other equitable relief from the courts as necessary to prevent the actual or threatened infringement, misappropriation, or violation of our data security, Intellectual Property Rights or other proprietary rights.

### Class Action/Jury Trial Waiver.

WITH RESPECT TO ALL PERSONS AND ENTITIES, REGARDLESS OF WHETHER THEY HAVE OBTAINED OR USED THE SERVICE FOR PERSONAL, COMMERCIAL OR OTHER PURPOSES, ALL CLAIMS MUST BE BROUGHT IN THE PARTIES' INDIVIDUAL CAPACITY, AND NOT AS A PLAINTIFF OR CLASS MEMBER IN ANY PURPORTED CLASS ACTION, COLLECTIVE ACTION, PRIVATE ATTORNEY GENERAL ACTION OR OTHER REPRESENTATIVE PROCEEDING. THIS WAIVER APPLIES TO CLASS ARBITRATION, AND, UNLESS WE AGREE OTHERWISE, THE ARBITRATOR MAY NOT CONSOLIDATE MORE THAN ONE PERSON'S CLAIMS. YOU AGREE THAT, BY ENTERING INTO THESE TERMS, YOU AND TURNITIN ARE EACH WAIVING THE RIGHT TO A TRIAL BY JURY OR TO PARTICIPATE IN A CLASS ACTION, COLLECTIVE ACTION, PRIVATE ATTORNEY GENERAL ACTION, OR OTHER REPRESENTATIVE PROCEEDING OF ANY KIND.

## 16. General

Summary: We may notify you by emailing you or by posting a notification on our website. These terms and our Privacy Policy are the complete agreement between us, unless we have additional agreements as described below.

### Assignment

These Terms, and any rights and licenses granted hereunder, may not be transferred or assigned by you, but may be assigned by Turnitin without restriction. Any attempted transfer or assignment in violation hereof shall be null and void.

### Notification Procedures and Changes to these Terms

Turnitin may provide notifications, whether such notifications are required by law or are for marketing or other business related purposes, to you via email notice, written or hard copy notice, or through posting of such notice on our website, as determined by Turnitin in our sole discretion. Turnitin reserves the right to determine the form and means of providing notifications to our Users, provided that you may opt out of certain means of notification as described in these Terms. Turnitin is not responsible for any automatic filtering you or your network provider may apply to email notifications we send to the email address you provide us. Turnitin may, in its sole discretion, modify or update these Terms from time to time, and so you should review this page periodically. When we change these Terms in a material manner, we will update the 'last modified' date at the bottom of this page. Your continued use of the Service after any such change constitutes your acceptance of the new Terms of Use. If you do not agree to any of these terms or any future Terms of Use, do not use or access (or continue to access) the Service.

### Entire Agreement/Severability

These Terms, together with any amendments and any additional agreements you may enter into with Turnitin in connection with the Service, shall constitute the entire agreement between you and Turnitin concerning the Service. If any provision of these Terms is deemed invalid by a court of competent jurisdiction, the invalidity of such provision shall not affect the validity of the remaining provisions of these Terms, which shall remain in full force and effect, except that in the event of unenforceability of the universal Class Action/Jury Trial Waiver, the entire arbitration agreement shall be unenforceable.

### No Waiver

No waiver of any term of these Terms shall be deemed a further or continuing waiver of such term or any other term, and Turnitin's failure to assert any right or provision under these Terms shall not constitute a waiver of such right or provision.

### Contact

Please contact us with any questions regarding these Terms.

These Terms were last modified on January 20, 2021.

# 09 | Terms of Use

https://www.turnitin.com/service-terms

Webpage text snapshot | Retrieved 10 October 2026

## TURNITIN SERVICE TERMS

TÉRMINOS DE SERVICIO DE TURNITIN

Last Updated: April 15, 2025

These Service Terms ("Service Terms") govern your use of the applicable Services. All capitalized terms used but not defined in these Service Terms have the meanings ascribed to them in the Turnitin Master Registration Agreement, available at www.turnitin.com/mra or such other applicable agreement between you and us governing your use of the Services (the "Agreement"). For purposes of these Service Terms, "you" and "your" refers to Customers and Authorized Users of the Services, as applicable, and "Your Content" includes any "Customer Content." As between these Service Terms and the Master Registration Agreement, the terms of the Master Registration Agreement will take precedence except for the service-specific terms provided in Section 3 (Turnitin Specific Service Terms) and Section 4 (ExamSoft Specific Service Terms) and any SLAs attached as exhibits hereto.

1. Universal Service Terms (Applicable to All Services).

1.1 Software Transfer Restrictions. You agree not to transfer any software (including related Documentation) obtained from us or a third-party licensor in connection with the Services outside of the Services, unless you have received prior express written authorization from us to do so. Any unauthorized transfer of software may result in termination of your access to the Services.

1.2 Compliance with Documentation. You agree to comply with all current Documentation applicable to the Services, including applicable user, administrator, and developer guidance posted on the Site, available at https://www.turnitin.com/ and https://examsoft.com/product-specifications and any successor or related locations designated by us), or as otherwise made available to you in hard copy or digital format by Turnitin for your use of the Services. It is your responsibility to periodically review the Site for any changes or updates to the Documentation.

1.3 Cooperation. You will provide information or other materials related to Your Content as reasonably requested by us to verify your compliance with the Agreement. You agree to cooperate with us to identify the source of any issues with the Services that we reasonably believe may be attributable to your Content or any Authorized User materials under your control.

1.4 Prohibited Content. In connection with your use of the Services, you are responsible for maintaining valid licenses and adhering to the license terms of any software you use. If we reasonably believe that any of your Content violates the law, infringes or misappropriates the rights of any third party, or otherwise violates a material term of the Agreement (including these Service Terms or the Acceptable Use Policy, available at www.turnitin.com/acceptable-use-policy ("Prohibited Content"), we will notify you of the Prohibited Content and may request that you remove such content from the Services or disable access to it. If you do not remove or disable access to the Prohibited Content within two business days of our notice, then we may remove or disable access to the Prohibited Content or suspend the Services to the extent we are unable to remove or disable access to the Prohibited Content. Notwithstanding the foregoing, we may remove or disable access to any Prohibited Content without prior notice in connection with illegal content, content that may disrupt or threaten the Services, or to comply with Applicable Law or any judicial, regulatory, or other governmental order or request. If we remove Your Content without prior notice, then we will use commercially reasonable efforts to provide prompt notice to you of the removal unless prohibited by Applicable Law. Repeated violations of this Section 1.4 (Prohibited Content) may result in termination of your access to the Services and your account, in our sole discretion.

1.5 Accuracy of Information. You are solely responsible for ensuring the accuracy, truthfulness, and completeness of all information that you provide to us via the Site, including but not limited to information provided during registration for the Services, as well as any Student Personal Data that you provide to us in connection with your use of the Services.

1.6 Maintenance. From time to time, we may apply Updates or other maintenance to the Services and Turnitin Content ("Maintenance"). We will use commercially reasonable efforts to provide you with advance notice of any scheduled Maintenance that may affect your access to the Services. You (i) agree to use reasonable efforts to comply with any Maintenance requirements of which we notify you, and (ii) acknowledge that the Services may be temporarily

unavailable during Maintenance periods.

1.6.1 Availability. We will use commercially reasonable efforts to make the Services available 24 hours per day, 7 days per week, except for:

1.6.1.1 scheduled Maintenance, support, improvements and Updates; and

1.6.1.2 unscheduled Maintenance.

1.6.2 Scheduled Maintenance. We endeavor to schedule and perform scheduled Maintenance between the hours of 11:00 PM – 4:00 AM U.S. Eastern Standard Time. Where possible, we will provide sufficient system redundancy to ensure that the Services remain available during any period of scheduled maintenance.

1.6.3 Unscheduled Maintenance. In the event of an emergency that requires Maintenance or other unavailability outside of the scheduled maintenance window, we will use our best efforts to notify you as soon as reasonably practicable.

1.6.4 Incident Notification. We endeavor to notify you of any extended outage in a reasonable and timely manner. Once an outage is corrected, you will be notified as soon as reasonably practicable.

1.6.5 Service Level Reporting. We utilize internal tools and monitors to determine service availability. At our sole discretion, we may provide you with information from internal monitors to understand the severity of an incident on the Services.

1.6.6 Customer Support. We will provide incident support through our help desk. Help desk support includes general technical information and assistance with problem determination, isolation, verification, and resolution 24 hours per day, 7 days per week excluding United States federal holidays. The help desk may be reached via toll-free telephone at +1 866-816-5046, chat message, or electronic mail at Tiisupport@turnitin.com.

1.7 Confidential Information. In the absence of (i) a Turnitin Confidential Information provision in your Agreement with us, and/or (ii) an effective non-disclosure agreement between you and us, then you agree not to disclose Turnitin Confidential Information (as defined in the Turnitin Master Registration Agreement), except as required by Applicable Law.

1.8 Turnitin Contracting Party. Only the applicable Turnitin Contracting Party (as defined in the Turnitin Master Registration Agreement) will have obligations with respect to each Turnitin account, and no other Turnitin Contracting Party has any obligation with respect to such account. Invoices for each account will reflect the Turnitin Contracting Party that is responsible for that account during the applicable billing period. If the Turnitin Contracting Party responsible for your account changes and you had previously made an up-front payment for any Services to that Turnitin Contracting Party, then that Turnitin Contracting Party may remain the Turnitin Contracting Party for the applicable account only with respect to the Services related to such up-front payment.

1.9 Associated Services. When you use certain Services, you may be able to use or may be required to use one or more other Services (each, an “Associated Service”), and when you use an Associated Service, you are subject to the terms and fees that apply to that Associated Service.

1.10 Service Credits. If an SLA applies to the Services you purchased and you have been charged for a Service period when that Service was unavailable (as defined in the applicable SLA for each Service), you may request a Service credit equal to any charged amounts for such period by contacting the applicable Turnitin Contracting Party.

2. Early Access Services.

2.1 General Information. This Section 2 (Early Access Services) describes the additional terms and conditions under which you may (i) access and use certain features, technologies, and services made available to you by Turnitin that are not yet generally available to the public, including, but not limited to, any products, services, software, or features labeled “beta”, “preview”, “pre-release”, “early access,” “developmental,” or “experimental”, and any related Turnitin Content (each, an “Early Access Service(s)”); or (ii) access and use Services and any related Turnitin Content available in Turnitin regions that are not generally available to the public, including, but not limited to, any Turnitin regions identified by Turnitin as “beta”, “preview”, “pre-release”, “early access,” “developmental,” or “experimental” (each, an “Early Access Region”).

2.2 Compliance with Early Access Terms. You must comply with all terms related to any Early Access Service or Early Access Region as posted on the Site or otherwise made available to you, including in an applicable Order Form. Turnitin may add or modify terms related to your access to or use of any Early Access Services or Early Access Regions

provided via the Site at any time and without prior notice. SLAs will not apply to Early Access Services or Early Access Regions.

2.3 Test Observations. You may provide Turnitin with information relating to your access, use, testing, or evaluation of Early Access Services or Early Access Regions, including observations or information regarding the performance, features, and functionality of Early Access Services or Early Access Regions (“Test Observations”). Turnitin will own and may use and evaluate all Test Observations for its own purposes. You will not use any Test Observations except for your internal evaluation purposes of any Early Access Service or Early Access Region.

2.4 Feedback and Testimonials. As a condition of receiving an Early Access Service and upon Turnitin’s prior written request in an executed Order Form, Turnitin may require you to perform utilization and testing of Early Access Services in real-world environments and provide your Test Observations and Feedback to Turnitin on the results of such utilization and testing on a periodic basis (cadence to be established by mutual agreement). Such Test Observations and Feedback may include, as applicable, information including, without limitation, the design, use, application, operation, and speed of the Early Access Service. After completion of the Early Access Service term, Turnitin may require you to provide—on Turnitin’s behalf—testimonials concerning the Services either in print, by quotation, recorded, or video format. In addition, and only at Turnitin’s prior written request and expense, Turnitin may require that you participate with us in presenting the Early Access Services in a meeting or conference environment. You acknowledge that Turnitin may modify, adapt, and use any of the foregoing testimonials in marketing and promotional purposes, and you agree to cooperate with Turnitin in mutually agreed additional use cases (if agreed in writing between you and us).

2.5 Confidentiality of Early Access Services. Test Observations and Feedback concerning an Early Access Service or Early Access Region, and any other information about or involving (including the existence of) any Early Access Service or Early Access Region are considered Turnitin Confidential Information and are subject to the confidentiality provisions in the Agreement.

2.6 Termination of Early Access Services. Turnitin may suspend or terminate your access to or use of any Early Access Service or Early Access Region at any time and without prior notice. Your access to and use of each Early Access Service and Early Access Region will automatically terminate upon the release of a generally available version of the applicable Early Access Service or Early Access Region or upon notice of termination by Turnitin, whichever occurs first. Notwithstanding anything to the contrary in the Agreement or these Service Terms, after suspension or termination of your access to or use of any Early Access Service or Early Access Region for any reason, (a) you will not have any further right to access or use the applicable Early Access Service or Early Access Region, and (b) Your Content used in the applicable Early Access Service or Early Access Region may be deleted or made inaccessible to you.

2.7 Testing, Benchmarking, and Other Initiatives. Testing, benchmarking and other performance-related development initiatives may be ongoing during the period in which the Early Access Services are made available to you. By accepting and using the Early Access Services, you acknowledge that the Early Access Services may not be fully-functioning or functioning as designed and further acknowledge that you may experience issues with regard to Early Access Service availability, reliability, and stability.

2.8 NO WARRANTY; DISCLAIMER OF DAMAGES; LIMITATION OF DAMAGES. DURING THE EARLY ACCESS SERVICE TERM, BECAUSE TURNITIN IS SUPPLYING THE EARLY ACCESS SERVICE TO YOU ON A TEST BASIS, AND NOTWITHSTANDING ANY OTHER PRODUCT OR SERVICE WARRANTY PROVIDED IN THE AGREEMENT, TURNITIN IS MAKING THE EARLY ACCESS SERVICE AVAILABLE TO YOU ‘‘AS IS’’ FOR EVALUATION ONLY, AND ACCORDINGLY MAKES NO WARRANTIES WHATSOEVER, EXPRESS OR IMPLIED, WHETHER ORAL OR WRITTEN, WITH RESPECT TO THE SOFTWARE, INCLUDING WITHOUT LIMITATION ANY IMPLIED WARRANTIES OF MERCHANTABILITY, OF FITNESS FOR A PARTICULAR PURPOSE OR NON-INFRINGEMENT, OR ARISING FROM USAGE OF TRADE OR COURSE OF DEALING OR PERFORMANCE. YOU AGREE NOT MAKE ANY CLAIM OR FILE ANY SUIT AGAINST TURNITIN, WHETHER IN CONTRACT, TORT, STRICT LIABILITY OR OTHERWISE REGARDING ANY ASPECT OF THE PERFORMANCE OR NON-PERFORMANCE OF THE EARLY ACCESS SERVICE, AND YOU HEREBY IRREVOCABLY WAIVE ANY RIGHTS, IF ANY, WHICH YOU MAY HAVE TO DIRECT, INDIRECT, SPECIAL OR CONSEQUENTIAL DAMAGES ARISING FROM THE PERFORMANCE OR NON-PERFORMANCE OF THE EARLY ACCESS SERVICE, EVEN IF TURNITIN HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES. ANY DAMAGES AWARDED AGAINST TURNITIN, WHETHER ARISING IN CONTRACT, TORT OR STRICT LIABILITY SHALL NOT EXCEED AN AMOUNT GREATER THAN $100.00.

3. Turnitin Specific Service Terms.

3.1 Turnitin Feedback Studio with Originality/Similarity/SimCheck/Clarity/OC and OC+ Services.

3.1.1 Turnitin agrees to, with respect to the Turnitin Feedback Studio, Turnitin Similarity, SimCheck, Turnitin Feedback Studio with Originality, Clarity, OC and OC+ Services and their components, enable Instructors to create Instructor accounts and, enable Students to create Student accounts in the Service.

3.1.2 With respect to your and your Authorized Users' use of Turnitin Similarity, SimCheck, and Turnitin Feedback Studio with Originality Services and their components, Turnitin strongly recommends that You will:

3.1.2.1 Not make statements to Students that You are using the Turnitin Feedback Studio Service in a given class when such class is not actually using the Turnitin Feedback Studio Service. Further, even within a particular class using the Turnitin Feedback Studio Service, for purposes of fairness and equal application, Turnitin strongly recommends requiring Student submission of all Student Papers rather than submission by Instructors only of Student Papers singled out by Instructor);

3.1.2.2 In the course syllabus of each course making use of the Service, carry a notice substantially similar to the effect of the following: "By taking this course, student agrees that all submitted papers are subject to verification and review by Turnitin (including through use of artificial intelligence or similar detection tools) to assess in-product writing behavior to provide instructors with insight into your writing process, and to asses textual similarity for the detection of potential plagiarism and writing that is likely generated by AI. All submitted papers will be included as source documents in the Turnitin reference database solely for the purpose of detecting plagiarism of such papers. Use of the Turnitin products and services is subject to the Acceptable Use Policy posted on www.turnitin.com/acceptable-use-policy If use of the Service is instituted after distribution of the syllabus, then You will consider Turnitin's strong recommendation to require each Instructor to provide Students with equivalent written notice of use of the Turnitin services in each instance; and

3.1.2.3 Ensure that all Students enrolling at your institution receive clear notice in their Student handbook (or comparable communication) at the time of enrollment that you use the Turnitin Services.

3.2 Turnitin AI Writing Assistance and Composition Services

3.2.1 Feature Scope and User Content. Turnitin may offer features that assist Users in the writing process, including AI-generated prompts and output, grammar suggestions, paraphrasing tools, and similar writing support ("AI Writing Assistance"). Users may submit and edit written content ("Compostions") directly within the Services. Compositions are part of Your Content under the Agreement.

3.2.2 Usage Data and Writing Process Data. Turnitin may collect metadata and writing process data from Users' interactions with the AI Writing Assistance features, including information such as input prompts, selected suggestions, engagement duration, cursor activity, and revision patterns ("writing process data"). This data may be stored and used to: (i) deliver the Services; (ii) support troubleshooting and debugging; (iii) evaluate feature performance; (iv) develop and enhance Turnitin's AI systems and writing assistance tools, using aggregated, de-identified, or pseudonymized data unless otherwise authorized by the Customer.

3.2.3 Feedback and Interaction Data. Users may be invited to provide feedback on AI suggestions. Such feedback and related interaction data may be retained and used by Turnitin to train machine learning models and improve feature accuracy.

3.2.4 Ownership and Usage Rights. Turnitin retains all rights, title, and interest in and to any models, algorithms, and software developed as a result of usage and writing process data.

3.2.5 Use of Third Party AI Models. Some AI Writing Assistance features may be powered by third-party machine learning or large language models. These third-party modules are integrated into the Services to deliver enhanced functionality, including natural language suggestions, composition assistance, structural and grammar corrections, full or partial drafts, and paraphrasing capabilities. Turnitin may change or substitute third-party models at its sole discretion, and Turnitin is not responsible for any interruptions, degradations in performance, or unavailability of Services due to third-party downtime or changes and such issues shall not constitute a breach of the Agreement or entitle Customer to service credits. Turnitin makes no representations or warranties regarding the availability, accuracy, or reliability of content generated by such models.

3.2.6 Early Access Notice. Certain AI Writing Assistance features may be made available as Early Access Services under Section 2. Users acknowledge that AI Writing Assistance features may be under development and may not function without errors or interruptions. Feedback and usage data during Early Access may be used to evaluate and

improve such features.

3.2.7 Disclosure and Customer Responsibility. Customer shall ensure that Students and Educators are notified of the use of AI Writing Assistance features in accordance with applicable laws and institutional policies, including in course syllabi, enrollment communications, or other appropriate materials.

3.2.8 No Automated Decision Making. Turnitin's AI Writing Assistance features do not make decisions that produce legal or similarly significant effects for Users. Content suggestions and responses to user prompts are non-binding, are used solely at the discretion of Users, and are not determinative assessments of a User's work.

3.3 iThenticate Service. With respect to Your use of the iThenticate Service, the license granted in the Agreement is restricted as follows: if Your institution becomes known as a service through which Students, researchers or other individuals can obtain papers or portions of papers for submission as their own original work (e.g., becomes or partners with a "paper or essay mill" -- a ghostwriting service that sells essays, papers, and other homework writing), the Parties agree to meet and confer in good faith to address the issue. If the Parties are unable to resolve the issue within 30 days, then Turnitin may terminate the Agreement and your access to the Services at its discretion without further obligation.

3.3 Professional Services/Training. Professional Services/Training shall be in accordance with any Order Form. Turnitin and you agree training is most helpful if conducted early in your term of service, and you and Turnitin further agree to work in good faith to schedule and complete training within a reasonable period after the start of term of service or within the timeframe set out by the Parties.

3.3.1 Training Term and Expiration. Notwithstanding anything to the contrary in any such separate purchase order, in-person or live training must be completed within twelve (12) months of the start of Turnitin/iThenticate service, or the expiration of the Term in which training was licensed, whichever is earlier ("Training Term Expiry"). If Training is not completed by Training Term Expiry, Turnitin shall make reasonable efforts to furnish you access to training materials in lieu of training. Turnitin and you agree the foregoing shall constitute and fulfill Turnitin's Training obligation.

3.3.2 Changes or Cancellation. If you must reschedule training, Turnitin shall make reasonable efforts to accommodate such request. There are no refunds In the event of change or cancellation.

4. ExamSoft Specific Service Terms.

4.1 EULA. In order for a Student to access and use the examinee testing software portion of the ExamSoft Services, the Student will be required in some instances to download or otherwise access the Portal Services on or from the Student's own device(s). As a condition precedent to the Student accessing and using the ExamSoft Services, the Student will be required to agree to the End User License Agreement ("EULA"), available at https://examsoft.com/es/eula/ which the Student must accept (through an electronic acceptance process) in order to use the ExamSoft Services. For purposes of ensuring Service quality, support, account control, assessment integrity, and assessment-related assistance, in the course of provision of the ExamSoft Service and prior to granting a Student access, the Student will be required to consent to ExamSoft's collection of Test Data, which includes authorization of the collection of Test Data to enable us to provide the ExamMonitor Services (as described below).

4.2 EULA Requirements; Onboarding Assistance. You acknowledge that the requirements in Section 4.1. (EULA) above are a condition precedent to Students' access to and use of the examinee testing software portion of the ExamSoft Services, and you agree to provide us with reasonable assistance in the process of onboarding Students for use of the ExamSoft Services in furtherance of the foregoing.

4.3 Key Administrators. We will provide Internet-based pages on the Site for your use in assessment and program administration. You will assign one or more Key Administrators to serve as ExamSoft's primary point(s) of contact with you on software-related issues who will have password-protected access to the ExamSoft user portal. You (a) must maintain, and will instruct Authorized Users to maintain, the confidentiality of these passwords, and (b) are responsible for their security. "Key Administrator" means your designated point of contact, tasked with receiving updates and other information from ExamSoft, and directing questions to ExamSoft, having top level access rights to the Portal Services.

4.4 Security Breach Notification. If there is a breach of ExamSoft's security through your account, then you will immediately (which in no case will exceed 48 hours after you first became aware of, or first suspected, the breach) notify us of such breach. You may request that ExamSoft change or cause to be changed any affected password, as applicable.

4.5 ExamSoft Product/Services Special Terms.

4.5.1 Clinical Judgement Exam - Consent to Notice of Data Transfer to Third Party. In the course of using the ExamSoft Services, you may provide us with access to certain Student personally identifiable information from education records pursuant to 34 CFR § 99.31(a)(1)(i) and promulgated pursuant to the Family Educational Rights and Privacy Act (FERPA). In the course of performing the ExamSoft Services under the Agreement between ExamSoft and you, the ExamSoft Service generates certain Student results data. ExamSoft is offering additional Services, which you have ordered entitled Clinical Judgment Exams module (CJE), which ExamSoft provides in partnership with third parties.

As part of the ExamSoft Service, the third party analyzes Student result data in order to validate assessment item performance and maintain and improve the quality of the offering. Under FERPA, ExamSoft may only disclose Student performance data to the third party if explicitly authorized by you. This authorization is required to provide the ExamSoft Services and ensure ongoing benchmark validity.

You acknowledge that you have a contractual relationship in place with ExamSoft that requires ExamSoft to deliver performance data to the third party to enable the third party to perform psychometric analysis and quality control to deliver quality assessments and psychometrically valid benchmarks. You acknowledge that you have undertaken appropriate record keeping under 34 CFR § 99.33(b).

You certify to ExamSoft that you have been granted authority sufficient to provide this consent. You consent to permitting us to transmit Student result data to third parties to perform psychometric analysis and quality control on assessment items that you have purchased from ExamSoft.

4.5.2 Pharmacy Benchmark Exams - Consent to Notice of Data Transfer to Third Party. In the course of using the ExamSoft Services, you may provide us with access to certain Student personally identifiable information from education records pursuant to 34 CFR § 99.31(a)(1)(i) and promulgated pursuant to the Family Educational Rights and Privacy Act (FERPA). In the course of performing the ExamSoft Services under the Agreement between ExamSoft and you, the ExamSoft Service generates certain Student results data.

ExamSoft is offering additional Services, which you have ordered entitled Pharmacy Benchmark Exams module, which ExamSoft provides in partnership with third parties.

As part of the ExamSoft Service, the third party analyzes Student result data in order to validate assessment item performance and maintain and improve the quality of the offering. Under FERPA, ExamSoft may only disclose Student performance data to the third party if explicitly authorized by you. This authorization is required to provide the ExamSoft Services and ensure ongoing benchmark validity.

You acknowledge that you have a contractual relationship in place with ExamSoft that requires ExamSoft to deliver performance data to the third party to enable the third party to perform psychometric analysis and quality control to deliver quality assessments and psychometrically valid benchmarks. You acknowledge that you have undertaken appropriate record keeping under 34 CFR § 99.33(b).

You certify to ExamSoft that you have been granted authority sufficient to provide this consent. You consent to permitting us to transmit Student result data to third parties to perform psychometric analysis and quality control on assessment items that you have purchased from ExamSoft.

4.6 ExamMonitor Services - Consent to Notice of Data Transfer to Third Party

ExamSoft Services may capture video recordings of Students while they complete an assessment. ExamSoft will use these video recordings to provide certain “ExamMonitor Services” (as described below), which ExamSoft provides in partnership with a third-party proctoring provider.

4.6.1 As part of the ExamMonitor Service, a third-party proctoring provider will analyze Student video recordings to generate exam analysis reports which permit you to evaluate whether a Student is engaged in suspicious behavior in the course of an assessment.

4.6.2 By using the ExamSoft Services, you acknowledge and agrees that (i) ExamSoft is permitted to deliver exam analysis reporting using a third-party proctoring provider, (ii) ExamSoft may disclose to the third-party proctoring provider Student Data to permit the third-party proctoring provider to perform analysis of Student videos, and (iii) you have undertaken appropriate record-keeping for these purposes pursuant to 34 CFR § 99.33(b).

4.7 ExamSoft Services Limited Warranty.

4.7.1 ExamSoft warrants to you that for the term of the Agreement, the ExamSoft Services will substantially conform to the product specifications found at https://examsoft.com/product-specifications (“ExamSoft Product Specifications”), if:

(a) a Student operates the ExamSoft Service as required by the Agreement, and, properly follows all installation instructions and any recommendations of ExamSoft technical support staff; (b) any computer running the ExamSoft Service (or software) is in proper working order; (c) the Student's computer complies with the minimum specification requirements set forth on the ExamSoft website and Authorized User Portal.

4.7.2 ExamSoft may modify the ExamSoft Product Specifications from time to time, including without limitation, where ExamSoft modifies or enhances ExamSoft Services and/or software functionalities.

4.7.3 If the ExamSoft Service fails to conform to the foregoing warranty, ExamSoft will, as its sole obligation, and your sole remedy (a) use commercially reasonable efforts to correct the non-conformity, and to redeliver the corrected ExamSoft Service to you; or (b) where ExamSoft cannot correct the non-conformity, refund to you the fees paid for the non-conforming ExamSoft Service.

4.7.4 The foregoing shall be your sole and exclusive remedy for breach of warranty under this Section 4.7.

5. Dual Deploy Offer Terms & Conditions

These Terms govern your participation in the Dual Deploy Offer provided by Turnitin, LLC ("Turnitin"). By accepting the Dual Deploy Offer, you agree to these Terms and to our Privacy Policy (located at https://guides.turnitin.com/hc/en-us/articles/27377195682317-Turnitin-Services-Privacy-Policy.) In these Terms, the word "Offer" refers to the Dual Deploy Offer and the services provided under this Offer.

5.1 Eligibility

The Offer is exclusively available to customers in good standing, who hold both enterprise licenses for Turnitin Feedback Studio ("TFS") and Gradescope. Both licenses must be active for the duration of the Offer term. Customers must also purchase Paper to Digital eLearning to be eligible for the Offer.

5.2 Offer Terms

The Offer provides access to Paper to Digital at no additional cost for a period of one (1) year from the offer acceptance date. The term of the Offer shall not exceed the expiration date of either the customer's TFS or Gradescope license, whichever comes first.

5.3 Annual Review and Continuation

Availability of the Offer will be determined annually by Turnitin. Turnitin will review the Dual Deploy program annually and reserves the right to modify, renew, or discontinue the Offer at its sole discretion.Customers will be notified of any changes to the program at least thirty (30) days prior to their renewal date. Renewal of the Offer is contingent upon the customer maintaining eligible enterprise licenses for both TFS and Gradescope. For customers with multi-year contracts, eligibility for the Offer will be evaluated annually.

5.4 Term and Renewal

The Offer is limited to a one year term, with the possibility of renewal as long as the eligibility requirements are met. Multi-year contracts must undergo an annual evaluation to determine if the customer is still eligible for the Offer. Turnitin reserves the right to discontinue the Offer for subsequent years of a multi-year contract if the customer no longer meets the eligibility criteria or if Turnitin decides to modify or discontinue the program.

5.5 Pricing and Approval

The Offer provides Paper to Digital at no additional cost to eligible customers.

5.6 Training

Customers accepting the Offer must also purchase and complete the Paper to Digital eLearning training.

5.7 Offer Limitations

TFS customers who purchase Paper to Digital but do not have Gradescope will not receive access to Gradescope or any other products or services through this Offer. The Offer does not grant access to any additional products or services beyond Paper to Digital. TFS customers who do not have an enterprise Gradescope license are not eligible for this Offer and do not gain access to Gradescope through this program.

5.8 Feedback and Product Development

By accepting this Offer, customers agree to grant Turnitin a non-exclusive, worldwide, royalty-free license to use any feedback, suggestions, or ideas provided regarding Paper to Digital for product improvement and development purposes.

5.9 Privacy and Data Protection

By accepting this Offer, customer acknowledges and agrees that: (a) Turntin will process customer data in accordance with applicable data protection laws; and (b) Turnitin will implement appropriate technical and organizational measures to protect customer data against unauthorized access, loss, or disclosure.

5.10 Licenses for Provision of Service and Product Development

Customer hereby grants to Turnitin, its Affiliates, and its third-party vendors a non-exclusive, worldwide, royalty-free license to:

(a) Provide the services in accordance with the Offer and any applicable order form;

(b) Access, use, reproduce, modify, adapt, publish, translate, create derivative works from, distribute, and display Customer content and user data as necessary for Turnitin’s provision of the Offer;

(c) Create benchmarks assessing Customer and Customer-based performance and Offer utilization;

(d) Offer suggestions to the Customer regarding service improvement;

(e) Engage in uses required by applicable law, including but not limited to making disclosures to law enforcement pursuant to investigations; and

(f) Create Anonymized, Aggregated, and/or De-Identified Data from Customer content.

Customer shall retain sole responsibility for the accuracy, quality, integrity, legality, reliability, and appropriateness of all user data and any information provided to Turnitin. The Customer is responsible for obtaining and maintaining the requisite copyright or other intellectual property rights relating to such data, ensuring that these rights are sufficient to grant the licenses provided herein.

Furthermore, Customer grants to Turnitin and its Affiliates a perpetual, irrevocable, non-exclusive, royalty-free, transferable, and sublicensable license to use Customer data, user data, and submissions (in whole or in part) for the purpose of developing, enhancing, or refining Turnitin’s existing products and services, as well as for the development of new products and services, including those that leverage artificial intelligence. This usage by Turnitin and its Affiliates shall be conducted in a manner that ensures that any such data is Anonymized, De-Identified, and/or Aggregated, so that neither Customer nor its users are identifiable.

5.11 Termination

Turnitin reserves the right to terminate the Offer for a customer if either their TFS or Gradescope license is terminated or downgraded from enterprise level. Upon termination of the Offer, access to Paper to Digital will be discontinued unless separately licensed.

5.12 Modifications

Turnitin reserves the right to modify these terms and conditions at any time. Changes will be communicated to participating customers and will take effect upon the next renewal date.

By accepting the Offer, customers acknowledge that they have read, understood, and agree to be bound by these terms and conditions.The annual review process and potential changes to the Offer will be communicated by sales leadership as part of the ongoing engagement and contract management.

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## TÉRMINOS DE SERVICIO DE TURNITIN

Última actualización: 25 de abril de 2025

Los presentes Términos de servicio ("Términos de servicio") regulan el uso que hagas de los Servicios aplicables. Todos los términos en mayúsculas que se utilicen pero no se definan en estos Términos de servicio tienen el significado que se les atribuye en el Acuerdo marco de registro de Turnitin, disponible en www.turnitin.com/mra, o cualquier otro acuerdo aplicable entre tú y nosotros que rija tu uso de los Servicios (el "Acuerdo"). A efectos de estos Términos de

servicio, "tú" y "tu" se refieren a los Clientes y Usuarios autorizados de los Servicios, según corresponda, y "Tu contenido" incluye cualquier "Contenido del cliente". Entre estos Términos de servicio y el Acuerdo marco de registro, prevalecerán los términos del Acuerdo marco de registro, a excepción de los términos específicos del servicio estipulados en la sección 3 (Términos de servicio específicos de Turnitin) y la sección 4 (Términos de servicio específicos de ExamSoft) y cualquier acuerdo de nivel de servicio (SLA) que se adjunte como anexo en el presente.

1. Términos universales del servicio (aplicables a todos los servicios).

1.1 Restricciones a la transferencia de software. Te comprometes a no transferir ningún software (incluida la Documentación relacionada) que obtengas de nuestra parte o de un tercero licenciante en relación con los Servicios fuera de los Servicios, a menos que hayas recibido nuestra autorización previa, expresa y por escrito para hacerlo. Cualquier transferencia no autorizada de software puede llevar a la rescisión de tu acceso a los Servicios.

1.2 Cumplimiento de la Documentación. Aceptas cumplir con toda la Documentación vigente aplicable a los Servicios, incluidas las directrices aplicables para usuarios, administradores y desarrolladores publicadas en el Sitio, disponibles en https://www.turnitin.com/ y https://examsoft.com/product-specifications, y en cualquier ubicación sucesora o relacionada que designemos), o que Turnitin ponga a tu disposición en formato impreso o digital para que uses los Servicios. Es tu responsabilidad revisar de manera periódica el Sitio para comprobar si se produjeron cambios o actualizaciones en la Documentación.

1.3 Cooperación. Proporcionarás la información u otros materiales relacionados con Tu contenido que te solicitemos razonablemente para verificar tu cumplimiento del Acuerdo. Aceptas cooperar con nosotros para identificar el origen de cualquier problema con los Servicios que razonablemente creamos que pueda atribuirse a Tu contenido o a cualquier material de los Usuarios autorizados bajo tu control.

1.4 Contenido prohibido. En relación con el uso que hagas de los Servicios, eres responsable de mantener licencias válidas y cumplir con los términos de licencia de cualquier software que utilices. Si creemos razonablemente que alguna parte de Tu contenido infringe la ley, vulnera o se apropia de manera indebida de los derechos de un tercero, o infringe de cualquier otro modo una cláusula sustancial del Acuerdo (incluidos estos Términos de servicio o la Política de usos aceptables, disponible en www.turnitin.com/acceptable-use-policy ("Contenido prohibido"), te notificaremos el Contenido prohibido y podremos solicitarte que lo elimines de los Servicios o que deshabilites su acceso. Si no eliminas o deshabilitas el acceso al Contenido prohibido en el plazo de dos días hábiles a partir de nuestro aviso, podremos eliminar o deshabilitar el acceso al Contenido prohibido o suspender los Servicios en la medida en que no seamos capaces de eliminar o deshabilitar el acceso a dicho contenido. Sin perjuicio de lo anterior, podremos eliminar o deshabilitar el acceso a cualquier Contenido prohibido sin previo aviso en relación con contenidos ilegales o que puedan perturbar o amenazar los Servicios, o para cumplir la Legislación vigente o cualquier orden o petición judicial, reglamentaria o gubernamental. Si eliminamos Tu contenido sin previo aviso, haremos todo lo comercialmente razonable para notificártelo sin demora, a menos que lo prohíba la Legislación vigente. El incumplimiento reiterado de esta sección 1.4 (Contenido prohibido) puede llevar a la rescisión de tu acceso a los Servicios y a tu cuenta, a nuestra entera discreción.

1.5 Exactitud de la información. Eres el único responsable de garantizar la exactitud, veracidad e integridad de toda la información que nos proporciones a través del Sitio, incluida, a mero título enunciativo, la información facilitada durante el registro en los Servicios, así como cualquier Dato personal de los estudiantes que nos proporciones en relación con el uso que hagas de los Servicios.

1.6 Mantenimiento. Cada cierto tiempo, podemos aplicar Actualizaciones u otro tipo de mantenimiento a los Servicios y al Contenido de Turnitin ("Mantenimiento"). Haremos todos los esfuerzos comercialmente razonables para avisarte con antelación sobre cualquier Mantenimiento programado que pueda afectar a tu acceso a los Servicios. Tú (i) aceptas realizar esfuerzos razonables para cumplir con cualquier requisito de Mantenimiento que te notifiquemos, y (ii) reconoces que los Servicios pueden no estar disponibles de manera temporal durante los periodos de Mantenimiento.

1.6.1 Disponibilidad. Haremos todos los esfuerzos comercialmente razonables para que los Servicios estén disponibles las 24 horas al día, los 7 días a la semana, excepto para lo siguiente:

1.6.1.1 Mantenimiento, soporte, mejoras y Actualizaciones programados, y

1.6.1.2 Mantenimiento no programado.

1.6.2 Mantenimiento programado. Nos esforzamos por programar y realizar el Mantenimiento programado entre las 23:00 h y las 4:00 h, hora estándar del este de EE. UU. Siempre que sea posible, proporcionaremos suficiente

redundancia del sistema para garantizar que los Servicios sigan estando disponibles durante cualquier periodo de mantenimiento programado.

1.6.3 Mantenimiento no programado. En caso de una emergencia que requiera Mantenimiento u otra indisponibilidad fuera del periodo de mantenimiento programado, haremos todo lo posible para notificártelo tan pronto como sea razonablemente posible.

1.6.4 Notificación de incidentes. Nos esforzamos por notificarte cualquier interrupción prolongada de manera razonable y oportuna. Una vez que se corrija la interrupción, se te notificará tan pronto como sea razonablemente posible.

1.6.5 Informes sobre el nivel de servicio. Utilizamos herramientas y monitores internos para determinar la disponibilidad del servicio. A nuestra entera discreción, podemos proporcionarte información por parte de monitores internos para comprender la gravedad de un incidente en los Servicios.

1.6.6 Atención al cliente. Proporcionaremos soporte en caso de incidentes a través de nuestro servicio de asistencia. El soporte de asistencia incluye información técnica general y ayuda para determinar, aislar, verificar y resolver problemas las 24 horas al día, los 7 días a la semana, excepto los días festivos federales de Estados Unidos. Puedes ponerte en contacto con el servicio de asistencia a través del teléfono gratuito +1 866-816-5046, el chat o el correo electrónico Tiisupport@turnitin.com.

1.7 Información confidencial. En ausencia de (i) una disposición sobre la Información confidencial de Turnitin en tu Acuerdo con nosotros, o (ii) un acuerdo de no divulgación efectivo entre tú y nosotros, te comprometes a no divulgar la Información confidencial de Turnitin (tal y como se define en el Acuerdo marco de registro de Turnitin), salvo que lo exija la Ley vigente.

1.8 Parte contratante de Turnitin. Sólo la Parte contratante de Turnitin aplicable (tal y como se define en el Acuerdo marco de registro de Turnitin) tendrá obligaciones con respecto a cada cuenta de Turnitin, y ninguna otra Parte contratante de Turnitin tendrá obligación alguna con respecto a dicha cuenta. Las facturas de cada cuenta reflejarán la Parte contratante de Turnitin responsable de dicha cuenta durante el periodo de facturación aplicable. Si la Parte contratante de Turnitin responsable de tu cuenta cambia y realizaste previamente un pago por adelantado por cualquiera de los Servicios a esa Parte contratante de Turnitin, dicha Parte podrá seguir siendo la Parte contratante de Turnitin para la cuenta aplicable sólo con respecto a los Servicios relacionados con dicho pago por adelantado.

1.9 Servicios asociados. Cuando utilices determinados Servicios, es posible que puedas utilizar o se te exija que utilices uno o más Servicios (cada uno de ellos, un «Servicio asociado»), y cuando utilices un Servicio asociado, estarás sujeto a los términos y las tarifas aplicables a dicho Servicio asociado.

1.10 Créditos por servicio. Si se aplica un acuerdo de nivel de servicio (SLA) a los Servicios que adquiriste y se te cobraron por un periodo de Servicio en el que dicho Servicio no estaba disponible (según se define en el SLA aplicable para cada Servicio), puedes solicitar un crédito de Servicio igual a cualquier importe cobrado por dicho periodo poniéndote en contacto con la Parte contratante de Turnitin correspondiente.

2. Servicios de acceso anticipado..

2.1 Información general. En esta Sección 2 (Servicios de acceso anticipado) se describen los términos y condiciones adicionales en virtud de los cuales podrás (i) acceder y utilizar funciones, tecnologías y servicios determinados que Turnitin pone a tu disposición que aún no están disponibles para el público en general, incluidos, entre otros, los productos, los servicios, el software o las funciones etiquetados como «beta», «versión preliminar», «prelanzamiento», «acceso anticipado», «en desarrollo» o «experimental», así como cualquier Contenido de Turnitin relacionado (cada uno de ellos, un «Servicio de acceso anticipado»), o (ii) acceder y utilizar los Servicios y cualquier Contenido de Turnitin relacionado disponible en las áreas de Turnitin que no estén disponibles para el público en general, incluidas, entre otras, las áreas de Turnitin identificadas por Turnitin como «beta», «versión preliminar», «prelanzamiento", «acceso anticipado», «en desarrollo» o «experimental» (cada una de ellas, un «Área de acceso anticipado»).

2.2 Cumplimiento de los términos de acceso anticipado. Deberás cumplir con todos los términos relacionados con cualquier Servicio de acceso anticipado o Área de acceso anticipado que se publiquen en el Sitio o que se pongan a tu disposición de cualquier otra forma y que estén incluidos en un Formulario de pedido aplicable. Turnitin podrá agregar o modificar los términos relacionados con tu acceso o uso de cualquiera de los Servicios o las Áreas de acceso anticipado proporcionados a través del Sitio en cualquier momento y sin previo aviso. Los SLA no se aplicarán a los Servicios ni a las Áreas de acceso anticipado.

2.3 Observaciones de pruebas. Puedes proporcionar a Turnitin información relacionada con tu acceso, uso, prueba o evaluación de los Servicios o las Áreas de acceso anticipado, incluidas observaciones o información sobre el rendimiento, las características y la funcionalidad de los Servicios o las Áreas de acceso anticipado («Observaciones de pruebas»). Turnitin será el propietario, y podrá utilizar y evaluar todas las Observaciones de pruebas para sus propios fines. No utilizarás las Observaciones de pruebas excepto para tus fines de evaluación interna de cualquier Servicio o Área de acceso anticipado.

2.4 Comentarios y testimonios. Como condición para recibir un Servicio de acceso anticipado y previa solicitud por escrito de Turnitin en un Formulario de pedido ejecutado, Turnitin podrá solicitarte que uses y pruebes los Servicios de acceso anticipado en entornos reales y que proporciones tus Observaciones de pruebas y Comentarios a Turnitin sobre los resultados de dicha utilización y prueba de forma periódica (cadencia que se establecerá de mutuo acuerdo). Tales Observaciones y Comentarios de pruebas pueden incluir, según corresponda, información que incluya, con carácter enunciativo, pero no limitativo, el diseño, el uso, la aplicación, el funcionamiento y la velocidad del Servicio de acceso anticipado. Cuando finalice el plazo del Servicio de acceso anticipado, Turnitin podrá solicitarte que proporciones, en nombre de Turnitin, testimonios relativos a los Servicios, ya sea en formato impreso o mediante cita, grabación o video. Además, y sólo previa solicitud por escrito y a cargo de Turnitin, Turnitin podrá exigirte que participes con nosotros en la presentación de los Servicios de acceso anticipado en una reunión o conferencia. Reconoces que Turnitin puede modificar, adaptar y utilizar cualquiera de los testimonios anteriores con fines promocionales y de marketing, y aceptas cooperar con Turnitin en casos de uso adicionales de mutuo acuerdo (si se acuerda por escrito entre tú y nosotros).

2.5 Confidencialidad de los Servicios de acceso anticipado. Las Observaciones y los Comentarios de pruebas relativos a un Servicio o Área de acceso anticipado, y cualquier otra información sobre un Servicio o Área de acceso anticipado o relacionada con estos (incluida la existencia de estos) se consideran Información confidencial de Turnitin y están sujetos a las disposiciones de confidencialidad que figuran en el Acuerdo.

2.6 Rescisión de los Servicios de acceso anticipado. Turnitin podrá suspender o rescindir tu acceso o uso de cualquier Servicio o Área de acceso anticipado en cualquier momento y sin previo aviso. Tu acceso y uso de cada Servicio o Área de acceso anticipado finalizará de manera automática cuando se publique una versión de disponibilidad general del Servicio o Área de acceso anticipado correspondiente o cuando Turnitin te notifique la rescisión, lo que ocurra primero. Sin perjuicio de cualquier disposición en contrario del Acuerdo o de estos Términos de servicio, tras la suspensión o rescisión de tu acceso o uso de cualquier Servicio o Área de acceso anticipado por cualquier motivo, (a) no tendrás ningún otro derecho a acceder a o utilizar el Servicio o Área de acceso anticipado aplicable, y (b) Tu contenido utilizado en el Servicio o Área de acceso anticipado aplicable podrá eliminarse o quedar inaccesible para ti.

2.7 Pruebas, análisis comparativos y otras iniciativas. Durante el periodo en que los Servicios de acceso anticipado estén a tu disposición, es posible que se lleven a cabo pruebas, análisis comparativos y otras iniciativas de desarrollo relacionados con el rendimiento. Al aceptar y utilizar los Servicios de acceso anticipado, reconoces que es posible que dichos Servicios no funcionen por completo o según lo diseñado, y reconoces además que puedes experimentar problemas con respecto a la disponibilidad, fiabilidad y estabilidad de los Servicios de acceso anticipado.

2.8 SIN GARANTÍA; EXENCIÓN DE RESPONSABILIDAD POR DAÑOS; LIMITACIÓN DE DAÑOS. DURANTE LA VIGENCIA DEL SERVICIO DE ACCESO ANTICIPADO, DADO QUE TURNITIN TE ESTÁ SUMINISTRANDO DICHO SERVICIO A MODO DE PRUEBA, Y SIN PERJUICIO DE CUALQUIER OTRA GARANTÍA DE PRODUCTO O SERVICIO PREVISTO EN EL ACUERDO, TURNITIN PONE A TU DISPOSICIÓN EL SERVICIO DE ACCESO ANTICIPADO «TAL Y COMO SE ENCUENTRA», SÓLO PARA SU EVALUACIÓN, Y, EN CONSECUENCIA, NO OFRECE NINGÚN TIPO DE GARANTÍA, EXPRESA O IMPLÍCITA, YA SEA ORAL O ESCRITA, CON RESPECTO AL SOFTWARE, INCLUIDAS, A TÍTULO MERAMENTE ENUNCIATIVO Y NO LIMITATIVO, CUALESQUIERA GARANTÍAS IMPLÍCITAS DE COMERCIABILIDAD, DE IDONEIDAD PARA UN FIN DETERMINADO O DE NO INFRACCIÓN, O DERIVADAS DEL USO COMERCIAL O DEL CURSO DE LAS NEGOCIACIONES O DEL RENDIMIENTO. TE COMPROMETES A NO PRESENTAR NINGÚN RECLAMO O DEMANDA CONTRA TURNITIN, YA SEA CONTRACTUAL, EXTRACONTRACTUAL, DE RESPONSABILIDAD OBJETIVA O DE OTRO TIPO, EN RELACIÓN CON CUALQUIER ASPECTO DE LA EJECUCIÓN O NO EJECUCIÓN DEL SERVICIO DE ACCESO ANTICIPADO, Y POR EL PRESENTE RENUNCIAS IRREVOCABLEMENTE A CUALQUIER DERECHO, SI LO HUBIERE, QUE PUEDAS TENER A DAÑOS DIRECTOS, INDIRECTOS, ESPECIALES O CONSECUENTES DERIVADOS DE LA EJECUCIÓN O NO EJECUCIÓN DEL SERVICIO DE ACCESO ANTICIPADO, INCLUSO SI SE LE HA ADVERTIDO A TURNITIN DE LA POSIBILIDAD DE TALES DAÑOS. CUALQUIER INDEMNIZACIÓN POR DAÑOS Y PERJUICIOS CONTRA TURNITIN, YA SEA CONTRACTUAL, EXTRACONTRACTUAL O DE RESPONSABILIDAD OBJETIVA, NO EXCEDERÁ UNA CANTIDAD SUPERIOR A 100,00 DÓLARES.

3. Términos de servicio específicos de Turnitin.

3.1 Turnitin Feedback Studio con los Servicios Originality/Similarity/SimCheck/Clarity/OC y OC+.

3.1.1 Turnitin se compromete, con respecto a los Servicios Turnitin Feedback Studio, Turnitin Similarity, SimCheck, Turnitin Feedback Studio con Originality, Clarity, OC y OC+, y sus componentes, a permitir que los Instructores creen cuentas de Instructores y que los Estudiantes creen cuentas de Estudiantes en el Servicio.

3.1.2 Con respecto al uso que tú y tus Usuarios autorizados hagan de los Servicios Turnitin Similarity, SimCheck, and Turnitin Feedback Studio con Clarity u Originality, y sus componentes, Turnitin te recomienda encarecidamente que:

3.1.2.1 No informes a los Estudiantes que Tú estás utilizando el Servicio Turnitin Feedback Studio en una clase determinada cuando dicha clase no esté utilizando realmente el Servicio Turnitin Feedback Studio. Además, incluso dentro de una clase concreta que utilice el Servicio Turnitin Feedback Studio, por motivos de imparcialidad y aplicación equitativa, Turnitin recomienda encarecidamente que los Estudiantes envíen todas sus entregas en lugar de que los Instructores envíen sólo los trabajos de los Estudiantes seleccionados por el Instructor.

3.1.2.2 En el plan de estudios de cada curso que haga uso del Servicio, se debe incluir un aviso sustancialmente semejante al siguiente: «Al realizar este curso, el estudiante acepta que todos los trabajos entregados están sujetos a verificación y revisión por parte de Turnitin (incluso mediante el uso de inteligencia artificial o herramientas de detección semejantes) para evaluar la similitud textual y la escritura que probablemente haya sido generada por IA para la detección de posibles casos de mala conducta académica, y para proporcionar a los instructores una visión de su proceso de redacción a través de datos sobre la escritura que se encuentren en el producto. Todos los trabajos entregados se incluirán como documentos de origen en la base de datos de referencias de Turnitin con el único fin de detectar casos de mala conducta académica en dichos trabajos. El uso de los productos y servicios de Turnitin está sujeto a la Política de usos aceptables publicada en www.turnitin.com/acceptable-use-policy». Si se establece el uso del Servicio después de la distribución del plan de estudios, Tú tendrás en cuenta la firme recomendación de Turnitin de exigir a cada Instructor que proporcione a los Estudiantes un aviso por escrito equivalente del uso de los servicios de Turnitin en cada caso, y

3.1.2.3 te asegurarás de que todos los Estudiantes que se inscriban en tu institución reciban en su manual del Estudiante (o comunicación comparable), en el momento de la inscripción, un aviso claro que detalle que utilizas los Servicios de Turnitin.

3.2 Servicios de Asistencia de escritura con IA y Redacción de Turnitin

3.2.1 Alcance de la función y contenido del usuario. Turnitin puede ofrecer funciones que ayuden a los Usuarios en el proceso de escritura, incluidos mensajes y resultados generados por IA, sugerencias gramaticales, herramientas de parafraseo y otro soporte semejante para la escritura («Asistencia de escritura con IA»). Los usuarios pueden entregar y editar contenidos escritos («Redacciones») directamente dentro de los Servicios. Las Redacciones forman parte de Tu contenido de conformidad con el Acuerdo.

3.2.2 Datos de uso y del proceso de escritura. Turnitin puede recopilar metadatos y datos del proceso de escritura a partir de las interacciones de los Usuarios con las funciones de Asistencia de escritura con IA, incluida información como las indicaciones de entrada, las sugerencias seleccionadas, la duración de la participación, la actividad del cursor y los patrones de revisión («datos del proceso de escritura»). Estos datos pueden almacenarse y utilizarse para lo siguiente: (i) prestar los Servicios; (ii) apoyar la resolución de problemas y la depuración; (iii) evaluar el rendimiento de las funciones, y (iv) desarrollar y mejorar los sistemas de IA y las herramientas de asistencia a la escritura de Turnitin, al utilizar datos agregados, sin identificación o seudonimizados, a menos que el Cliente autorice lo contrario.

3.2.3 Datos de comentarios e interacciones. Se puede invitar a los Usuarios para que brinden sus comentarios sobre las sugerencias de IA. Turnitin puede conservar y utilizar estos comentarios y datos de interacción relacionados para entrenar modelos de aprendizaje automático y mejorar la precisión de las funciones.

3.2.4 Derechos de propiedad y uso. Turnitin retiene todos los derechos, títulos e intereses sobre cualquier modelo, algoritmo y software desarrollado como resultado del uso y los datos del proceso de escritura.

3.2.5 Uso de modelos de IA de terceros. Algunas de las funciones de Asistencia de escritura con IA pueden basarse en el aprendizaje automático de terceros o en Grandes Modelos Lingüísticos. Estos módulos de terceros se integran en los Servicios para ofrecer funciones mejoradas, como sugerencias en lenguaje natural; ayuda a la redacción; correcciones estructurales y gramaticales; borradores completos o parciales, y funciones de parafraseo. Turnitin puede cambiar o

sustituir los modelos de terceros a su entera discreción. Además, Turnitin no se hace responsable de las interrupciones, las degradaciones en el rendimiento o la falta de disponibilidad de los Servicios debido al tiempo de inactividad o los cambios de terceros, y dichos problemas no constituirán un incumplimiento del Acuerdo ni darán derecho al Cliente a créditos de servicio. Turnitin no representa ni garantiza la disponibilidad, exactitud o fiabilidad de los contenidos generados por dichos modelos.

3.2.6 Aviso de acceso anticipado. Determinadas funciones de Asistencia de escritura con IA pueden estar disponibles como Servicios de acceso anticipado en virtud de la Sección 2. Los Usuarios reconocen que las funciones de Asistencia de escritura con IA pueden estar en fase de desarrollo y pueden funcionar con errores o interrupciones. Los comentarios y los datos de uso durante el Acceso anticipado podrán utilizarse para evaluar y mejorar dichas funciones.

3.2.7 Divulgación y responsabilidad del Cliente. El Cliente se asegurará de que se notifique a los Estudiantes y Académicos sobre el uso de las funciones de Asistencia de escritura con IA de conformidad con las legislaciones y políticas institucionales vigentes, incluso en los planes de estudios de los cursos, las comunicaciones de inscripción u otros materiales apropiados.

3.2.8 No se toman decisiones de manera automatizada. Las funciones de Asistencia de escritura con IA de Turnitin no toman decisiones que produzcan efectos legales o de importancia similar para los Usuarios. Las sugerencias de contenido y las respuestas a las preguntas de los usuarios no son vinculantes, se utilizan exclusivamente a discreción de los Usuarios y no son evaluaciones determinantes del trabajo de un Usuario.

3.3 Servicio iThenticate. Con respecto a Tu uso del Servicio iThenticate, la licencia concedida en el Acuerdo está restringida de la siguiente manera: si Tu institución se da a conocer como un servicio a través del cual los Estudiantes, investigadores u otras personas pueden obtener trabajos o partes de estos para entregarlos como su propio trabajo original (por ejemplo, se convierte o se asocia con un «servicio de redacción de trabajos», un servicio de escritura fantasma que vende ensayos, trabajos y otras redacciones escritas), las Partes acuerdan reunirse y consultar de buena fe para abordar la cuestión. Si las Partes no consiguen resolver el problema en un plazo de 30 días, Turnitin podrá rescindir el Acuerdo y tu acceso a los Servicios a su discreción y sin más obligación.

3.4 Servicios profesionales o capacitaciones. Los Servicios profesionales o las capacitaciones se ajustarán a cualquier Orden de pedido. Turnitin y tú están de acuerdo en que las capacitaciones son más útiles si se llevan a cabo al principio de tu período de servicio, y tú y Turnitin acuerdan además trabajar de buena fe para programar y completar las capacitaciones dentro de un plazo razonable tras el inicio del período de servicio o dentro del plazo establecido por las Partes.

3.4.1 Período y conclusión de las capacitaciones. Sin perjuicio de cualquier disposición en contrario en dicha orden de compra independiente, las capacitaciones presenciales o en directo deben completarse en un plazo de doce (12) meses a partir del inicio del servicio de Turnitin/iThenticate, o de la conclusión del Período en el que se concedió la licencia de capacitación, lo que ocurra antes («Conclusión del período de la capacitación»). Si la capacitación no se completa antes de la Conclusión del período de la capacitación, Turnitin hará todo lo posible para proporcionarte acceso a los materiales de formación en lugar de la capacitación. Turnitin y tú acuerdan que lo anterior constituirá y cumplirá la obligación de Capacitación de Turnitin.

3.4.2 Cambios o cancelaciones. Si debes reprogramar la capacitación, Turnitin hará todos los esfuerzos razonables para atender dicha solicitud. No habrá reembolsos en caso de cambios o cancelaciones.

4. Términos de servicio específicos de ExamSoft.

4.1 EULA. Para que un Estudiante pueda acceder y utilizar la parte del software de pruebas de los Servicios de ExamSoft, el Estudiante deberá, en algunos casos, descargar o de otro modo acceder a los Servicios del portal en sus propios dispositivos o desde estos. Como condición previa para que el Estudiante acceda a y utilice los Servicios de ExamSoft, se le pedirá que acepte el Acuerdo de licencia de usuario final («EULA»), disponible en https://examsoft.com/es/eula/, que el Estudiante debe aceptar (a través de un proceso de aceptación electrónica) para poder utilizar los Servicios de ExamSoft. Con el fin de garantizar la calidad del Servicio, el soporte, el control de la cuenta, la integridad de la evaluación y la asistencia relacionada con la evaluación, en el curso de la prestación del Servicio de ExamSoft y antes de otorgar acceso a un Estudiante, se le solicitará al Estudiante que dé su consentimiento para que ExamSoft recopile Datos de prueba, lo que incluye la autorización de la recopilación de Datos de prueba para permitirnos brindar los Servicios de ExamMonitor (como se describe a continuación).

4.2 Requisitos del EULA; asistencia a la incorporación. Reconoces que los requisitos de la Sección 4.1. (EULA) arriba mencionados son una condición previa para que los Estudiantes accedan a y usen la parte del software de pruebas destinada al examinado de los Servicios de ExamSoft, y aceptas proporcionarnos asistencia razonable en el proceso de incorporación de los Estudiantes para el uso de los Servicios de ExamSoft en cumplimiento de lo anterior.

4.3 Administradores clave. Proporcionaremos páginas de Internet en el Sitio para que se usen en la evaluación y administración del programa. Asignarás uno o más Administradores clave para que sirvan como punto(s) principal(es) de contacto de ExamSoft contigo en asuntos relacionados con el software; estos tendrán acceso protegido por contraseña al portal de usuarios de ExamSoft. Tú (a) debes mantener, e instruirás a los Usuarios autorizados para que mantengan, la confidencialidad de estas contraseñas, y (b) eres responsable de su seguridad. «Administrador clave» hace referencia a tu punto de contacto designado, encargado de recibir actualizaciones y demás información de ExamSoft, y de dirigir preguntas a ExamSoft. Dicho administrador tiene derechos de acceso de nivel superior a los Servicios del portal.

4.4 Notificación de violaciones de la seguridad. Si se produce una violación de la seguridad de ExamSoft a través de tu cuenta, nos notificarás de inmediato (lo que en ningún caso superará las 48 horas desde que tuviste conocimiento de ella o sospechaste por primera vez) dicha violación. Puedes solicitar que ExamSoft cambie o haga cambiar cualquier contraseña afectada, según corresponda.

4.5 Términos especiales de los productos y servicios de ExamSoft.

Examen de juicio clínico: consentimiento para la notificación de transferencia de datos a terceros. En el transcurso del uso de los Servicios de ExamSoft, puedes proporcionarnos acceso a cierta información de identificación personal del Estudiante proveniente de registros educativos de conformidad con la Sección 99.31(a)(1)(i) del título 34 del Código de Regulaciones Federales (CFR) y promulgada de conformidad con la Ley sobre los Derechos de la Familia en Materia de Educación y Privacidad (FERPA). Durante el transcurso de la ejecución de los Servicios de ExamSoft en virtud del Acuerdo que celebras con ExamSoft, el Servicio de ExamSoft genera ciertos datos de los resultados de los Estudiantes. ExamSoft ofrece Servicios adicionales, que solicitaste bajo el título de módulo de Exámenes de juicio clínico (CJE), que ExamSoft proporciona en asociación con terceros.

Como parte del Servicio de ExamSoft, el tercero analiza los datos de los resultados de los Estudiantes para validar el rendimiento de los elementos de evaluación, y mantener y mejorar la calidad de la oferta. En virtud de la FERPA, ExamSoft sólo puede revelar los datos de rendimiento del Estudiante al tercero si lo autorizas de manera explícita. Esta autorización se necesita para prestar los servicios de ExamSoft y garantizar la validez permanente de los análisis comparativos.

Reconoces que tienes una relación contractual vigente con ExamSoft que requiere que ExamSoft entregue los datos de rendimiento al tercero para permitirle realizar análisis psicométricos y controles de calidad para entregar evaluaciones de calidad y análisis comparativos psicométricamente válidos. Reconoces que has llevado un registro adecuado conforme a la Sección 99.33(b) del título 34 del CFR.

Certificas a ExamSoft que te han otorgado autoridad suficiente para proporcionar este consentimiento. Nos autorizas a transmitir los datos de los resultados de los Estudiantes a terceros para que realicen análisis psicométricos y controles de calidad de los elementos de evaluación que hayas adquirido de ExamSoft.

4.5.2 Exámenes de análisis comparativo de farmacia: consentimiento para la notificación de transferencia de datos a terceros. En el transcurso del uso de los Servicios de ExamSoft, puedes proporcionarnos acceso a cierta información de identificación personal del Estudiante proveniente de registros educativos de conformidad con la Sección 99.31(a)(1)(i) del título 34 del Código de Regulaciones Federales (CFR) y promulgada de conformidad con la Ley sobre los Derechos de la Familia en Materia de Educación y Privacidad (FERPA). Durante el transcurso de la ejecución de los Servicios de ExamSoft en virtud del Acuerdo que celebras con ExamSoft, el Servicio de ExamSoft genera ciertos datos de los resultados de los Estudiantes.

ExamSoft ofrece Servicios adicionales, que solicitaste con el título de módulo de Exámenes de análisis comparativo de farmacia, que ExamSoft proporciona en asociación con terceros.

Como parte del Servicio de ExamSoft, el tercero analiza los datos de los resultados de los Estudiantes para validar el rendimiento de los elementos de evaluación, y mantener y mejorar la calidad de la oferta. En virtud de la FERPA, ExamSoft sólo puede revelar los datos de rendimiento del Estudiante al tercero si lo autorizas de manera explícita. Esta autorización se necesita para prestar los servicios de ExamSoft y garantizar la validez permanente de los análisis

comparativos.

Reconoces que tienes una relación contractual vigente con ExamSoft que requiere que ExamSoft entregue los datos de rendimiento al tercero para permitirle realizar análisis psicométricos y controles de calidad para entregar evaluaciones de calidad y análisis comparativos psicométricamente válidos. Reconoces que has llevado un registro adecuado conforme a la Sección 99.33(b) del título 34 del CFR.

Certificas a ExamSoft que te han otorgado autoridad suficiente para proporcionar este consentimiento. Nos autorizas a transmitir los datos de los resultados de los Estudiantes a terceros para que realicen análisis psicométricos y controles de calidad de los elementos de evaluación que hayas adquirido de ExamSoft.

4.6 Servicios de ExamMonitor: consentimiento para la notificación de transferencia de datos a terceros.

Los Servicios de ExamSoft pueden recopilar grabaciones de video de los Estudiantes mientras realizan una evaluación. ExamSoft utilizará estas grabaciones de video para proporcionar ciertos «Servicios de ExamMonitor» (como se describe a continuación), que ExamSoft proporciona en asociación con un proveedor externo de supervisión.

4.6.1 Como parte del Servicio de ExamMonitor, un proveedor externo de supervisión analizará las grabaciones de video de los Estudiantes para generar reportes de análisis de exámenes que le permitan evaluar si un Estudiante tiene un comportamiento sospechoso en el transcurso de una evaluación.

4.6.2 Al usar los Servicios de ExamSoft, reconoces y aceptas que (i) ExamSoft está autorizado a entregar reportes de análisis de exámenes usando un proveedor externo de supervisión; (ii) ExamSoft puede divulgar a dicho proveedor los Datos del estudiante para permitir que este realice el análisis de los videos del Estudiante, y (iii) has llevado un registro adecuado para estos fines de conformidad con la sección 99.33(b) del título 34 del CFR.

4.7 Garantía limitada de los Servicios de ExamSoft.

4.7.1 ExamSoft te garantiza que durante la vigencia del Acuerdo, los Servicios de ExamSoft se ajustarán sustancialmente a las especificaciones del producto que se encuentran en https://examsoft.com/product-specifications («Especificaciones del producto ExamSoft»), si: (a) el Estudiante utiliza el Servicio de ExamSoft como lo requiere el Acuerdo y sigue de forma apropiada todas las instrucciones de instalación y cualquier recomendación del personal de soporte técnico de ExamSoft; (b) cualquier computadora que ejecuta el Servicio de ExamSoft (o software) está en buenas condiciones de funcionamiento, y (c) la computadora del Estudiante cumple con los requisitos mínimos de especificación establecidos en el sitio web de ExamSoft y el Portal de Usuarios autorizados.

4.7.2 ExamSoft puede modificar las Especificaciones del producto ExamSoft de manera periódica, incluyendo, entre otros, cuando ExamSoft modifique o mejore sus Servicios o las funcionalidades del software.

4.7.3 Si el Servicio de ExamSoft no cumple con la garantía anterior, ExamSoft, como su única obligación y su único recurso, (a) utilizará esfuerzos comercialmente razonables para corregir la no conformidad y para volver a entregarte el Servicio de ExamSoft corregido, o (b) donde ExamSoft no pueda corregir la no conformidad, te reembolsará las tarifas pagadas por su Servicio no conforme.

4.7.4 Lo anterior será tu único y exclusivo recurso en caso de incumplimiento de la garantía en virtud de esta Sección 4.7.

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# 10 | Terms of Use

https://www.turnitin.com/terms-of-use-website/

Webpage text snapshot | Retrieved 10 October 2026

## Turnitin Website Terms of Use

Last Updated: 08/24/2021

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# 11 | Trust Center

https://www.turnitin.com/trust-center

Webpage text snapshot | Retrieved 10 October 2026

## Turnitin Trust Center

## Protecting your data

You've trusted us with your data for nearly thirty years. We recognize the great responsibility that comes with that trust and that the introduction of AI to education brought more questions and concerns about data use and privacy.

We are building on the decades of trust you've given us with a transparent approach to product design and data use. Learn about how we are building solutions with AI, how we use and protect your data, and our privacy policy here in our trust center.

## Turnitin's AI principles

We build solutions that support learning integrity and help educators navigate AI integration through transparency and responsible use.

How we design and deliver AI features is guided by five core principles:

Fairness and Inclusion. Design and test AI so it works equitably across diverse users and contexts. Avoid bias, monitor for disparate impact, and keep humans in the loop.

Transparency and Human Centered Design. Make AI understandable. Include clear disclosures and plain language explanations of what it does and its limits.

Privacy, Safety, and Security. Treat data used in AI systems with the same care as all other personal data. Limit use, secure access, and apply techniques like anonymization or pseudonymization

Learning and Adaptation. Review, test, and refine AI systems regularly. Stay current on emerging research, feedback, and legal standards.

Accountability and Governance. Maintain documentation, risk assessments, and cross-functional reviews so ownership and oversight are clear at every stage.

## AI definitions at Turnitin

## Defining terms as they relate to Turnitin products

Classifier vs. Generative AI models:

Classifier AI models categorize or label existing data, returning a numeric prediction about AI writing – they do not write, rewrite, or produce text.

Generative AI models create new content including text, images, audio, code, video, etc., based on learned patterns and typically, from a prompt.

We do not train any generative AI models, or LLMs. We only train a classifier model for AI detection in our Turnitin Originality license.

Training and Evaluating AI models: AI models are trained on how to work, and then evaluated on how well they work. These two definitions are essential to understanding how we do and do not use student data.

Training: Training our classifier AI model for AI detection in our Turnitin Originality license means teaching the model what is human writing and what is AI writing. If you do not have Turnitin Originality with AI detection enabled, your current student data is not used for training our classifier AI model. If you do have Turnitin Originality with AI detection enabled, your current student data is anonymized and may be used to train our classifier AI model.

So how does training work?

We train our AI model on both AI-generated text and authentic, anonymized academic writing. The training dataset includes a representative sample of data across geographies and subject areas. We take into account statistically under-represented groups such as second-language learners, English users from non-English speaking countries, students at colleges and universities with diverse enrollments, and less common subject areas including anthropology, geology, sociology and others to minimize bias.

The human writing is curated from authorized databases, anonymized and pseudonymized.

After training the classifier model, the datasets stay in secure storage. The model is deployed on servers Turnitin controls. The interface is made available to customers, not the data.

Evaluating: Evaluating our classifier AI model in our Turnitin Originality license means assessing its effectiveness and false positive rate. We do evaluate our AI model against current student writing so we know if it works, and it never leaves our Turnitin systems.

## AI in our products

Transparency is a critical part of our AI principles. Below is a list of AI or AI-powered features so institutions, educators, students, publishers, and researchers can see how AI is used within our products.

This list is of publicly available products and features and may include beta or preview programs for licensed customers, where noted.

Last updated: 23 September 2026

Turnitin Solution

| Features

| Description

| AI service provider / service

| Notes/further information

|

Turnitin Feedback Studio | Similarity Report

- Match Group categorization

| Natural language processing (NLP) technology is used to recognize in-text citations and quotation marks associated with matched text, helping instructors easily recognize the matches where the student attempted to include proper attribution versus those where they may have copied text without attribution.

| Turnitin - in-house

| |

Video feedback closed captioning

| AI is used to transcribe voice to text.

| Amazon Transcribe

| |

Translated matching

| Machine learning technology is used to establish semantic similarity between texts, helping detect content matches across a broad range of languages.

| Turnitin - in-house

| |

First pass feedback & summarization (in beta)

| Uses AI to provide contextually aware feedback suggestions to instructors based on student submissions, instructions and rubric.

It also takes all the feedback applied to the student’s paper, whether that originated from AI or the instructor themselves, and the rubric scoring, to draft and format an initial summary comment for teachers to review.

| Claude Haiku 4.5

| Anthropic’s pre-trained models do not use or retain any student or assignment data submitted to Turnitin for AI training and evaluation

|

iThenticate | AI writing detection

(available as an add-on)

| Using an LLM-powered text classification model, this solution helps educators identify text that has likely been generated and/or modified by AI writing tools.

| Turnitin - in-house

| AI writing detection FAQs

|

Similarity report - Match Group categorization

| Natural language processing (NLP) technology is used to recognize in-text citations and quotation marks associated with matched text, helping reviewers easily recognize the matches where the author attempted to include proper attribution versus those where they may have copied text without attribution.

| Turnitin - in-house

| |

Turnitin Similarity

| Similarity Report: Match Group categorization

| Natural language processing (NLP) technology is used to recognize in-text citations and quotation marks associated with matched text, helping instructors easily recognize the matches where the student attempted to include proper attribution versus those where they may have copied text without attribution.

| Turnitin - in-house

| |

Turnitin Originality

(available as an add-on to Turnitin Similarity, Turnitin Feedback Studio & Originality Check)

| AI writing detection

| Using an LLM-powered text classification model, this solution shows text that has likely been generated and/or modified by AI writing tools.

| Turnitin - in-house

| AI writing detection FAQs

|

Authorship

| Authorship uses computational linguistics and natural language processing to establish if the submission's writing is consistent with the student's prior work.

| Turnitin - in-house

| |

Turnitin Clarity

(available as an add-on to Turnitin Feedback Studio, requires Turnitin Originality)

| AI assistant

| Backed by an AI-powered LLM, the AI assistant provides feedback and guidance to students (without actually writing for the student or changing their content), helping them use AI responsibly and improving their writing skills.

| Anthropic's Claude 4.5 Haiku

| Anthropic’s pre-trained models do not use or retain any student or assignment data submitted to Turnitin for AI training and evaluation.

We do use anonymized student assignment data to evaluate, improve, and extend the quality of the Turnitin AI assistant responses and capabilities. Data anonymization tools remove personal identifying information from customers’ data prior to it being used for feature improvements.

|

Citations checker

| AI is used to check for formatting of in-text citations and works cited. It does not automatically change text.

| Claude Haiku 4.5

| |

Grammar checker

| AI is used to provide grammar feedback to students without modifying the original meaning of the text.

| Amazon Nova 2 Lite

| |

## What you can control

AI writing detection

If your institution is licensed for Turnitin Originality and does not want submissions to be processed for AI writing detection, it can be disabled from the administrator account settings page.

Private repositories

Administrators may configure private repositories, which store submissions separate from the standard Turnitin database and are searched against only by the institution’s users. Content added to a private repository are not used for AI writing training.

Clarity AI assistance

The AI assistance tools within Turnitin Clarity can be enabled or disabled by individual instructors. The pre-trained LLMs do not use or retain any student or assignment data submitted to Turnitin for AI training and evaluation.

## Privacy policy

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